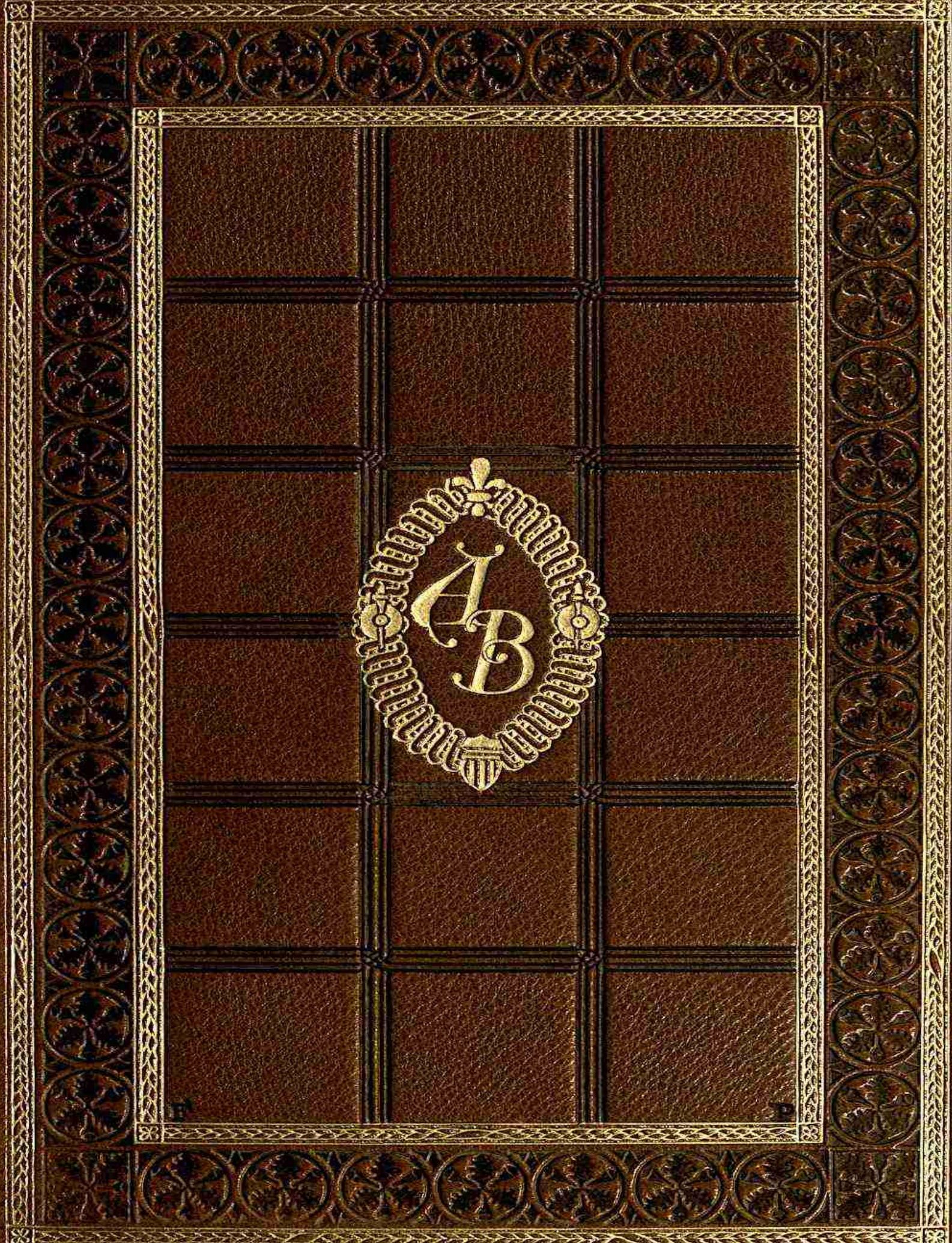
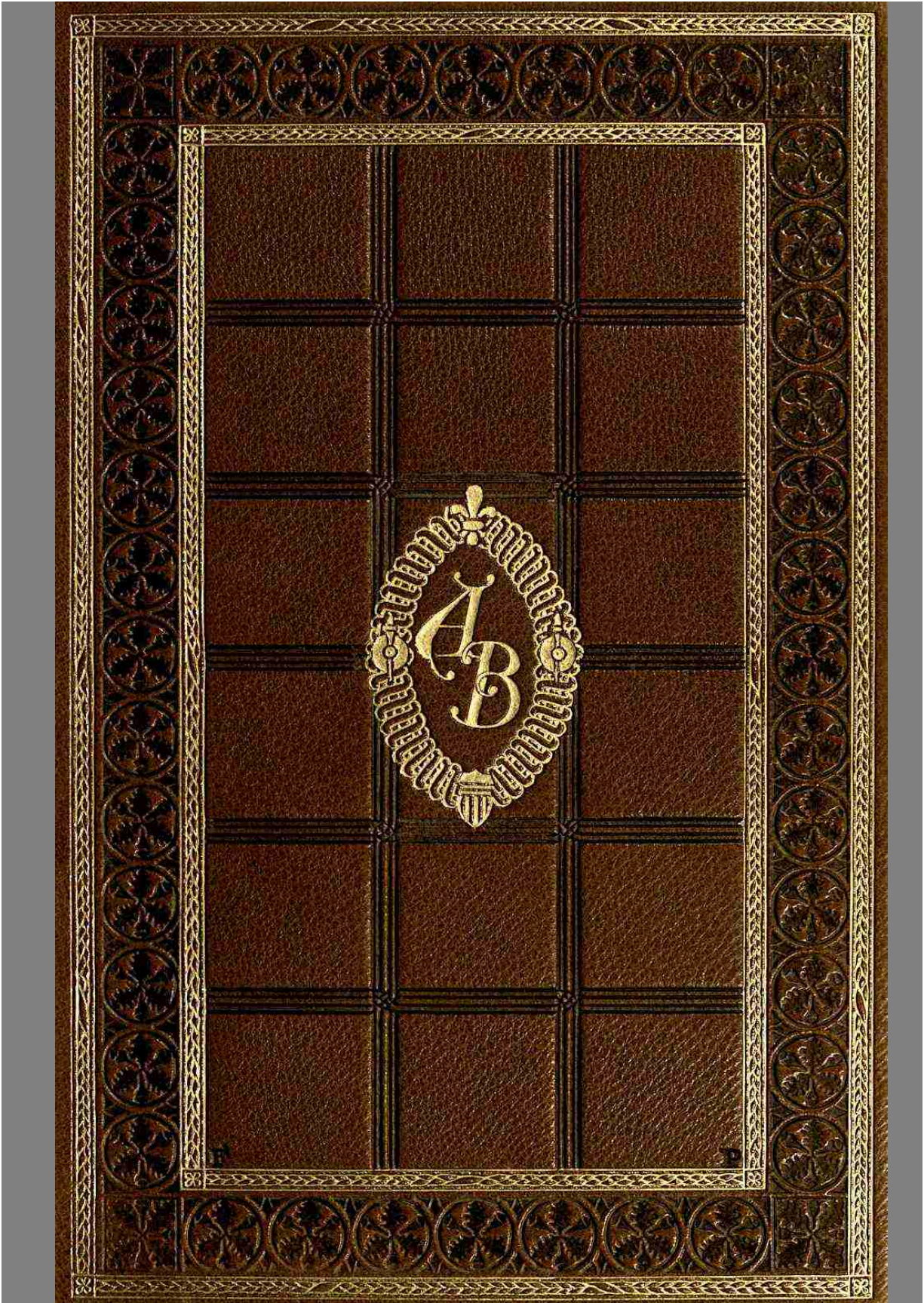






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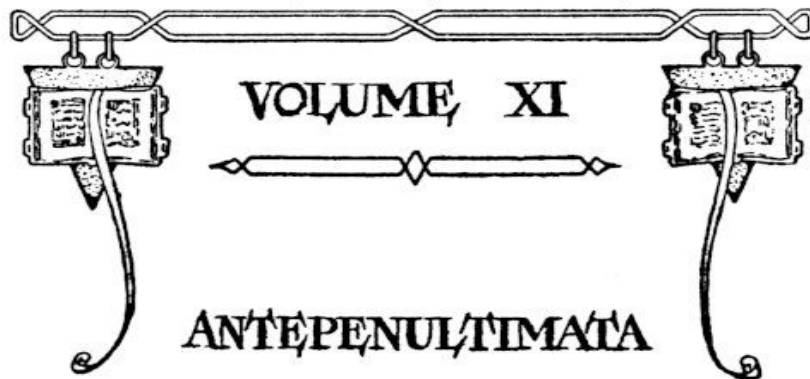
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THE COLLECTED WORKS OF
AMBROSE BIERCE

VOLUME XI



THE COLLECTED WORKS OF AMBROSE BIERCE



VOLUME XI

ANTEPENULTIMATA



NEW YORK & WASHINGTON
THE NEALE PUBLISHING COMPANY

1912

FREDERICK

POLLEY

**THE COLLECTED
WORKS OF
AMBROSE BIERCE**

VOLUME XI

ANTEPENULTIMATA

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PUBLISHERS' NOTE

The greater part of the contents of this volume is published in admirable form by A. M. Robertson, of San Francisco, with the title *The Shadow on the Dial and Other Essays*. When the prospectus of Mr. Bierce's *Collected Works* was issued by our house in 1908 no allowance was made for this matter, but through the generosity of Mr. Robertson, and of Mr. S. O. Howes, the book's compiler and editor, we are now able to include it in our scheme, with revisions and additions by the author. For this courtesy we are greatly indebted to Messrs. Robertson and Howes.

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ANTEPENULTIMATA

THE SHADOW ON THE DIAL

I

THERE is a deal of confusion and uncertainty in the use of the words “socialist,” “anarchist,” and “nihilist.” Even the ’ist himself commonly knows with as little accuracy what he is as the rest of us know why he is. The socialist believes that most human affairs should be regulated and managed by the state—the government—that is to say, the majority. Our own system has many socialist features and the trend of republican government is all that way. The anarchist favors abolition of all law and frequently belongs to an organization that secures his allegiance by solemn oaths and dreadful penalties. “Nihilism” is a name given by Turgenieff to the general body of Russian discontent which finds expression in antagonizing authority and killing authorities. Constructive politics would seem, as yet, to be a cut above the nihilist’s intelligence; he is essentially a destructionary. He is so diligently engaged in unweeding the soil that he has not given a thought to what he will grow there. Nihilism may be defined as a policy of assassination tempered by reflections on Siberia. American sympathy with it is the offspring of an unholy union between the tongue of a liar and the ear of a dupe.

Upon examination it will be seen that political dissent, when it takes any form more coherent than the mere brute dissatisfaction of a mind that does not know what it wants to want, finds expression in one of but two ways—in Socialism or in Anarchism. Whatever methods one may think will best replace a system gradually evolved from our needs and our natures with a system existing only in the minds of dreamers, one is bound to choose between these two dreams. Yet such is the intellectual delinquency of many who most strenuously denounce the system that we have that we not infrequently find the same man advocating in one breath, Socialism, in the next, Anarchism. Indeed, few of these sons of darkness know that even as coherent dreams the two are incompatible. With Anarchy triumphant the socialist would be a thousand years further from realization of his hope than he is to-day. Set up Socialism on a Monday and on Tuesday the country

would be *en fête*, gaily hunting down anarchists. There would be little difficulty in trailing them, for they have not so much sense as a deer, which, running down the wind, sends its tell-tale fragrance on before.

Socialism and Anarchism are parts of the same thing, in the sense that the terminal points of a road are parts of the same road. Between them, about midway, lies the system that we have the happiness to endure. It is a “blend” of Socialism and Anarchism in about equal parts: all that is not one is the other. Coöperation is Socialism; competition is Anarchism. Competition carried to its logical conclusion (which only coöperation prevents or can prevent) would leave no law in force, no property possible, no life secure.

Of course the words “coöperation” and “competition” are not here used in a merely industrial and commercial sense; they are intended to cover the whole field of human activity. Two voices singing a duet—that is coöperation—Socialism. Two voices singing each a different tune and trying to drown each other—that is competition—Anarchism: each is a law unto itself—that is to say, it is lawless. Everything that ought to be done the socialist hopes to do by associated endeavor, as an army wins battles; Anarchism is socialist in its means only: by coöperation it tries to render coöperation impossible—combines to kill combination. Its method says to its purpose: “Thou fool!”

II

Everything foretells the doom of authority. The killing of kings is no new industry; it is as ancient as the race. Always and everywhere persons in high place have been the assassin’s prey. We have ourselves lost three presidents by murder, and shall doubtless lose many another before the book of American history is closed. If anything is new in this activity of the regicide it is found in the choice of victims. The contemporary “avenger” slays, not the merely “exalted,” but the good and the inoffensive—an American president who had struck the chains from millions of slaves; a Russian czar who against the will and work of his own powerful nobles had freed their serfs; a French president from whom the French people had received nothing but good; a powerless Austrian empress, whose weight of sorrows had touched the world to tears; a blameless Italian king beloved of his people; such is a part of the recent record of the regicide, whose every entry

is a tale of infamy unrelieved by one circumstance of justice, decency or good intention.

This recent uniformity of malevolence in the choice of victims is not without significance. It points unmistakably to two facts: first, that the selections are made, not by the assassins themselves, but by some central control inaccessible to individual preference and unaffected by the fortunes of its instruments; second, that there is a constant purpose to manifest an antagonism, not to any individual ruler, but to rulers; not to any system of government, but to government. The issue is defined, the alignment made, the battle set: Chaos against Order, Anarchy against Law.

III

M. Vaillant, the French gentleman who lacked a “good opinion of the law,” but was singularly rich in the faith that by means of gunpowder and flying nails humanity could be brought into a nearer relation with reason, righteousness and the will of God, is said to have been nearly devoid of nose. Of this privation M. Vaillant made but slight account, as was natural, seeing that for but a brief season did he need even so much of nose as remained to him. Yet before its effacement by premature disruption of his own petard it must have had a certain value to him—he would not wantonly have renounced it; and had he foreseen its extinction by the bomb the iron views of that controversial device would probably have been denied expression. Albeit (so say the scientists) doomed to eventual elimination from the scheme of being, and to the anarchist even now something of an accusing conscience, the nose is indubitably an excellent thing on man.

We have grown so accustomed to the presence of this feature that we take it as a matter of course; its absence is one of the most notable phenomena of our observation—“an occasion long to be remembered,” as the society reporter hath it. Yet “abundant testimony sheweth” that but a few centuries ago noseless men and women were so common all over Europe as to provoke but little comment when seen and (in their disagreeable way) heard. They abounded in all the various walks of life: there were honored burgomasters without noses; wealthy merchants, great scholars, artists, teachers. Amongst the humbler classes nasal destitution was almost as frequent as pecuniary—in the humblest of all, the most common of all. Writing in the thirteenth century, a chronicler mentions the retainers and

servants of certain Suabian noblemen as having hardly a whole ear among them—for until a comparatively recent period man's tenure of his ears was even more precarious than that of his nose. In 1436, when a Bavarian woman, Agnes Bernaurian, wife of Duke Albert the Pious, was dropped off the bridge at Prague, she persisted in rising to the surface and trying to escape; so the executioner gave himself the trouble to put a long pole into her hair and hold her under. A contemporary account of the matter hints that her disorderly behavior at so solemn a moment was due to the pain caused by removal of her nose; but as her execution was by order of her own father it seems more probable that this "extreme penalty of the law" was not imposed. Without a doubt, though, possession of a nose was an uncommon (and rather barren) distinction in those days among "persons designated to assist the executioner," as the condemned were civilly called. Nor, as already said, was it any too common among persons not as yet consecrated to that service: "Few," says the chronicler, "have two noses, and many have none."

Man's firmer grasp upon his nose in this our day and generation is not altogether due to invention of the handkerchief. The genesis and development of his right to his own nose have been accompanied with a corresponding advance in possessory rights all along the line of his belongings—his ears, his fingers and toes, his skin, his bones, his wife and her young, his clothes and his labor—everything that is (and that once was not) his. In Europe and America to-day these things can not be taken away from even the humblest and poorest without somebody wanting to "know the reason why." In every decade the nation that is most powerful upon the seas incurs voluntarily a vast expense of blood and treasure in suppressing a slave trade which in no way is injurious to her interests, nor to the interests of any but the slaves.

To-day even the lowliest incapable of all Nature's aborted has a nose that he dares to call his own and bite off at his own sweet will. Unfortunately, with an unthinkable fatuity we permit him to be told that but for the very agencies that have put him in possession he could successfully assert a God-given and world-old right to the noses of others. At present the honest fellow is mainly engaged in refreshing himself upon his own nose, consuming that comestible with avidity and precision; but the Vaillants, Ravechols, Mosts and Hearsts are pointing his appetite to other snouts than

his, and inspiring him with rhinophagic ambition. Meantime the rest of us are using these imperiled organs to snore with.

'Tis a fine, resonant and melodious snore, but it is not going to last: there is to be a rude awakening. We shall one day get our eyes open to the fact that scoundrels like Vaillant are neither few nor distant. We shall learn that our blind dependence upon the magic of words is a fatuous error; that the fortuitous arrangement of consonants and vowels which we worship as Liberty is of slight efficacy in disarming the lunatic brandishing a bomb. Liberty, indeed! The murderous wretch loves it a deal better than we, and wants more of it. Liberty! one almost sickens of the word, so quick and glib it is on every lip—so destitute of meaning.

There is no such thing as abstract liberty; it is not even thinkable. If you ask me, "Do you favor liberty?" I reply, "Liberty for whom to do what?" Just now I distinctly favor the liberty of the law to cut off the noses of anarchists caught red-handed or red-tongued. If they go in for mutilation let them feel what it is like. If they are not satisfied with the way that things have been going on since the wife of Duke Albert the Pious was held under water with a pole, and since the servitors of the Suabian nobleman cherished their vestigial ears, it is to be presumed that they favor reversion to that happy state. There is grave objection, but if we must we will. Let us begin (with moderation) by reverting *them*.

I favor mutilation for anarchists convicted of killing or inciting to kill—mutilation followed by death; for those who merely deny the right and expediency of law, plain mutilation—which might advantageously take the form of removal of the tongue. Why not? Where is the injustice? Surely he who denies men's right to make laws will not invoke the laws that they have wickedly made! That were to say that they must not protect themselves, yet are bound to protect him. What! if I beat him will he call the useless and mischievous constabulary? If I draw out his tongue shall he (in the sign-language) demand it back, and failing of restitution (for surely I should cut it clean away) shall he have the law on me—the naughty law, instrument of the oppressor? Why, that "goes neare to be fonny!"

IV

Two human beings can not live together in peace without laws—many laws. Everything that either, in consideration of the other's wish or welfare, abstains from is inhibited by law, tacit or expressed. If there were in all the world none but they—if neither had come with any sense of obligation toward the other, both clean from creation, with nothing but brains to direct their conduct—every hour would evolve an understanding, that is to say, a law; every act would suggest one. They would have to agree not to kill nor harm each other. They must arrange their work and all their activities to secure the best advantage. These arrangements, agreements, understandings—what are they but laws? To live without law is to live alone. Every family is a miniature state with a complicate system of laws, a supreme authority and subordinate authorities down to the latest babe. And as he who is loudest in demanding liberty for himself is sternest in denying it to others, you may confidently go to the Maison Vaillant, or the Mosthaus, for a flawless example of the iron hand.

Laws of the state are as faulty and as faultily administered as those of the family. Most of them have to be speedily and repeatedly “amended,” many repealed, and of those permitted to stand, the greater number fall into disuse and are forgotten. Those who have to be entrusted with the duty of administering them have all the limitations of intelligence and defects of character by which the rest of us also are distinguished from the angels. In the wise governor, the just judge, the honest sheriff or the patient constable we have as rare a phenomenon as the faultless father. The good God has not given us a special kind of men upon whom to devolve the duty of seeing to the observance of the understandings that we call laws. Like all else that men do, this work is badly done. The best that we can hope for through all the failures, the injustice, the disheartening damage to individual rights and interests, is a fairly good general result, enabling us to walk abroad among our fellows unafraid, to meet even the tribesmen from another valley without too imminent a peril of braining and evisceration. Of that small security the anarchist would deprive us. But without that nothing is of value and we shall be willing to renounce the anarchist.

Our system of civilization, being the natural outgrowth of our moral and intellectual natures, is open to criticism and subject to revision. Our laws, being of human origin, are faulty and their application is disappointing. Dissent, dissatisfaction, deprecation, proposals for a better system fortified

with better laws more intelligently administered—these are permissible and should be welcome. The decent socialist (when he is not carried away by zeal to pool issues with the anarchist) may have that in him which it does us good to hear. Wrong in all else, he may be right in showing us wherein we ourselves are wrong. Anyhow, his desire is amendment, and so long as his paths are peace he has the right to walk therein, exhorting as he goes. The French communist who does not preach Petroleum and It Rectified is to be regarded with more than amusement, more than compassion. There is room for him and his fad; there are hospitable ears for his boast that Jesus Christ would have been a communist if there had been communes. They really “did not know everything down in Judee.” But for the anarchist, whose aim is not amendment, but destruction—not welfare to the race, but mischief to a part of it—not happiness for the future, but revenge for the past—for that animal there should be no close season, for that savage no reservation. Society has not the right to grant life to one who denies the right to live. The proponent of reversion to the *régime* of lacking noses should lack a nose.

V

Of all the wild asses that roam the plain, the wildest wild ass that roams the plain is indubitably the one that lifts his voice and heel against that Socialism known as “public ownership of public utilities,” on the ground of “principle.” There may be honest, and in some degree intelligent, opposition on the ground of expediency. Many persons whom it is a pleasure to respect believe that a government railway, for example, would be less efficiently managed than the same railway in private hands, and that political dangers lurk in the proposal so enormously to increase the number of Federal employees as government ownership of railways would entail. They think, in other words, that the policy is inexpedient. It is a duty to reason with them, which, as a rule, one can do without being insulted. But he who greets the proposal with a howl of derision as “Socialism!” is not a respectable opponent. Eyes he has, but he sees not; ears—O, very abundant ears—but he hears not the still, small voice of history, nor the still smaller voice of common sense.

Obviously to those who, having eyes, do see, public ownership of anything is a step in the direction of Socialism, for perfect Socialism means

public ownership of everything. But “principle” has nothing to do with it. The principle of public ownership is already accepted and established. It has no visible opponents except in the camp of the anarchists, and fewer of them are visible there than soap and water would reveal. Antagonists of the principle of Socialism lost their fight when the first human government held the dedicatory exercises of a cave of legislation. Since then the only question about the matter has been how far the extension of Socialism is expedient. Some would draw the limiting line at one place, some at another; but only a fool thinks there can be government without it, or good government without a great deal of it. (The fact that we have always had a great deal of it, yet never had good government, affirms nothing that it is worth while to consider.) The word-worn example of our postal department is only one of a thousand instances of pure Socialism. If it did not exist, how bitter an opposition a proposal to establish it would evoke from adversaries of the Red Rag! The government builds and operates bridges with general assent; but, as the late General Walker pointed out, it may under some circumstances be more economical, or better otherwise, to build and operate a ferry boat, which is a floating bridge. But that is opposed as rank Socialism.

The truth is that the men of “principle” are a pretty dangerous class, generally speaking—and they are generally speaking. It is they that hamper us in every war. It is they who, preventing concentration and regulation of unabolishable evils, promote their distribution and liberty. Moral principles are pretty good things—for the young and those not well grounded in goodness. If one have an impediment in his thought, or is otherwise unequal to emergencies as they arise, it is safest to be provided beforehand with something to refer to in order that a right decision may be made without taking thought. But spirits of a purer fire prefer to decide each question as it comes up, and to act upon the merits of the case, unbound and unpledged. With a quick intelligence, a capable conscience and a habit of doing right automatically, one has little need to burden one’s mind and memory with a set of solemn principles formulated by owlsh philosophers who do not happen to know that what is right is merely what, in the long run and with regard to the greater number of cases, is expedient. Principle is not always an infallible guide. For illustration, it is not always expedient—that is, for the good of all concerned—to tell the truth, to be entirely just or merciful, to pay a debt. I can conceive a case in which it would be right to assassinate

one's neighbor. Suppose him to be a desperate scoundrel or a chemist who has devised a means of setting the atmosphere afire. The man who should go through life on an inflexible line of principle would border his path with a havoc of human happiness.

What one may think perfect one may not always think desirable. By "perfect" one may mean merely complete, and the word was so used in my reference to Socialism. I am not myself an advocate of "perfect Socialism," but as to government ownership of railways, there is doubtless a good deal to be said on both sides. One argument in its favor appears decisive; under a system subject to popular control the law of gravitation would be shorn of its preëminence as a means of removing personal property from the baggage car.

VI

When M. Casimir-Perier resigned the French presidency there were those who regarded the act as weak, cowardly, undutiful and otherwise censurable. It seems to me the act, not of a feeble man, but of a strong one—not that of a coward, but that of a gentleman. Indeed, I hardly know where to look in history for an act more entirely gratifying to my sense of the "fitness of things" than this dignified notification to mankind that in consenting to serve one's country one does not relinquish the right to decent treatment—to immunity from factious opposition and abuse—to at least as much civil consideration as is due from the church to the devil.

M. Casimir-Perier did not seek the presidency of the French republic; it was thrust upon him against his protestations by an apparently unanimous mandate of the French people in an emergency which it was thought that he was the best man to meet. That he met it with modesty and courage was testified without dissent. That he afterward did anything to forfeit the confidence and respect that he then inspired is not true, and nobody believes it true. Yet in his letter of resignation he said, and said truly:

"For the last six months a campaign of slander and insult has been going on against the army, magistrates, Parliament and the hierarchical Chief of State, and this license to disseminate social hatred continues to be called 'liberty of thought.'"

And with a dignity to which it seems strange that any one could be insensible, he added:

“The respect and ambition which I entertain for my country will not allow me to acknowledge that the servants of the country, and he who represents it in the presence of foreign nations, may be insulted every day.”

These are manly words. Have we any warrant for demanding or expecting that men of clean life and character will devote themselves to the good of ingrates who pay, and ingrates who permit them to pay, in flung mud? It is hardly credible that among even those persons most infatuated by contemplation of their own merit as pointed out by their thrifty sycophants “liberty of thought” has been carried to that extreme. The right of the State to demand the sacrifice of the citizen’s life is a doctrine as old as the patriotism that concedes it, but the right to require him to forego his good name—that is something new under the sun.

“Perhaps in laying down my functions,” said M. Casimir-Perier, “I shall have marked out a path of duty to those who are solicitous for the dignity, power and good name of France in the world.”

We may be permitted to hope that the lesson is wider than France and more lasting than the French republic. It is well that not only France but all other countries with “popular institutions” should learn that if they wish to command the services of men of honor they must accord them honorable treatment; the rule now is for the party to which they belong to give them a half-hearted support while suffering all other parties to slander and insult them. The action of the president of the French republic in these disgusting circumstances is exceptional and unusual only in respect of his courage in expressly resenting his wrong. Everywhere the unreasonable complaint is heard that good men will not “go into politics;” everywhere the ignorant and malignant masses and their no less malignant and hardly less ignorant leaders and spokesmen, having sown the wind of reasonless obstruction and partisan vilification, are reaping the whirlwind of misrule. So far as concerns the public service, gentlemen are mostly on a strike against introduction of the mud-machine. This high-minded political workman, Casimir-Perier, never showed to so noble advantage as in gathering up his tools and walking out.

It may be, and a thousand times has been, urged that abstention from activity in public affairs by men of brains and character leaves the business of government in the hands of the incapable and the vicious. In whose hands, pray, in a republic, does it logically belong? What does the theory of “representative government” affirm? What is the lesson of every netherward extension of the suffrage? What do we mean by permitting it to “broaden slowly down” to lower and lower intelligences and moralities?—what but that stupidity and vice, equally with virtue and wisdom, are entitled to a voice in political affairs?

A person that is fit to vote is fit to be voted for. He who is competent for the high and difficult function of choosing an officer of the state is competent to serve the state as an officer. To deny him the right is illogical and unjust. Participation in government can not be at the same time a privilege and a duty, and he who claims it as a privilege must not speak of another’s renunciation (whereby himself is more highly privileged) as “shirking.” With every retirement from politics increased power passes to those who remain. Shall they protest? Who else is to protest? The complaint of “incivism” would be more reasonable if there were some one by whom it could reasonably be made.

The public officials of this favored country, Heaven be thanked, are infrequently slandered: they are, as a rule, so bad that calumny is a compliment. Our best men, with here and there an exception, have been driven out of public life, or made afraid to enter it. Even our spasmodic efforts at reform fail ludicrously for lack of leaders unaffiliated with “the thing to be reformed.” Unless attracted by the salary, why should a gentleman “aspire” to the presidency of the United States? During his canvass (and he is expected to “run,” not merely to “stand”) he will have from his own party a support that should make him blush, and from all the others an opposition that will stick at nothing to accomplish his satisfactory defamation. After his election his partition and allotment of the loaves and fishes will estrange an important and thenceforth implacable faction of his following without appeasing the animosity of any one else. At the finish of his term the utmost that he can expect in the way of reward not expressible

in terms of the national currency is that not much more than one-half of his countrymen will believe him a scoundrel to the end of their days.

VII

The trend of political thought and action in all civilized countries toward absolute Socialism is so conspicuous a phenomenon that it not only impresses that rare and execrated intelligence, the impartial observer, “the looker-on at the game,” but is seen with greater or less distinctness by the innumerable company of players. A political faith is a kind of mental disability; the patient dimly discerns some of the more salient of the “opposing facts,” but those grateful to his disorder loom large indeed. The proposition that the established order of things is in peril, has, therefore, both a stammering and a stentorian assent and needs no proof. Whether that is for better or for worse is not to be answered in an epigram, nor in a paragraph, but from the viewpoint of the looker-on with no more than an observer’s interest in the matter, little is seen to encourage the optimist—little even of the little that he requires.

Down to date the world never has had good government. For forms of government fools have contested from the dawn of history, but no form has given good and wise administration. Government is like medicine; those who administer it are, as a rule, wiser than those to whom it is administered, though not much. In point of conscience there is little to choose between them.

There are two forms of real government; absolute Monarchy and absolute Democracy; all others are bastard forms attesting the failure of these, and themselves doomed to fail. The cause of failure lies in the essential folly and badness of human nature. From a stupid and selfish people there is no certainty of getting a wise and conscientious sovereign. Even when that miracle has been wrought, good government has not resulted, for the sovereign, however absolute in theory, however good and wise in fact, is compelled to work through shallow and selfish officials. Democracy suffers the same disability, with the added disadvantage of a sovereign that is never wise and never just.

As to limited Monarchies and constitutional Democracies, they are similarly and equally futile. Divided authority is divided responsibility.

Restraint of the power to do evil is restraint of the power to do good. Under the “one-man power” (a name, by the way, that our good forefathers singularly chose to give to the rule of the British ministry and parliament) it is at least known who is to blame for sins of administration, and to whom is due the credit for what is creditable. The autocrat can not hide behind his own back.

In all the various and vain experiments in government the one cause of failure is eternally manifest; the general moral and intellectual delinquency that makes government necessary—the folly and depravity of human nature.

Do the socialists think that they can alter that?—do they believe that after all these centuries of thought and experiment in government in all possible conditions, it has remained for them to devise a system powerful to chain or persuasive to charm the hitherto indomitable and vigilant selfishness to which, despite its ghastly perversions, the race owes its continued existence? Do they believe that under Socialism the laws will execute themselves without human agency; that less than to-day the state will require a vast and complex administration, with the same and greater temptations and opportunities to ambition and cupidity?

Under any conceivable system the cleverest, most enterprising and least scrupulous men will be at the head of affairs, and they will not be there “for their health.” You cannot keep them down, and you cannot keep the others up. If the socialist thinks that can be done, he must hold in hope a better kind of ballot than the kind that works him present woe, or a brand-new infallibility for its casting.

VIII

A government that does not protect life is a flat failure, no matter what else it may do. Life being almost universally regarded as the most precious possession, its security is the first and highest essential—not the life of him who takes life, but the life which is exposed defenceless to his hateful hand. In no country in the world, civilized or savage, is life so insecure as in this. In no country in the world is murder held in so light reprobation. In no battle of modern times have so many lives been taken as are lost annually in the United States through public indifference to the crime of homicide—

through disregard of law, through bad government. If American self-government with its ten thousand homicides a year is good government there is no such thing as bad. Self-government? What monstrous nonsense! Who governs himself needs no government, has no governor, is not governed. If government has any meaning it means the restraint of the many by the few—the subordination of numbers to brains. It means denial to the masses of the right to cut their own throats and ours. It means grasp and control of all social forces and material enginery—a vigilant censorship of the press, a firm hand upon the churches, keen supervision of public meetings and public amusements, command of the railroads, telegraph and all means of communication. It means, in short, ability to make use of all beneficent influences of enlightenment for the general good, and to array all the powers of civilization against civilization's natural enemies—"the masses." Government like this has a thousand defects, but it has one merit: it is government.

Despotism? Yes. It is the despotisms of the world that have been the conservators of civilization. It is the despot who, most powerful for mischief, is alone powerful for good. It is conceded that government is necessary—even by the "fierce democracies" that madly renounce it. But in so far as government is not despotic it is not government. In Europe for the last one hundred years, the trend of government has been toward liberalization. Sovereign after sovereign has surrendered prerogative after prerogative; the nobility, privilege after privilege. Mark the result: society honeycombed with treason; property menaced with partition; assassination studied as a science and practiced as an art; everywhere powerful secret organizations sworn to demolish the social fabric that the slow centuries have but just erected, and unmindful that themselves will perish in the wreck. No heart can beat tranquilly under clean linen. Such is the gratitude, such is the wisdom, such the virtue of "The Masses."

That ancient and various device, "a republican form of government," appears to be too good for all the peoples of the earth excepting one. It is partly successful in Switzerland; in France and America, where the majority is composed of persons having dark understandings and criminal instincts, it has broken down. In our case, as in every case, the momentum of successful revolution carried us too far. We rebelled against tyranny and having overthrown it, overthrew also the governmental form in which it had

happened to be manifest. In their anger and their triumph our good grandfathers acted somewhat in the spirit of the Irishman who cudgeled the dead snake until nothing of it was left, in order to make it “sinsible of its destruction.” They meant it all, too, honest souls! For a long time after the setting up of the republic the republic meant active hatred to kings, nobles, aristocracies. It was held, and rightly held, that a nobleman could not breathe in America—that he left his title and his privileges on the ship that brought him over. Do we observe anything of that in this generation? On the landing of a foreign king, prince or nobleman—even a miserable “knight”—do we not execute sycophantic genuflexions? Are not our newspapers full of flamboyant descriptions and qualming adulation? Nay, does not our president himself—successor to Washington and Jefferson!—greet and entertain the “nation’s guest”? Is not the American young woman crazy to mate with a male of title? Does all this represent no retrogression?—is it not the backward movement of the shadow on the dial? Doubtless the republican idea has struck strong roots into the soil of the two Americas, but he who rightly considers the tendencies of events, the causes that bring them about and the consequences that flow from them, will not be hot to affirm the perpetuity of republican institutions in the Western Hemisphere. Between their inception and their present stage of development there is scarcely the beat of a pendulum; and already, by corruption and lawlessness, the people of both continents, with all their diversities of race and character, have shown themselves about equally unfit. To become a nation of scoundrels all that any people needs is opportunity; and what we are pleased to call by the impossible name of “self-government” supplies it.

The capital defect of republican government is inability to repress internal forces tending to disintegration. It does not take long for a “self-governed” people to learn that it is not really governed—that an agreement enforceable by nobody but the parties to it is not binding. We are learning this very rapidly: we set aside our laws whenever we please. The sovereign power—the tribunal of ultimate jurisdiction—is a mob. If the mob is large enough (it need not be very large), even if composed of vicious tramps, it may do as it will. It may destroy property and life. It may without proof of guilt inflict upon individuals torments unthinkable by fire and flaying, mutilations that are nameless. It may call men, women and children from their beds and beat them to death with cudgels. In the light of day it may assail the very strongholds of law in the heart of a populous city, and

assassinate prisoners of whose guilt it knows nothing. And these things—observe, O victims of kings—are habitually done. One would as well be at the mercy of one's sovereign as of one's neighbor.

The anarchist himself is persuaded of the superiority of our plan of dealing with him; he likes it and “comes over” in quantity, impesting the political atmosphere with the “sweltered venom” engendered by centuries of “oppression”—comes over here, where he is not oppressed, and sets up as oppressor. His preferred field of malefaction is the country that is most nearly anarchical. He comes here, partly to better himself under our milder institutions, partly to secure immunity while conspiring to destroy them. There is thunder in Europe, but if the storm ever break it is in America that the lightning will first fall. Here is a great vortex into which the decivilizing agencies are pouring without obstruction. Here gather the eagles to the feast, for the quarry is defenceless. Here is no power in government, no government. Here an enemy of order is thought to be the least dangerous when most free. And here is nothing between him and his task of subversion—no pampered soldiery to repress his rising, no iron authority to lay him by the heels. The militia is fraternal, the magistracy elective. Europe may hold out a little longer. The great powers may make what stage-play they will, but they are not maintaining their incalculable armaments solely for aggression upon one another and protection from one another, nor for fun. These vast forces are mainly constabular—creatures and creators of discontent—phenomena of decivilization. Eventually they will fraternize with Disorder or become themselves Praetorian Guards more dangerous than the perils that have called them into existence.

It is easy to forecast the first stages of the End's approach: Rioting. Disaffection of constabulary and troops. Subversion of the Government. A policy of decapitation. Parliament of the people. Divided counsels. Pandemonium. The man on horseback. Gusts of grape. ——?

The gods kept their secrets by telling them to Cassandra, whom nobody believed. I am entrusted with the secret that the shadow on the dial of civilization is moving backward. Believe or disbelieve—what matter? Revelers with wine-dipped wreaths upon their heads do not care to know the hour. Yet there are signs and portents—whispers and cries in the air; stealthy tread of invisible feet along the ground; sudden clamor of startled fowls at dead o' the night; crimson dew-drops on the roadside grass of a

morning. But pray do not disturb yourselves: eat, drink and be merry, for tomorrow comes Logical Democracy.

CIVILIZATION

I

THE question “Does civilization civilize?” is a fine example of *petitio principii*, and decides itself in the affirmative; for civilization must needs do that from the doing of which it has its name. But it is not necessary to suppose that he who propounds is either unconscious of his lapse in logic or desirous of digging a pitfall for the feet of those who discuss; I take it he simply wishes to put the matter in an impressive way, and relies upon a certain degree of intelligence in the interpretation.

Concerning uncivilized peoples we know but little except what we are told by travelers—who, speaking generally, can know very little but the fact of uncivilization, as shown in externals and irrelevances, and are moreover, greatly given to lying. From the savages we hear very little. Judging them in all things by our own standards in default of a knowledge of theirs, we necessarily condemn, disparage and belittle. One thing that civilization certainly has not done is to make us intelligent enough to understand that the contrary of a virtue is not necessarily a vice. Because, as a rule, we have but one wife and several mistresses each it is not certain that polygamy is everywhere—nor, for that matter, anywhere—either wrong or inexpedient. Because the brutality of the civilized slave owners and dealers created a conquering sentiment against slavery it is not intelligent to assume that slavery is a maleficent thing amongst Oriental peoples (for example) where the slave is not oppressed. Some of these same Orientals whom we are pleased to term half-civilized have no regard for truth. “Takest thou me for a Christian dog,” said one of them, “that I should be the slave of my word?” So far as I can perceive, the “Christian dog” is no more the slave of his word than the True Believer, and I think the savage—allowing for the fact that his inveracity has dominion over fewer things—as great a liar as either of them. For my part, I do not know what, in all circumstances, is right or wrong; but I know that, if right, it is at least stupid, to judge an uncivilized people by the standards of morality and intelligence set up by civilized ones. Life in civilized countries is so complex that men there have more

ways to be good than savages have, and more to be bad; more to be happy, and more to be miserable. And in each way to be good or bad, their generally superior knowledge—their knowledge of more things—enables them to commit greater excesses than the savage can. The civilized philanthropist wreaks upon his fellows a ranker philanthropy, the civilized rascal a sturdier rascality. And—splendid triumph of enlightenment!—the two characters are, in civilization, frequently combined in one person.

I know of no savage custom or habit of thought which has not its mate in civilized countries. For every mischievous or absurd practice of the natural man I can name you one of ours that is essentially the same. And nearly every custom of our barbarian ancestors in historic times persists in some form to-day. We make ourselves look formidable in battle—for that matter, we fight. Our women paint their faces. We feel it obligatory to dress more or less alike, inventing the most ingenious reasons for doing so and actually despising and persecuting those who do not care to conform. Almost within the memory of living persons bearded men were stoned in the streets; and a clergyman in New York who wore his beard as Christ wore his, was put into jail and variously persecuted till he died.

Civilization does not, I think, make the race any better. It makes men know more: and if knowledge makes them happy it is useful and desirable. The one purpose of every sane human being is to be happy. No one can have any other motive than that. There is no such thing as unselfishness. We perform the most “generous” and “self-sacrificing” acts because we should be unhappy if we did not. We move on lines of least reluctance. Whatever tends to increase the beggarly sum of human happiness is worth having; nothing else has any value.

The cant of civilization fatigues. Civilization is a fine and beautiful structure. It is as picturesque as a Gothic cathedral, but it is built upon the bones and cemented with the blood of those whose part in all its pomp is that and nothing more. It cannot be reared in the ungenerous tropics, for there the people will not contribute their blood and bones. The proposition that the average American workingman or European peasant is “better off” than the South Sea islander, lolling under a palm and drunk with overeating, will not bear a moment’s examination. It is we scholars and gentlemen that are better off.

It is admitted that the South Sea islander in a state of nature is overmuch addicted to the practice of eating human flesh; but concerning that I submit: first, that he likes it; second, that those who supply it are mostly dead. It is upon his enemies that he feeds, and these he would kill anyhow, as we do ours. In civilized, enlightened and Christian countries, where cannibalism has not yet established itself, wars are as frequent and destructive as among the man-eaters. The untitled savage knows at least why he goes killing, whereas our private soldier is commonly in black ignorance of the apparent cause of quarrel—of the actual cause, always. Their shares in the fruits of victory are about equal, for the chief takes all the dead, the general all the glory.

II

Transplanted institutions grow slowly; civilization can not be put into a ship and carried across an ocean. The history of this country is a sequence of illustrations of these truths. It was settled by civilized men and women from civilized countries, yet after two and a half centuries, with unbroken communication with the mother systems, it is still imperfectly civilized. In learning and letters, in art and the science of government, America is but a faint and stammering echo of Europe.

For nearly all that is good in our American civilization we are indebted to the Old World; the errors and mischiefs are of our own creation. We have originated little, because there is little to originate, but we have unconsciously reproduced many of the discredited systems of former ages and other countries—receiving them at second hand, but making them ours by the sheer strength and immobility of the national belief in their novelty. Novelty! Why, it is not possible to make an experiment in government, in art, in literature, in sociology, or in morals, that has not been made over, and over, and over again.

The glories of England are our glories. She can achieve nothing that our fathers did not help to make possible to her. The learning, the power, the refinement of a great nation, are not the growth of a century, but of many centuries; each generation builds upon the work of the preceding. For untold ages our ancestors wrought to rear that “reverend pile,” the civilization of England. And shall we now try to belittle the mighty structure because other though kindred hands are laying the top courses

while we have elected to found a new tower in another land? The American eulogist of civilization who is not proud of his heritage in England's glory is unworthy to enjoy his lesser heritage in the lesser glory of his own country.

The English are undoubtedly our intellectual superiors; and as the virtues are solely the product of intelligence and cultivation—a rogue being only a dunce considered from another point of view—they are our moral superiors likewise. Why should they not be? Theirs is a land, not of ugly schoolhouses grudgingly erected, containing schools supported by such niggardly tax levies as a sparse and hard-handed population will consent to pay, but of ancient institutions splendidly endowed by the state and by centuries of private benefaction. As a means of dispensing formulated ignorance our boasted public school system is not without merit; it spreads out education sufficiently thin to give everyone enough to make him a more competent fool than he would have been without it; but to compare it with that which is not the creature of legislation acting with malice aforethought, but the unnoted outgrowth of ages, is to be ridiculous. It is like comparing the laid-out town of a western prairie, its right-angled streets, prim cottages, and wooden a-b-c shops, with the grand old town of Oxford, topped with the clustered domes and towers of its twenty-odd great colleges, the very names of many of whose founders have perished from human record, as have the chronicles of the times in which they lived.

It is not only that we have had to “subdue the wilderness;” our educational conditions are adverse otherwise. Our political system is unfavorable. Our fortunes, accumulated in one generation, are dispersed in the next. If it takes three generations to make a gentleman one will not make a thinker. Instruction is acquired, but capacity for instruction is transmitted. The brain that is to contain a trained intellect is not the result of a haphazard marriage between a clown and a wench, nor does it get its tractable tissues from a hard-headed farmer and a soft-headed milliner. If you confess the importance of race and pedigree in a horse and a dog how dare you deny it in a man?

I do not hold that the political and social system that creates an aristocracy of leisure is the best possible kind of human organization; I perceive its disadvantages clearly enough. But I do hold that a system under which most important public trusts, political and professional, civil and military, ecclesiastical and secular, are held by educated men—that is, men

of trained faculties and disciplined judgment—is not an altogether faulty system.

It is a universal human weakness to disparage the knowledge that we do not ourselves possess, but it is only my own beloved country that can justly boast herself the last refuge and asylum of the impotents and incapables who deny the advantage of all knowledge whatsoever. It was an American senator who declared that he had devoted a couple of weeks to the study of finance, and found the accepted authorities all wrong. It was another American senator who, confronted with certain hostile facts in the history of another country, proposed “to brush away all facts, and argue the question on considerations of plain common sense.”

Republican institutions have this disadvantage: by incessant changes in the *personnel* of government—to say nothing of the manner of men that ignorant constituencies elect; and all constituencies are ignorant—we attain to no fixed principles and standards. There is no such thing here as a science of politics, because it is not to any one’s interest to make politics the study of his life. Nothing is settled; no truth finds general acceptance. What we do one year we undo the next, and do over again the year following. Our energy is wasted in, and our prosperity suffers from, experiments endlessly repeated.

Every patriot believes his country better than any other country. Now, they cannot all be the best; indeed, only one can be the best, and it follows that the patriots of all the others have suffered themselves to be misled by a mere sentiment into blind unreason. In its active manifestation—it is fond of killing—patriotism would be well enough if it were simply defensive; but it is also aggressive, and the same feeling that prompts us to strike for our altars and our fires impels us over the border to quench the fires and overturn the altars of our neighbors. It is all very pretty and spirited, what the poets tell us about Thermopylæ, but there was as much patriotism at one end of that pass as there was at the other.

Patriotism deliberately and with folly aforethought subordinates the interests of a whole to the interests of a part. Worse still, the fraction so favored is determined by an accident of birth or residence. The Western hoodlum who cuts the tail from a Chinaman’s nowl, and would cut the nowl from the body if he dared, is simply a patriot with a logical mind, having

the courage of his opinions. Patriotism is fierce as a fever, pitiless as the grave and blind as a stone.

III

There are two ways of clarifying liquids—ebullition and precipitation; one forces the impurities to the surface as scum, the other sends them to the bottom as dregs. The former is the more offensive, and that seems to be our way; but neither is useful if the impurities are merely separated but not removed. We are told with tiresome iteration that our social and political systems are clarifying; but when is the skimmer to appear? If the purpose of free institutions is good government where is the good government?—when may it be expected to begin?—how is it to come about? Systems of government have no sanctity; they are practical means to a simple end—the public welfare; worthy of no respect if they fail of its accomplishment. The tree is known by its fruit. Ours is bearing crab-apples. If the body politic is constitutionally diseased, as I verily believe; if the disorder inheres in the system; there is no remedy. The fever must burn itself out, and then Nature will do the rest. One does not prescribe what time alone can administer. We have put our criminals and dunces into power; do we suppose they will efface themselves? Will they restore to *us* the power of governing *them*? They must have their way and go their length. The natural and immemorial sequence is: tyranny, insurrection, combat. In combat everything that wears a sword has a chance—even the right. History does not forbid us to hope. But it forbids us to rely upon numbers; they will be against us. If history teaches anything worth learning it teaches that the majority of mankind is neither good nor wise. When government is founded upon the public conscience and the public intelligence the stability of states is a dream.

In that moment of time that is covered by historical records we have abundant evidence that each generation has believed itself wiser and better than any of its predecessors; that each people has believed itself to have the secret of national perpetuity. In support of this universal delusion there is nothing to be said; the desolate places of the earth cry out against it. Vestiges of obliterated civilizations cover the earth; no savage but has camped upon the sites of proud and populous cities; no desert but has heard the statesman's boast of national stability. Our nation, our laws, our history

—all shall go down to everlasting oblivion with the others, and by the same road. But I submit that we are traveling it with needless haste.

It can be spared—this Jonah’s-gourd civilization of ours. We have hardly the rudiments of a true one; compared with the splendors of which we catch dim glimpses in the fading past, ours are as an illumination of tallow candles. We know no more than the ancients; we only know other things, but nothing in which is an assurance of perpetuity, and little that is truly wisdom. Our vaunted *elixir vitæ* is the art of printing. What good will that do when posterity, struck by the inevitable intellectual blight, shall have ceased to read what is printed? Our libraries will become its stables, our books its fuel.

Ours is a civilization that might be heard from afar in space as a scolding and a riot; a civilization in which the race has so differentiated as to have no longer a community of interest and feeling; which shows as a ripe result of the principles underlying it a reasonless and rascally feud between rich and poor; in which one is offered a choice (if one have the means to take it) between American plutocracy and European militocracy, with an imminent chance of renouncing either for a stultocratic republic with a headsman in the presidential chair and every laundress in exile.

I have not a “solution” to the “labor problem.” I have only a story. Many and many years ago lived a man who was so good and wise that none in all the world was so good and wise as he. He was one of those few whose goodness and wisdom are such that after some time has passed their foolish fellowmen begin to think them gods and treasure their words as divine law; and by millions they are worshiped through centuries of time. Amongst the utterances of this man was one command—not a new nor perfect one—which has seemed to his adorers so preëminently wise that they have given it a name by which it is known over half the world. One of the sovereign virtues of this famous law is its simplicity, which is such that all hearing must understand; and obedience is so easy that any nation refusing is unfit to exist except in the turbulence and adversity that will surely come to it. When a people would avert want and strife, or, having them, would restore plenty and peace, this noble commandment offers the only means—all other plans for safety or relief are as vain as dreams, as empty as the crooning of hags. And behold, here it is: “All things whatsoever ye would that men should do to you, do ye even so to them.”

What! you unappeasable rich, coining the sweat and blood of your workmen into drachmas, understanding the law of supply and demand as mandatory and justifying your cruel greed by the senseless dictum that “business is business;” you lazy workmen, railing at the capitalist by whose desertion, when you have frightened away his capital, you starve—rioting and shedding blood and torturing and poisoning by way of answer to exaction and by way of exaction; you foul anarchists, applauding with untidy palms when one of your coward kind hurls a bomb amongst powerless and helpless women and children; you imbecile politicians with a plague of remedial legislation for the irremediable; you writers and thinkers unread in history, with as many “solutions to the labor problem” as there are among you those who can not coherently define it—do you really think yourselves wiser than Jesus of Nazareth? Do you seriously suppose yourselves competent to amend his plan for dealing with evils besetting nations and souls? Have you the effrontery to believe that those who spurn his Golden Rule you can bind to obedience of an act entitled an act to amend an act? Bah! you fatigue the spirit. Go get ye to your scoundrel lockouts, your villain strikes, your blacklisting, your boycotting, your speeching, marching and maundering; but if ye do not to others as ye would that they do to you it shall occur, and that right soon, that ye be drowned in your own blood and your pickpocket civilization quenched as a star that falls into the sea.

THE GAME OF POLITICS

I

IF ONE were to declare himself a Democrat or a Republican and the claim should be contested he would find it a difficult one to prove. The missing link in his chain of evidence would be the major premise in the syllogism necessary to the establishment of his political status—a definition of “Democrat” or “Republican.” Most of the statesmen in public and private life who are poll-parroting these words, do so with entire unconsciousness of their meaning, or rather without knowledge that they have lost whatever meaning they once had. The words are mere “survivals,” marking dead issues and covering present allegiances of the loosest character. On any question of importance each party is divided against itself and dares not formulate a preference. There is no question before the country upon which one may not think and vote as he likes without seriously affecting his standing in the denomination of political saints of which he professes himself a member. “Party lines” are as terribly confused as parallels of latitude and longitude after a twisting earthquake, or those aimless lines representing competing railroads on a map published by a company operating “the only direct route.” It is not probable that this state of things can last; if there is to be “government by party”—and we should be sad to think that so inestimable a boon were soon to return to Him who gave it—men must begin to let their angry passions rise and take sides. “Ill fares the land to hastening ills a prey,” where the people are too wise to dispute and too good to fight. Let us have the good old political currency of bloody noses and cracked crowns; let the yawp of the demagogue be heard in the land; let ears be pestered with the spargent cheers of the masses. Give us a whoop-up that shall rouse us like a rattling peal of thunder! Will nobody be our Moses—there should be two Moseses—to lead us through this detestable wilderness of political stagnation?

II

Nowhere is so much insufferable stuff talked in a given period of time as in an American political convention. It is there that all those objectionable elements of the national character which evoke the laughter of Europe and are the despair of our friends find freest expression, unhampered by fear of any censorship more exacting than that of “the opposing party”—which takes no account of intellectual delinquencies, but only of moral. The “organs” of the “opposing party” will not take the trouble to point out—even to observe—that the “debasing sentiments” and “criminal views” uttered in speech and platform are expressed in sickening syntax and offensive rhetoric. Doubtless an American politician, statesman, what you will, could go into a political convention and signify his views with simple, unpretentious common sense, but doubtless he never does.

Every community is cursed with a number of “orators”—men regarded as “eloquent”—“silver tongued” men—fellows who to the common American knack at brandishing the tongue add an exceptional felicity of platitude, a captivating mastery of dog’s-eared sentiment, a copious and obedient vocabulary of eulogium, an iron insensibility to the ridiculous and an infinite affinity to fools. These afflicting Chrysostoms are always lying in wait for an “occasion.” It matters not what it is: a “reception” to some great man from abroad, a popular ceremony like the laying of a cornerstone, the opening of a fair, the dedication of a public building, an anniversary banquet of an ancient and honorable order (they all belong to ancient and honorable orders) or a club dinner—they all belong to clubs and owe dues. But it is in a political convention that they come out particularly strong. By some imperious tradition having the force of unwritten law it is decreed that in these absurd bodies of our fellow citizens no word of sense shall be uttered from the platform; whatever is uttered in set speeches shall be addressed to the meanest capacity present. As a chain can be no stronger than its weakest link, so nothing said by the speakers at a political convention must be above the intellectual reach of the most pernicious idiot having a seat and a vote. I don’t know why it is so. It seems to be thought that if he is not suitably entertained he will not attend the next convention.

Here are the opening sentences of the speech in which a man was recently nominated for governor:

“Two years ago the Republican party in state and nation marched to imperial triumph. On every hilltop and mountain peak our beacons blazed

and we awakened the echoes of every valley with songs of our rejoicings.”

And so forth. Now, if I were asked to recast these sentences so that they should conform to the simple truth and be inoffensive to good taste I should say something like this:

“Two years ago the Republican party won a general election.”

If there is any thing in this inflated rigmarole that is not adequately expressed in my amended statement, what is it? As to eloquence, it will hardly be argued that nonsense, falsehood and metaphors which were old when Rome was young are essential to that. The first man (in early Greece) who spoke of awakening an echo did a felicitous thing. Was it felicitous in the second? Is it felicitous now? As to that military metaphor—the “marching” and so forth—its inventor was as great a fool as any one of the incalculable multitude of his plagiarists.

In withdrawing his own name from before a convention, a Californian politician once made a purely military speech of which a single sample passage is all that I shall allow myself the happiness to quote:

“I come before you to-day as a Republican of the Republican banner county of this great state of ours. From snowy Shasta on the north to sunny San Diego on the south; from the west, where the waves of the Pacific look upon our shores, to where the barriers of the great Sierras stand clad in eternal snow, there is no more loyal county to the Republican party in this state than the county from which I hail. Its loyalty to the party has been tested on many fields of battle and it has never wavered in the contest. Wherever the fate of battle was trembling in the balance Alameda county stepped into the breach and rescued the Republican party from defeat.”

Translated into English, this military mouthing would read somewhat like this:

“I live in Alameda county, where the Republicans have uniformly outvoted the Democrats.”

The orators at the Democratic convention a week earlier had been no better and no different. Their rhetorical stock-in-trade was the same old shop-worn figures of speech in which their predecessors have dealt for ages, and in which their successors will traffic to the end of—well, to the

end of that imitative quality in the national character, which, by its superior intensity, serves to distinguish us from the apes that perish.

III

“What we most need, to secure honest elections,” says a well-meaning reformer, “is the voting machine.” Why, truly, here is a hopeful spirit—a rare and radiant intelligence suffused with the conviction that men can be made honest by machinery—that human character is a matter of gearing, ratchets and dials! One would give something to know how it feels to be like that. A mind so constituted must be happy in its hope. It lives in rapturous contemplation of a world of its own creation—a world where public morality and political good order are to be had by purchase at the machine-shop. In that delectable world, religion is superfluous; the true high priest is the mechanical engineer; the minor clergy are the village blacksmiths. It is rather a pity that so fine and fair a sphere should swim only in the attenuated ether of a simpleton’s misunderstanding.

The voting-machines are doubtless well enough; they save labor and enable the statesmen of the street to know the result within a few minutes of the closing of the polls—whereby many are spared to their country who would otherwise incur fatal disorders by exposure to the night air while assisting in awaiting the returns. But a voting-machine that human ingenuity can not pervert, human ingenuity can not invent. Honesty has no monopoly of inspiration.

That is true, too, of laws. Your statesman of a mental stature somewhat overtopping that of the machine-person puts his faith in law. Providence has deigned to permit him to be persuaded of the efficacy of statutes—good, stringent, carefully drawn statutes annulling all the laws of nature in conflict with any of their provisions. So the poor devil (I am writing of Mr. Legion) turns for relief from law to law, ever on the rocks of repentance, yet ever unfouling the anchor of hope. By no power on earth can his indurated understanding be penetrated by the truth that his woful state is due, not to any laws of his own, nor to any lack of them, but to his rascally refusal to obey the Golden Rule. How long is it since we were all clamoring for the Australian ballot law, which was to make a new Heaven and a new earth? We have the Australian ballot law and the same old earth smelling to the same old Heaven. Writhe upon the triangle as we may, groan out what new

laws we will, the pitiless thong will fall upon our bleeding backs as long as we deserve it. If our sins, which are scarlet, are to be washed as white as wool it must be in the tears of a genuine contrition: our crocodile deliverances will profit us nothing. We must stop chasing dollars, stop lying, stop cheating, stop ignoring art, literature and all the refining agencies and instrumentalities of civilization. We must subdue our detestable habit of shaking hands with prosperous rascals and fawning upon the merely rich. It is not permitted to our employers to plead in justification of low wages the law of supply and demand when it is giving them high profits. It is not permitted to discontented employees to break the bones of contented ones and destroy the foundations of social order. It is dishonest to look upon public office with the lust of possession; it is disgraceful to solicit political preferment, to strive and compete for “honors” that are sullied and tarnished by the touch of the reaching hand. Until we amend our personal characters we shall amend our laws in vain. Though Paul plant and Apollos water, the field of reform will grow nothing but the figless thistle and the grapeless thorn.

The state is an aggregation of individuals. Its public character is the expression of their personal ones. By no political prestidigitation can it be made better and wiser than the sum of their goodness and wisdom. To expect that men who do not honorably and intelligently conduct their private affairs will honorably and intelligently conduct the affairs of the community is to be a fool. We are told that out of nothing God made the heavens and the earth; but out of nothing God never did, and man never can, make a public sense of honor and a public conscience. Miracles are now performed on only one day of the year—the twenty-ninth of February; and in leap years God is forbidden to perform them.

IV

Ye who hold that the power of eloquence is a thing of the past and the orator an anachronism; who believe that the trend of political events and the results of parliamentary action are determined by committees in cold consultation and the machinations of programmers in holes and corners, consider the ascension of Bryan and be wise. A week before the convention of 1896 William J. Bryan had never heard of himself; upon his natural obscurity was superposed the opacity of a congressional service that effaced

him from the memory of even his faithful dog, and made him immune to dunning. A week afterward he was pinnacled upon the summit of the tallest political distinction, gasping in the thin atmosphere of his unfamiliar environment and fitly astonished by the mischance. To the dizzy elevation of his candidacy he was hoisted out of the shadow by his own tongue, the longest and liveliest in Christendom. Had he held it—which he could not have done with a blacksmith's tongs—there had been no Bryan. His creation was the unstudied act of his own larynx; it said, "Let there be Bryan," and there was Bryan. Even in these degenerate days there is a hope for the orators when one can make himself a presidential peril by merely waving the red flag in the cave of the winds and tormenting the circumjacence with a brandish of abundant hands.

To be quite honest, I do not entirely believe that Orator Bryan's tongue had everything to do with it. I have long been convinced that personal persuasion is a matter of animal magnetism—what in its more obvious manifestation we now call hypnotism. At the back of the words and the postures, and independent of them, is that secret, mysterious power, addressing, not the ear, not the eye, nor, through them, the understanding, but, through its kindred quality in the auditor, captivating the will and enslaving it. That is how persuasion is effected; the spoken words merely supply a pretext for surrender. They enable us to yield without loss of our self-esteem, in the delusion that we are conceding to reason what is really extorted by control. The words are necessary, too, to point out what the orator wishes us to think, if we are not already apprised of it. When the nature of his power is better understood and frankly recognized, he can spare himself the toil of talking. The parliamentary debate of the future will probably be conducted in silence, and with only such gestures as go by the name of "passes." The chairman will state the question before the house and the side, affirmative or negative, to be taken by the honorable member entitled to the floor. That gentleman will rise, train his compelling orbs upon the miscreants in opposition, execute a few passes and exhaust his allotted time in looking at them. He will then yield to an honorable member of dissenting views. The preponderance in magnetic power and hypnotic skill will be manifest in the voting.

The advantages of the method are as plain as the nose on an elephant's face. The "arena" will no longer "ring" with anybody's "rousing speech," to

the irritating abridgment of the unalienable right to the pursuit of sleep. Honorable members will lack provocation to hurl allegations and cuspidors. Pitchforking statesmen and tosspot reformers will be unable to play at pitch-and-toss with reputations not submitted for the performance. In short, the congenial asperities of debate will be so mitigated that the honorable member from Hades will retire permanently from the hauls of legislation.

V

“Public opinion,” says Buckle, “being the voice of the average man, is the voice of mediocrity.” Is it therefore so very wise and infallible a guide as to be accepted without other credentials than its name and fame? Ought we to follow its light and leading with no better assurance of the character of its authority than a count of noses of those following it already, and with no inquiry as to whether it has not on many former occasions led them and their several sets of predecessors into bogs of error and over precipices to “eternal mock?” Surely “the average man,” as every one knows him, is not very wise, not very learned, not very good; how is it that his views of so intricate and difficult matters as those on which public opinion makes pronouncement through him are entitled to so great respect? It seems to me that the average man is very much a fool, and something of a rogue as well. He has only a smattering of education, knows virtually nothing of political history, nor history of any kind, is incapable of logical, that is to say clear, thinking, is subject to the suasion of base and silly prejudices, and selfish beyond expression. That such a person’s opinions should be so obviously better than my own that I should accept them instead, and assist in enacting them into laws, appears to me most improbable. I may “bow to the will of the people” as gracefully as a defeated candidate, and for the same reason, namely, that I can not help myself; but to admit that I was wrong in my belief and flatter the power that subdues me—no, that I will not do. If nobody would do so the average man would not be so cock-sure of his infallibility, and might sometimes consent to be counseled by his betters.

In any matter of which the public has imperfect knowledge, public opinion is as likely to be erroneous as is the opinion of an individual equally uninformed. To hold otherwise is to hold that wisdom can be got by combining many ignorances. A man who knows nothing of algebra can not be assisted in the solution of an algebraic problem by calling in a neighbor

who knows no more than himself, and the solution approved by the unanimous vote of a million such men would count for nothing against that of a competent mathematician. To be entirely consistent, gentlemen enamored of public opinion should insist that the text books of our common schools should be the creation of a mass meeting, and all disagreements arising in the course of the work settled by a majority vote. That is how all difficulties incident to the popular translation of the Hebrew Scriptures were composed. It should be admitted, however, that most of those voting knew a little Hebrew, though not much. A problem in mathematics is a very simple thing compared with many of those upon which the people are called to pronounce by resolution and ballot—for example, a question of finance.

“The voice of the people is the voice of God”—the saying is so respectably old that it comes to us in the Latin. He is a strange, an unearthly, politician who has not a score of times publicly and solemnly signified his faith in it. But does anyone really believe it? Let us see. In the period between 1859 and 1885, the national Democratic party was defeated six times in succession. The voice of the people pronounced it in error and unfit to govern. Yet after each overthrow it came back into the field gravely reaffirming its faith in the principles that God had condemned. Then God twice reversed Himself, and the Republicans set about beating Him with as firm a confidence of success (justified by the event) as they had known in the years of their prosperity. Doubtless in every instance of a political party’s defeat there are defections, but doubtless not all are due to the voice that spoke out of the great white light that fell about Saul of Tarsus. By the way, it is worth observing that that clever gentleman was under no illusion regarding the origin of the voice that wrought his celebrated “flop;” he did not confound it with the *vox populi*. The people of his time and place had no objection to the persecution that he was conducting, and could persecute a trifle themselves on occasion.

Majorities rule, when they do rule, not because they ought, but because they can. We vote in order to learn without fighting which party is the stronger; it is less disagreeable to learn it that way than the other way. Sometimes the party that is numerically the weaker is by possession of the government actually the stronger, and could maintain itself in power by an appeal to arms, but the habit of submitting when outvoted is hard to break. Moreover, we all recognize in a subconscious way, the reasonableness of

the habit as a practical method of getting on; and there is always the confident hope of success in the next canvass. That one's cause will succeed because it ought to succeed is perhaps the most general and invincible folly affecting the human judgment. Observation can not shake it, nor experience destroy. Though you bray a partisan in the mortar of adversity till he numbers the strokes of the pestle by the hairs of his head, yet will not this foolish notion depart from him. He is always going to win the next time, however frequently and disastrously he has lost before. And he can always give you the most cogent reasons for the faith that is in him. His chief reliance is on the "fatal mistakes" made by the other party since the last election. There never was a year in which the party in power and the party out of power did not make bad mistakes—mistakes which, unlike eggs and fish, seem always worst when freshest. If idiotic errors of policy were always fatal, no party would ever win an election and there would be a hope of better government under the benign sway of the domestic cow.

VI

Each political party accuses the "opposing candidate" of refusing to answer certain questions which somebody has chosen to ask him. I think myself it is discreditable for a candidate to answer any questions at all, to make speeches, declare his policy, or do anything whatever to get himself elected. If a political party choose to nominate a man so obscure that his character and his views on all public questions are not known or inferable he ought to have the dignity to refuse to expound them. As to the strife for office being a pursuit worthy of a noble ambition, I do not think so; nor shall I believe that many do think so, until the term "office seeker" carries a less opprobrious meaning and the dictum that "the office should seek the man, not the man the office," has a narrower currency among all manner of persons. That by acts and words generally felt to be discreditable a man may evoke great popular enthusiasm is not at all surprising. The late Mr. Barnum was not the first nor the last to observe that the people love to be humbugged. They love an impostor and a scamp, and the best service that you can do for a candidate for high political preferment is to prove him a little better than a thief, but not quite so good as a thug.

VII

The view is often taken that a representative is the same thing as a delegate; that he is to have, and can honestly entertain, no opinion that is at variance with the whims and the caprices of his constituents. This is the very *reductio ad absurdum* of representative government. That it is the dominant theory of the future there can be little doubt, for it is of a piece with the progress downward which is the invariable and unbroken tendency of republican institutions. It fits in well with manhood suffrage, rotation in office, unrestricted patronage, assessment of subordinates, an elective judiciary, the initiative, the referendum, the recall, and the rest of it. This theory of representative institutions is the last and lowest stage in our pleasant performance of “shooting Niagara.” When it shall have universal recognition and assent we shall have been fairly engulfed in the whirlpool, and the buzzard of anarchy may hopefully whet his beak for the national carcass.

A man holding office from and for the people is in conscience and honor bound to do what seems to his judgment best for the general welfare, respectfully regardless of any and all other considerations. This is especially true of legislators, to whom such specific “instructions” as constituents sometimes send are an impertinence and an insult. Pushed to its logical conclusion, the “delegate” policy would remove all necessity of electing men of brains and judgment; one man properly connected with his constituents by telegraph would make as good a legislator as another. Indeed, as a matter of economy, one representative could act for many constituencies, receiving his instructions how to vote from mass meetings in each. This, besides being logical, would have the added advantage of widening and hardening the power of the local “bosses,” who, by properly managing the show of hands could have the same beneficent influence in national affairs that they now enjoy in municipal. The plan would be a pretty good one if there were not so many other ways for the nation to go to the devil that it appears needless.

VIII

The purpose of the legislative custom of “eulogizing” dead members of congress is not apparent unless it is to add a terror to death and make honorable and self-respecting members rather bear the ills they have than escape through the gates of death to others that they profess to know a good

deal about. If a member of that kind, who has had the bad luck to “go before,” could be consulted he would indubitably say that he is sorry to be dead; and that is not a natural frame of mind in one who is exempt from the necessity of himself “delivering a eulogy.”

It may be urged that the congressional “eulogy” expresses in a general way the eulogist’s notion of what he would like to have somebody say of himself when he is by death elected to the Lower House. If so, then Heaven help him to a better taste; but meanwhile it is a patriotic duty to prevent him from indulging at the public expense the taste that he has. There have been a few men in congress who could speak of the character and services of a departed member with truth and even eloquence. Of many others, the most charitable thing that one can conscientiously say is that one would a little rather hear a “eulogy” by them than of them. Considering that there are many kinds of brains and only one kind of no brains, their diversity of gifts is remarkable, but one characteristic they have in common: they are all poets. Their efforts in the way of eulogium illustrate and illuminate Pascal’s obscure saying that poetry is a particular sadness. If not sad themselves, they are at least the cause of sadness in others, for no sooner do they take to their legs to remind us that life is fleeting, and to make us glad that it is, than they burst into bloom as poets all! Some one has said that in the contemplation of death there is something that belittles. Perhaps that explains the transformation. Anyhow the congressional eulogist takes to verse as naturally as a moth to a candle, and with about the same result to his reputation for sense.

The poetry is commonly not his own; when it violates every law of sense, fitness, metre, rhyme and taste it is. But nine times in ten it is some dog’s-eared, shop-worn quotation from one of the “standard” bards, usually Shakspeare. There are familiar passages from that poet which have been so often heard in “the halls of legislation” that they have acquired an infamy which unfits them for publication in a decent family newspaper; and Shakspeare himself, reposing in Elysium on his bed of asphodel, omits them when reading his complete works to the shades of Kit Marlowe and Ben Jonson, for their sins.

This whole “business” ought to be “cut out.” It is not only a waste of time and a trial to the patience of the country; it is immoral. It is not true that a member of congress, who while living was a most ordinary mortal,

becomes by the accident of death a hero, a saint, “an example to American youth.” Nobody believes these “eulogies,” and nobody should be permitted to utter them in the time and place designated for another purpose. A “tribute” that is exacted by custom and has not the fire and light of spontaneity is without sincerity or sense. A simple resolution of regret and respect is all that the occasion requires and would not inhibit any further utterance that friends and admirers of the deceased might be moved to make elsewhere. If any bereaved gentlemen, feeling his heart getting into his head, wishes to tickle his ear with his tongue by way of standardizing his emotion let him rent a hall and do so. But he should not be permitted to make the capitol a Place of Wailing and the *Congressional Record* a book of bathos.

A POSSIBLE BENEFACTOR

FROM Paris comes the terrible news that M. Verneuil, a chemist, has succeeded in making rubies at no considerable cost. This will doubtless prove a sharp affliction to many persons addicted to display of rubies on their surfaces, as well as to some who have them under lock and key for sale to the others; for of course the value of the natural stones must eventually fall to that of the artificial, if the two kinds are identical in composition, hardness and color. Rubies will perhaps go out of use altogether, for gems accessible to the poor are worthless to the rich, and gems worthless to the rich are not wanted by the poor. The beauty of the ruby will remain, but so will human nature.

Having few rubies and, I trust, not much human nature, I am disposed to regard M. Verneuil's crime as a public benefaction. If he will pursue his experimentation to its "logical conclusion," giving us cheap diamonds, pearls, emeralds, turquoises and the rest, many of us will rise up (from our seats away back) and call him blest.

Victims of the habit of wearing pretty pebbles have always accounted for their affliction by affirming the beauty of the pebbles. If that is why they wear them they will continue to wear them when they are common and cheap—when M. Verneuil and his anarchist co-workers in the laboratory have put them "within the reach of all." Does any one believe that they will? Why do they not now wear (and confess it) the paste jewels that are every bit as beautiful as the genuine? Why would the "society woman" consider herself dishonored if caught red-handed in a necklace of wax beads distinguishable from pearls by the microscope only?

The "preciousness" of these things is their cost. A woman "ablaze with diamonds" is a woman silently shouting: "I am rich!" If her jewels did not say this, and say it plainly, she would throw them into the nearest gutter—nay, her contempt of them might receive such avowal as giving them to the poor.

Lo, the poor Indian whose untutored taste persuades him to personal adornment with porcupine quills, eagle feathers, bear-claws and the tail of a wildcat! They are lovely—no doubt of that—but if porcupines, eagles, bears and wildcats were abundant, accessible and amiable he would make himself a thing of glory and consequence with something less easily acquired. Please to consider the peculiar significance lurking in the good old word “bravery” applied to the fine attire and ornaments of the lowly. Does it not distinctly point to a primitive state when personal adornment was the prize of courage in the chase? “Bravery” is the finery of persons not far removed from a state of nature; our own finery we do not call so, not even in poetry. A fairly good name for it is “pursery.”

In the progress of the race away from primitive conditions and barbaric modes of thought and feeling, the female contingent does not walk at the head of the procession. Women are more “conservative” than men: they are last to renounce the habits and customs of the ancestral savage. Witness their addiction to powder and paint. We have all inherited the tendency to daub our faces, a once useful custom, for by differing designs tribes and families were distinguished from one another at a glance. Attentive to other matters, mostly nonsense and mischief, men have suffered the practice to fall into disuse, but women—whom God bless!—continue it as when frighthood was in flower, accounting for it by hardily affirming its service to the complexion. Let it go at that; that is a better reason than can be urged for defacing the female periphery with pebbles, candidly inutile and in open apostasy to the gospel of Beauty Unadorned. Wherefore, that we may have surcease of the pretty-pebble habit in the otherwise supportable female of our species as she has been handed down to us from her noisy sessions in primeval tree-tops, let us pray for success of M. Verneuil and his accomplices in their hardy effort to discredit and vulgarize the product of gem farm and pearl pool.

1902.

WARLIKE AMERICA

I

IN a speech at Huntsville, Alabama, President McKinley said:

“We are not a military people. We are not dedicated to arms. We love peace, and the United States never goes to war except for peace, and only where it can have it in no other way. We have never gone to war for conquest, for exploitation or for territory, but always for liberty and humanity, and in our recent war with Spain the people of the whole United States as one man marched with the flag for the honor of the nation, to relieve the oppressed people in Cuba.”

The American people are a singularly “cantankerous” people. True we are not “military,” but that was not what the president meant to affirm; he meant that we are not “warlike,” which is a very different thing. The Germans are military, the North American Indians are warlike. To be warlike is to be fond of war; to be military is to cultivate the arts and sciences of war, to make the arts of peace subservient to them, to maintain a powerful standing army, with armaments of high efficiency. A people may be both warlike and military, or it may be either and not the other. The distinction was evidently not in the president’s mind, for he said that we love peace, that we go to war only to assure it, and so forth. What are the facts?

There have been four generations of politically independent Americans. Each of the four fought a war of magnitude, not counting the small affairs and the “continuous performance” against the Indians. There were the war of 1812 against Great Britain, the war against Mexico, the war among ourselves, the war against Spain. We may say that all these were fought to assure peace, and that is true—peace on our terms. No war is undertaken for any other purpose. It was for that that Alexander invaded Asia and Hannibal

Italy. It was for that that the Turks laid siege to Vienna. It was for that that Napoleon overran Europe.

II

It seems that “we have never gone to war for conquest, for exploitation, nor for territory;” we have the word of a president for that. Observe, now, how Providence overrules the intentions of the truly good for their advantage. We went to war with Mexico for peace, humanity and honor, yet emerged from the contest with an extension of territory beyond the dreams of political avarice. We went to war with Spain for relief of an oppressed people, and at the close found ourselves in possession of vast and rich insular dependencies and with a pretty tight grasp upon the country for relief of whose oppressed people we took up arms. We could hardly have profited more had “territorial aggrandizement” been the spirit of our purpose and the heart of our hope.

The slightest acquaintance with history shows that powerful republics are the most warlike and unscrupulous of nations. They insist upon having their own way, and in dealing with vanquished enemies are without conscience. If it were not for the restraints that powerful European sovereigns are able to put upon their subjects, Europe would be a theater of continuous war. We lack that element of restraint. Happily we lack, also, many of the hereditary animosities that inflame the jealous peoples of the Old World; but when the fire is kindled it burns; there is nobody to quench it. We have always a hand upon the sword, and if we do not more frequently strike, it is because, in the first place, it is not much of a sword, and, in the second, the enemy is commonly out of reach. In our navy we have now a sword that is a trifle longer and stronger, but our army is still a dull and clumsy weapon.

In the future, as in the past, we shall have wars and enough of them—wars of honor, wars of conquest, wars of hatred and revenge. War has never found us ready. War has never found any modern nation ready, excepting Prussia, and her only once. If we will learn nothing by experience, let us try observation. Let us cease our hypocritical cant, rise from our dreams of peace and of the love of it, confess ourselves the warlike people that we are, and become the military people that we are not.

III

The notion that a standing army of whatever strength could be a “menace to American liberty” is one of the crudest and most discreditable of errors. It is an outgrowth of ignorance, and rooted in a false analogy. It assumes that the “common people” of the Old World monarchies are oppressed, discontented, ripe for revolt and republican government; that they are held in subjection by the powerful armies that serve their tyrants. Of course all this is mere moonshine, but if true it would hold no such lesson for us as we think we read in it, namely, that all armies are serviceable tools to tyrants and usurpers. A European army, recruited by conscription and officered by noblemen and the sons of relatives of noblemen, is an entirely different thing from what we have, and very different indeed from what we may have if we choose. The monarchical army sustains the monarchy, not because an army is naturally and necessarily monarchist, but because monarchy is the constitutional government; and armies, more generally than other human organizations, are faithful to duty and obedient to law. For the same reasons an American army will sustain the republic. Whenever a monarchical army has *not* sustained the monarchy—has assisted to overthrow it and set up a republic—then, indeed, have we been given a reason to distrust “the military”—of a monarchy.

An army of raw volunteers springing to the colors to meet some unforeseen emergency is an inspiring spectacle, but that kind of army is good for nothing when pitted against trained and seasoned troops. Every military man knows this, although there are no large recent instances free from obscuring elements, like “the war of 1812.”

In European countries that have universal conscription the years that the young men pass in the army are the best spent years of their lives. Those who enter the service as ignorant peasant lads, brutally stupid, leave it well set up in body and mind—with better health, better morals and better intelligence. The American peasant is of course perfect in respect of all that, but perhaps his refining society would be of advantage to his officers.

SOME FEATURES OF THE LAW

I

THERE is a difference between religion and the amazing circumstructure which, under the name of theology, the priesthoods have builded round about it, which for centuries they made the world believe was the true temple, and which, after incalculable mischiefs wrought, immeasurable blood spilled in its extension and consolidation, is only now beginning to crumble at the touch of reason. There is the same difference between the laws and the law,—the naked statutes (bad enough, God knows) and the incomputable additions made to them by lawyers. This immense body of superingenious writings it is that we all are responsible to in person and property. In it is unquestionable authority for setting aside any statute that any legislative body ever passed or can pass. In it are dictates of recognized validity for turning topsy-turvy every principle of justice and reversing every decree of reason. There is no fallacy so monstrous, no deduction so hideously unrelated to common sense, as not to receive, somewhere in the myriad pages of this awful compilation, a support that any judge in the land would be proud to recognize with a decision if ably persuaded. I do not say that the lawyers are altogether accountable for the existence of this mass of disastrous rubbish, nor for its domination of the laws. They only create and thrust it down our throats; we are guilty of contributory negligence in not biting the spoon.

II

As long as there exists the right of appeal there is a chance of acquittal. Otherwise the right of appeal would be a sham and an insult more intolerable, even, than, to the man convicted of murder, the right to say why he should not receive the sentence which nothing he may say will avert. So long as acquittal may ensue guilt is not established. Why, then, are men sentenced before they are proved guilty? Why are they punished in the middle of proceedings against them? A lawyer can reply to these questions in a thousand ingenious ways; but there is no answer. Let the “legal

fraternity” reflect that a lawyer is one whose profession it is to circumvent the law; that it is a part of his business to mislead and befog the court of which he is an officer; that it is considered right and reasonable for him to live by a division of the spoils of crime and misdemeanor; that the utmost atonement he ever makes for acquitting a man whom he knows to be guilty is to convict a man whom he knows to be innocent. The methods of our courts, the traditions of bench and bar, exist and are perpetuated, altered and improved, for the purpose of enabling lawyers as a class to exact the greatest amount of money from the rest of mankind. The laws are mostly made by lawyers, and so made as to encourage and compel litigation. By lawyers they are interpreted and by lawyers enforced for their own profit and advantage. The over-intricate and interminable machinery of precedent, overrulings, writs of error, motions for new trials, appeals, reversals, affirmations and the rest of it, is mostly a transparent and iniquitous system of exaction. What remedy would I propose? None. There is none to propose. The lawyers have us and mean to keep us.

The villainy of making men suffer for crimes of which they may eventually be acquitted is consistent with our entire system of laws—a system so complicated and contradictory that a judge simply does as he pleases, subject only to the custom of giving for his action reasons which at his option may or may not be derived from the statutes. He may sternly affirm that he sits there to interpret the law as he finds it, not to make it accord with his personal notions of right and justice. Or he may declare that it could never have been the legislature’s intention to do wrong, and so, shielded by the useful phrase *contra bonos mores*, pronounce that illegal which he chooses to consider inexpedient. Or he may be guided by either of any two inconsistent precedents, as the better suits his purpose. Or he may throw aside both statute and precedent, disregard good morals, and justify the judgment that he wishes to deliver by what other lawyers have written in books, and still others, without anybody’s authority, have chosen to accept as a part of the law. I have in mind judges whom I have observed to do all these things in a single term of court, and could mention one who has done most of them in a single decision. The amazing feature of the matter is that all these methods are lawful—made so, not by legislative enactment,

but by the judges. Language can not be used with sufficient lucidity and positiveness to bind them.

III

The legal purpose of a preliminary examination is not the discovery of a criminal; it is the ascertaining of the probable guilt or innocence of the person already charged. To permit that person's counsel to insult and madden the various assisting witnesses in the hope of making them seem to incriminate themselves instead of him by statements that may afterward be used to confuse a jury—that is perversion of law to defeat justice. The character of the practice is seen to better advantage contrasted with the tender consideration enjoyed by the person actually accused and presumably guilty—the presumption of his innocence being as futile a fiction as that a sheep's tail is a leg when called so. Actually, the prisoner in a criminal trial is the only person supposed to have full knowledge of the facts who is not compelled to testify. And this exemption is given him by way of immunity from the snares and pitfalls with which the paths of all witnesses are wantonly beset. To a visiting Lunarian it would seem strange indeed that in a Terrestrial court of justice it is not deemed desirable for an accused person to incriminate himself, and that it is deemed desirable for a subpoena to be more dreaded than a warrant.

When a child, a wife, a servant, a student—any one under personal authority—is accused or suspected an explanation is demanded, and refusal to testify is held, and rightly held, a confession of guilt. To question the accused—rigorously and sharply to examine him on all matters relating to the offense, and even trap him if he seem to be lying—that is Nature's method of criminal procedure; why in our public trials do we forego its advantages? It may annoy; a person arrested for crime must expect annoyance. It can not make an innocent man, even a mere witness, incriminate himself, but it can make a rogue do so, and therein lies its value.

This ancient and efficient safeguard to rascality, the right of a witness to refuse to testify when his testimony would tend to convict him of crime, has been strengthened by a recent decision of the United States Supreme Court. That will probably add another century or two to its mischievous existence, and possibly prove the first act in such an extension of it that eventually a witness can not be compelled to testify at all. In fact it is difficult to see

how he can be compelled to now if he has the hardihood to exercise his constitutional right without shame and with an intelligent consciousness of its limitless application.

The case in which the Supreme Court made the decision was one in which a witness refused to say whether he had received from a defendant railway company a rate on grain shipments lower than the rate open to all shippers. The trial was in the United States District Court for the Northern District of Illinois, and Judge Gresham chucked the scoundrel into jail. He naturally applied to the Supreme Court for relief, and that high tribunal gave joy to every known or secret malefactor in the country by deciding—according to law, no doubt—that witnesses in a criminal case can not be compelled to testify to anything that “*might tend* to criminate them *in any way*, or subject them to *possible* prosecution.” The italics are my own and indicate about as clearly as extended comment could the boundless immunity that the decision confirms or confers. It is to be hoped that some public-spirited gentleman called to the stand in some celebrated case may point the country’s attention to the state of the law by refusing to tell his name, age or occupation, or answer any question whatever. And it would be a fitting *finale* to the farce if he would threaten the too curious attorney with an action for damages for compelling a disclosure of character.

IV

Most lawyers have made so profound a study of human nature as to think that if they have shown a man to be of loose life with regard to women they have shown him to be one that would tell needless lies to a jury—a conviction unsupported by the familiar facts of life and character. Different men have different vices, and addiction to one kind of “upsetting sin” does not imply addiction to an unrelated kind. Doubtless a rake is a liar in so far as is needful to concealment, but it does not follow that he will commit perjury to save a horsethief from the penitentiary or send a good man to the gallows. As to lying, generally, he is not conspicuously worse than the mere lover, male or female; for lovers have been liars from the beginning of time. They deceive when it is necessary and when it is not. Schopenhauer would say that it is because of a sense of guilt—they contemplate the commission of a crime and, like other criminals, cover their tracks. I am not prepared to say if that is the true explanation, but to the fact to be explained I am ready

to testify with lifted arms. Yet no cross-examining attorney tries to break the credibility of a witness by showing that he is in love.

An habitual liar, if disinterested, makes about as good a witness as anybody. There is really no such thing as “the lust of lying:” falsehoods are told for advantage—commonly a shadowy and illusory advantage, but one distinctly enough had in mind. Discerning no opportunity to promote his interest, tickle his vanity or feed a grudge, the habitual liar will tell the truth. If lawyers would study human nature with half the assiduity that they give to resolution of hairs into their longitudinal elements they would be better fitted for service of the devil than they have now the usefulness to be.

V

I affirm the right and expediency of cross-examining attorneys in court, with a view to testing their credibility. An attorney’s relation to the trial is closer and more important than that of a witness. He has more to say and more opportunities to deceive the jury, not only by naked lying, but by both *suppressio veri* and *suggestio falsi*. Why is it not important to ascertain his credibility; and if an inquiry into his private life and public reputation will assist, as himself avers, why should he not be put upon the grill and compelled to sweat out the desired incrimination? I should think it might give good results, for example, to compel him to answer a few questions touching his professional career. Somewhat like this:

“Did you ever defend a client, knowing him to be guilty?”

“What, precisely, was your motive in doing so?”

“But in addition to your love of fair play had you not also the hope and assurance of a fee?”

“In defending a client known to you to be guilty did you declare your belief in his innocence?”

“Yes, I understand, but necessary as it may have been (in that it helped to defeat justice and earn your fee) was not your declaration a lie?”

“Do you believe it right to lie for the purpose of circumventing justice?—yes or no?”

“Do you believe it right to lie for personal gain—yes or no?”

“Then why did you do both?”

“A man who lies to beat the laws and fill his purse is—what?”

“In defending a murderer did you ever misrepresent the character, acts, motives and intentions of the man that he murdered—never mind the purpose and effect of such misrepresentation—yes or no?”

“That is what we call slander of the dead, is it not?”

“What is the most accurate name you can think of for one who slanders the dead to defeat justice and promote his own fortune?”

“Yes, I know—such practices are allowed by the ‘ethics’ of your profession, but can you point to any evidence that they are allowed by Jesus Christ?”

“If in former trials you have obstructed justice by slander of the dead, by falsely affirming the innocence of the guilty, by cheating in argument, by deceiving the court whom you are sworn to serve and assist, and have done all this for personal gain, do you expect, and is it reasonable for you to expect, the jury in this case to believe you?”

“One moment more, please. Did you ever accept an annual or other fee conditioned on your not taking any action against a certain corporation?”

“While in receipt of such refrainer—I beg your pardon, retainer—did you ever prosecute a blackmailer?”

It will be seen that in testing the credibility of a lawyer it is needless to go into his private life and his character as a man and a citizen: his professional practices are an ample field in which to search for offenses against man and God.

The moral sense of the laymen is dimly conscious of something wrong in the ethics of the “noble profession,” the lawyers affirming, rightly enough, a public necessity for them and their mercenary services, permit their thrift to construe it vaguely as personal justification. But nobody has blown away from the matter its brumous encompassment and let in the light upon it. It is very simple.

Is it honorable for a lawyer to try to clear a man that he knows deserves conviction? That is not the entire question by much. Is it honorable to

pretend to believe what you do not believe? Is it honorable to lie? I submit that these questions are not answered affirmatively by showing the disadvantage to the public and to civilization of a lawyer refusing to serve a known offender. The popular interest, like any other good cause, can be and commonly is, served by foul means when served at all. Justice itself may be promoted by acts essentially unjust. In serving a sordid ambition a powerful scoundrel may by acts in themselves wicked augment the prosperity of a whole nation. I have not the right to deceive and lie in order to advantage my fellow men, any more than I have the right to steal or murder to advantage them; nor have my fellow men the power to grant me that indulgence.

The question of a lawyer's right to clear a known criminal (with the several questions involved) is not answered affirmatively by showing that the law forbids him to decline a case for reasons personal to himself—not even if we admit the statute's moral authority. Preservation of conscience and character is a civic duty, as well as a personal; one's fellowmen have a distinct interest in it. That, I admit, is an argument rather in the manner of an attorney; clearly enough the effect of this statute is to compel an attorney to cheat and lie for any rascal that wants him to. In that sense it may be regarded as a law softening the rigor of all laws; it does not mitigate punishments, but mitigates the chance of incurring them. The infamy of it lies in forbidding an attorney to be a gentleman. Like all laws it falls something short of its intent: many attorneys, even some who defend the law, are as honorable as is consistent with the practice of deceit to serve crime.

It will not do to say that an attorney in defending a client is not compelled to cheat and lie. What kind of defense could be made by any one who did not profess belief in the innocence of his client?—did not affirm it in the most serious and impressive way?—did not lie? How would it profit the defense to be conducted by one who would not meet the prosecution's grave asseverations of belief in the prisoner's guilt by equally grave assurances of faith in his innocence? And in point of fact, when was counsel for the defense ever known to forego the advantage of that solemn falsehood? If I am asked what would become of accused persons if they had to prove their innocence to the lawyers before making a defense in court, I reply that it is not for the public interest that a rogue have the same freedom

of defense as an honest man; it should be a good deal harder for him. His troubles should begin, not when he seeks acquittal, but when he seeks counsel. It would be better for the community if he could not obtain the services of a reputable attorney, or any attorney at all. A defense that can not be made without his attorney's knowledge of his guilt should be impossible to him.

VI

As to the general question of a judge's right to inflict arbitrary punishment for words that he may be pleased to hold disrespectful to himself or another judge, I do not myself believe that any such right exists; the practice seems to be merely a survival—a heritage from the dark days of irresponsible power, when the scope of judicial authority had no other bounds than fear of the king's gout or indigestion. If in these modern days the same right is to exist it may be necessary to revive the old checks upon it by restoring the throne. In freeing us from the monarchical chain, the coalition of European Powers commonly known in American history as the valor of our forefathers stripped us starker than they knew.

Suppose an attorney should find his client's interests imperiled by a prejudiced or corrupt judge—what is he to do? Denied the right to make representations to that effect, supporting them with evidence where evidence is possible and by inference where it is not, what means of protection shall he venture to adopt? If it be urged in objection that judges are never prejudiced nor corrupt I confess that I shall have no answer: the proposition will deprive me of breath.

If contempt is not a crime it should not be punished; if a crime it should be punished as other crimes are punished—by indictment or information, trial by jury if a jury is demanded, with all the safeguards that secure an accused person against judicial blunders and judicial bias. The necessity for these safeguards is even greater in cases of contempt than in others—particularly if the prosecuting witness is to sit in judgment on his own grievance. That should, of course, not be permitted: the trial should take place before another judge.

The public ear is served with rather more than just enough of nonsense about "attacks upon the dignity of the Bench," "bringing the judiciary into

disrepute” and the rueful rest of it. I crave leave to remind the solitudinarians sounding these loud alarms on their several larynges that by persons of understanding a man is respected, not for the office that he holds, but for what he is, and that one public functionary will stand as high in their esteem as another if as high in character. The dignity of a wise and righteous judge needs not the artificial safeguarding which is a heritage of the old days when if dissent found a tongue the public executioner cut it out. The Bench will be sufficiently respected when it is no longer a place where dullards dream and rogues rob—when its *personnel* is no longer chosen in the back-rooms of tipple-shops, forced upon yawning conventions and confirmed by the votes of men who know neither what the candidates are nor what they should be. With the gang that we have, and under our system must continue to have, respect is out of the question. The judges are entitled to just as much of its forms and observances as is needful to maintenance of order in their courts and fortification of their lawful power—no more. As to their silence under criticism, that is as they please. Nobody but themselves is holding their tongues.

VII

A law under which the unsuccessful respondent in a divorce proceeding may be forbidden to marry again during the life of the successful complainant, the latter being subject to no such disability, is unrighteous. If the disability is intended as a punishment it is exceptional among legal punishments in that it is inflicted without conviction, trial or arraignment, the divorce proceedings being quite another and different matter. It is exceptional in that the period of its continuance, and therefore the degree of its severity, are indeterminate; they are dependent on no limiting statute, and on neither the will of the power inflicting nor the conduct of the person suffering. To sentence a person to a punishment that is to be mild or severe according to chance or—which is even worse—circumstances which but one person, and that person not officially connected with administration of justice, can partly control, is a perversion of the main principles that are supposed to underlie the laws.

It can be nothing to the woman—possibly herself remarried—whether the man remarries or not; that is, can affect only her feelings, and only such of them as are least creditable to her. Yet her self-interest is enlisted against

him to do him incessant disservice. By merely caring for her health she increases the sharpness of his punishment—for punishment it is if he feels it such; every hour that she wrests from death is added to his “term.” The expediency of preventing a man from marrying, without having the power to prevent him from making his marriage desirable in the interest of the public and vital to that of some woman, is not discussable here. If a man is ever justified in poisoning a woman who was once his wife it is when, by way of making him miserable, the state has given him a direct and distinct interest in her death.

VIII

With a view, possibly, to promoting respect for law by making the statutes so to conform to public sentiment that none will fall into dis-esteem and disuse, it has been proposed that there be recognition of sex in the penal code, by making a difference in the punishment of men and of women for the same crimes and misdemeanors. The argument is that if women were “provided” with milder punishment juries would sometimes convict them, whereas they now commonly get off altogether.

The plan is not so new as might be thought. Many of the nations of antiquity of whose laws we have knowledge, and nearly all the European nations until within a comparatively recent time, punished women differently from men for the same offenses. As recently as the period of the Early Puritan in New England women were punished for some offenses which men might commit without fear if not without reproach. The ducking-stool, for example, was an appliance for softening the female temper only. In England women used to be burned at the stake for crimes for which men were hanged, roasting being popularly regarded as the milder punishment. In point of fact, it was not punishment at all, the victim being carefully strangled before the fire touched her. Burning was simply a method of disposing of the body so expeditiously as to give no occasion and opportunity for the unseemly social rites commonly performed about the scaffold of the erring male by a jocular populace. As lately as 1763 a woman named Margaret Biddingfield was burned in Suffolk, England, as an accomplice in the crime of “petty treason.” She had assisted in the murder of one of the king’s subjects (her husband), the actual killing being done by a man; and he was hanged, as no doubt he deserved to be. For “coining,”

too (which, also, was “treason”) men were hanged and women burned. This distinction between the sexes was maintained until the year of grace 1790, after which female offenders ceased to have “a stake in the country,” and like Hood’s martial hero, “enlisted in the line.”

In still earlier days, before the advantages of fire were understood, our good grandmothers who sinned were admonished by water—they were drowned; but in the reign of Henry III a woman was hanged—without strangulation, apparently, for after a whole day of it she was cut down and pardoned. Sorceresses and unfaithful wives were smothered in mud, as also were unfaithful wives among the ancient Burgundians. The punishment of unfaithful husbands is not of record; we only know that there were no austere virtuous editors to direct the finger of scorn to their dark misdeeds and personal unworth.

Among the Anglo-Saxons, women who had the bad luck to be detected in theft were drowned, while men meeting with the same mischance died a dry death by hanging. By the early Danish laws female thieves were buried alive, whether or not from motives of humanity is not now known. This seems to have been the fashion in France also, for in 1331 a woman named Duplas was scourged and buried alive at Abbeville, and in 1460 Perotte Mauger, a receiver of stolen goods, was inhumed by order of the Provost of Paris in front of the public gibbet. In Germany in the good old days certain kinds of female criminals were “impaled,” a punishment too grotesquely horrible for description, but likely enough considered by the simple German of the period conspicuously merciful.

It is, in short, only recently that the civilized nations have placed the sexes on an equality in the matter of the death penalty for crime, and the new system is not yet by any means universal. That it is a better system than the old, or would be if enforced, is a natural presumption from human progress, out of which it is evolved. But coincidently with its evolution has developed also a sentiment adverse to punishment of women at all. This sentiment appears to be of independent growth; in no way a reaction against that which caused the change. To mitigate the severity of the death penalty for women to some pleasant form of euthanasia, such as drowning in rose-water, or in their case to abolish the death penalty altogether and make their capital punishment consist in a brief internment in a jail with a softened name, would probably do no good, for whatever form it might take, it

would be, so far as woman is concerned, the “extreme penalty” and crowning disgrace, and jurors would be as reluctant to inflict it as they now are to inflict death.

IX

Testators should not, from the snug security of the grave, be permitted to utter a perpetual threat of disinheritance, or any other uncomfortable fate, to deter a living citizen, even one of their own legatees, from applying to the courts of his country for redress of any wrong from which he may consider himself as suffering. The courts of law ought to be open to any one conceiving himself a victim of injustice, and it should be unlawful to abridge the right of complaint by making its exercise more hazardous than it naturally is. Doubtless the contesting of wills is a nuisance, generally speaking, the contestant devoid of moral worth and the verdict unrighteous; but as long as some testators really *are* daft, or subject to interested suasion, or wantonly sinful, all should be denied the power to stifle dissent by fining the luckless dissenter. The dead have too much to say in this world, at the best, and it is tyranny for them to stand at the door of the temple of justice to drive away the suitors that themselves have made.

Obedience to the commands of the dead should be conditional upon their good behavior, and it is not good behavior to set up a censure of action at law among the living. If our courts are not competent to say what actions are proper to be brought and what are unfit to be entertained let us improve them until they are competent, or abolish them altogether and resort to the mild and humane arbitrament of the dice; but while courts have the civility to exist they should refuse to surrender any part of their duties and responsibilities to such exceedingly private persons as those under six feet of earth, or sealed up in habitations of hewn stone. Persons no longer affectable by human events should be denied a voice in determining the character and trend of them. Respect for the wishes of the dead is a tender and beautiful sentiment, certainly. Unfortunately, it can not be ascertained that they have any wishes. What commonly go by that name are wishes once entertained by living persons who are now dead, and who in dying renounced them, along with everything else. Like those who entertained them, the wishes are no longer in existence. “The wishes of the dead” are not wishes, and are not of the dead. Why they should have anything more

than a sentimental influence upon those still in the flesh, and be a factor to be reckoned with in the practical affairs of the supergraminous world, is a question to which the merely human understanding can find no answer, and it must be referred to the lawyers. When “from the tombs a doleful sound” is vented, and “thine ear” is invited to “attend the cry,” an intelligent forethought will suggest that you inquire if it is anything about property. If so pass on—that is no sacred spot.

X

Much of the testimony in French courts, civil and martial, appears to consist of personal impressions and opinions of the witnesses. All very improper and mischievous, no doubt, if—if what? Why, obviously, if the judges and jurors are unfit to sit in judgment. By designating them to sit, the designating power assumes their fitness—assumes that they know enough to take such things for what they are worth, to make the necessary allowances; if needful, to disregard a witness’s opinion altogether. I do not know that they are fit. I do not know that they do make the needful allowances. It is by no means clear to me that any judge or juror, French, American or Patagonian, is competent to ascertain the truth when lying witnesses are trying to conceal it under the direction of skilled and conscienceless attorneys licensed to deceive. But his competence is a basic assumption of the law vesting him with the duty of deciding. Having chosen him for that duty, the French law very logically lets him alone to decide for himself what is evidence and what is not. It does not trust him a little, but altogether. It puts him under conditions familiar to him—makes him accessible to just such influences as he is accustomed to when making conscious and unconscious decisions in his personal affairs.

There may be a distinct gain to justice in permitting a witness to say whatever he wants to say. If he is telling the truth he will not contradict himself; if he is lying, the more rope he is given the more surely he will entangle himself.

In giving hearsay evidence, for example, he may suggest a new and important witness of whom the counsel for the other side would not otherwise have heard, and who can then be brought into court. By some unguarded and apparently irrelevant statement he may open an entirely new line of inquiry, or throw upon the case a flood of light. Everyone knows

what revelations are sometimes evoked by apparently the most insignificant remarks. Why should justice be denied a chance to profit that way?

There is a still greater advantage in “the French method.” By giving a witness free rein in expression of his personal opinions and feelings we should be able to calculate his frame of mind, his good or ill will to the prosecution or defense and, therefore, to a certain extent his credibility. In our courts he is able by a little solemn perjury to conceal all this, even from himself, and pose as an impartial witness, when in truth, with regard to the accused he is full of rancor or reeking with compassion.

In theory our system is perfect. The accused is prosecuted by a public officer, who having no interest in his conviction, will serve the state without mischievous zeal and perform his disagreeable task with fairness and consideration. He is permitted to entrust his defense to another officer, whose duty it is to make a rigidly truthful and candid presentment of his case in order to assist the court to a just decision. The jurors, if there are jurors, are neither friendly nor hostile, are open-minded, intelligent and conscientious. As to the witnesses, are they not sworn to tell the truth, the whole truth (in so far as they are permitted) and nothing but the truth? What could be finer and better than all this?—what could more certainly assure justice?

How close the resemblance is between this ideal picture and what actually occurs all know, or should know. The judge is frequently an ignoramus incapable of logical thought and with little sense of the dread and awful nature of his responsibility. The prosecuting attorney thinks it due to his reputation to “make a record” and tries to convict by hook or crook, even when he is himself persuaded of the defendant’s innocence. Counsel for the defense is equally unscrupulous for acquittal, and, both having industriously coached their witnesses, they contend against each other in deceiving the court by every art of which they are masters. Witnesses on both sides perjure themselves freely and with almost perfect impunity if detected. At the close of it all the poor weary jurors, hopelessly bewildered and dumbly resentful of their duping, render a random or compromise verdict, or one which best expresses their secret animosity to the lawyer they like least, or their faith in the newspapers which they have diligently and disobediently read every night. Commenting upon Rabelais’ old judge who, when impeached for an outrageous decision, pleaded his defective

eyesight which made him miscount the spots on the dice, the most distinguished lawyer of my acquaintance seriously assured me that if all the cases with which he had been connected had been decided with the dice substantial justice would have been done more frequently than it was done. If that is true, or nearly true, and I believe it, the American's right to sneer at the Frenchman's "judicial methods" is an open question.

XI

It is urged that the corrupt practices in our courts of law be uncovered to public view, whenever that is possible, by that impeccable censor, the press. Exposure of rascality is good—better, apparently for rascals than for anybody else, for it usually suggests something rascally which they had overlooked, and so familiarizes the public with crime that crime no longer begets loathing. If the newspapers of the country are really concerned about corrupter practices than their own and willing to bring our courts up to the English standard there is something better than exposure—which fatigues. Let the newspapers set about creating a public opinion favorable to non-elective judges, well paid, powerful to command respect and holding office for life or good behavior. That is the only way to get good men and great lawyers on the Bench. As matters are, we stand and cry for what the English have, and rail at the way they get it. Our boss-made, press-ridden and mob-fearing judges give us as good a quality of justice as we merit. A better quality awaits us whenever the will to have is attended by the sense to take.

ARBITRATION

THE universal cry for industrial arbitration is either dishonest or unwise. For every evil there are quack remedies galore—especially for every evil that is irremediable. Of this order of remedies is arbitration, for of this order of evils is the inadequate wage of manual labor. Since the beginning of authentic history everything has been tried in the hope of divorcing poverty and labor, but nothing has parted them. It is not conceivable that anything ever will; success of arbitration, antecedently improbable, is demonstrably impossible. Most of the work of the world is hard, disagreeable, requiring little intelligence. Most of the people of the world are unfit to do any other work. If it were not done by them it would not be done, and it is the basic work. Withdraw them from it and the whole superstructure would topple and fall. Yet there is so little of the work, and so many incapable of doing anything else, that adequate return is out of the question. For the laboring *class* there is no hope of an existence that is comfortable in comparison with that of the other class; the hope of an individual laborer lies in the possibility of fitting himself for higher employment—employment of the head; not manual but cerebral labor. While selfishness remains the main ingredient of human nature (and a survey of the centuries accessible to examination shows but a slow and intermittent decrease) the cerebral workers, being the wiser and not much better, will manage to take the greater profit. In justice it must be said of them that they extend a warm and sincere invitation to their ranks, and take “apprentices;” every opportunity for education that the other class enjoys is proof of that.

Let us, then, look at arbitration more nearly; in our time it is, in form at least, something new. It began as “international arbitration,” which already, in settling a few disputes of no great importance, has shown itself a dangerous remedy. In the necessary negotiation to determine exactly what points to submit, to whom, and how, and where, and when to submit them, scores of questions are raised, upon each of which it is as easy to disagree and fight as upon the original issue. International arbitration may be defined as the substitution of many burning questions for a smouldering one; for

disputes that have reached a really acute stage are not submitted. Nor, despite all “treaties,” will a powerful nation arbitrate anything that it considers vital to its honor or welfare.

Industrial arbitration is no better; it is manifestly worse, and any law enforcing it, and enforcing compliance with its decisions, is absurd and mischievous. “Compulsory arbitration” is not arbitration; the essence of which is voluntary submission of differences and voluntary submission to judgment. If reference or obedience is enforced the arbitrators are simply a court with no powers to do anything but apply the law. Proponents of the fad would do well to consider this: If a party to a labor dispute is *compelled* to invoke and obey a decision of arbitrators, that decision must follow strictly the line of law; the smallest invasion of any constitutional, statutory or common-law right will enable him to upset the judgment. No legislative body can establish a tribunal empowered to make and enforce illegal or extra-legal decisions; for making and enforcing legal ones the tribunals that we already have are sufficient. This talk of “compulsory arbitration” is the maddest nonsense that the industrial situation has yet evolved. Doubtless it is sent upon us for our sins; but had we not already a plague of strikes?

Arbitration of labor disputes means compromise with the unions. It can, in this country, mean nothing else, for the law would not survive a half-dozen failures to concede some part of the workmen’s demands, however reasonless. By repeated strikes they would eventually get all their original demand and as much more as on second thought they might choose to ask for. Each concession would be, as it is now, followed by a new importunity and the first arbitrators might as well allow them all that they demand and all that they mean to demand hereafter.

Would not employers be equally unscrupulous? They would not. They could not afford the disturbance, the stoppage of the business, the risk of unfair decisions in a country where it is “popular” to favor and encourage, not the just, but the poor. The labor leaders have nothing to lose, not even their employment, for their work is labor leading. Their dupes, by the way, would not be dupes forever, for with enforced arbitration the game of “follow my leader” would pay only until there should be nothing to follow him to but empty treasuries of dead industries in an extinct civilization. If there must be compulsory arbitration it should at least not apply to that sum of all impudent rascalities, the “sympathy strike.”

As to the men who have set up the claim asserted by the “sympathy strike,” I shall refer to the affair of 1904. If it was creditable in them to feel so much concern about a few hundred aliens in Illinois, how about the grievances of the whole body of their countrymen in California? When their employers, who they confessed were good to them, were plundering the public, they did not strike, sympathetically nor otherwise. Year after year the railway monopoly picked the pockets of the Californians; corrupted their courts and legislatures; laid its Briarean hands in exaction upon every industry and interest; filled the land with lies and false reasoning; threw honest men into prisons and locked the gates of them against thieves and assassins; by open defiance of the tax collector denied to children of the poor the advantages of education—did all this and more; and these honest working men stood loyally by it, sharing in wages its dishonest gains, receivers, in one sense, of stolen goods. The groans of their neighbors were nothing to them; even the wrongs of themselves, their wives and their children did not stir them to revolt. On every breeze that blew, a great chorus of cries and curses was borne past their ears unheeded. Why did they not strike then? Where then were the fiery altruists and storm-petrels of industrial disorder? The ingenious gods who have invented the Debses and Gomperses, and humorously branded them with names that would make a cat laugh, have never put it into their cold selfish hearts to order out their followers to redress a public wrong, but only to inflict one—to avenge a personal humiliation, gratify an appetite for notoriety, slake a thirst for the intoxicating cup of power, or punish the crime of prosperity.

It is a practical, an illogical, a turbulent time, yes; it always is. The age of Jesus Christ was a practical age, yet Jesus Christ was sweetly impractical. In an illogical period Socrates reasoned clearly, and logically died for it. Nero’s time was a time of turbulence, yet Seneca’s mind was not disturbed, nor his conscience perverted. Compare their fame with the everlasting infamy that time has fixed upon the names of the Jack Cades, the Robespierres, the Tomaso Nielos—guides and gods of the “fierce democracies” which rise with a sickening periodicity to defile the page of history with a quickly fading mark of blood and fire, their own awful example their sole contribution to the good of mankind. To be a child of your time, imbued with its spirit and endowed with its aims—that is to petition Posterity for a niche in the Temple of Shame.

No strike of any prominence ever takes place in this country without the concomitants of violence and destruction of property, and usually murder. These cheerful incidents one who does not personally suffer them can endure with considerable fortitude, but hypocritical condemnation of them by the press that has instigated them and the strikers who have planned and executed them, and who invariably ascribe them to those whom they most injure; the solemn offers of the leaders to assist in protecting the imperiled property and avenging the dead, while openly employing counsel for every incendiary and assassin arrested in spite of them—these are pretty hard to bear. A strike means (for it includes as its main method) violence, lawlessness, destruction of the property of others than the strikers, riot and, if necessary, bloodshed. Even when the strikers themselves have no hand in these crimes they are morally liable for the foreknown consequences of their act. Nay, they are morally liable for *all* the consequences—all the inconveniences and losses to the community, all the sufferings of the poor entailed by interruptions of trade, all the privations of other workingmen whom a selfish attention to their own supposed advantage throws out of the closed industries. They are liable in morals and should be made so in law—only that strikes are needless. It is not worth while to create a multitude of complex criminal responsibilities for acts which can, possibly, be prevented by a single and simple one. How?

First, I should like to point out that we are hearing a deal too much about a man's inalienable right to work or play, at his own sovereign will. In so far as that means—and it is always used to mean—his right to quit any kind of work at any moment, without notice and regardless of consequences to others, it is false; there is no such moral right, and the law should have at least a speaking acquaintance with morality. What is mischievous should be illegal. The various interests of civilization are so complex, delicate, intertangled and interdependent that no man, and no set of men, should have power to throw the entire scheme into confusion and disorder for promotion of a trumpery principle or a class advantage. In dealing with corporations we recognize that. If for any selfish purpose a trade union of railway managers had done what their sacred brakemen and divine firemen did—had decreed that “no wheel should turn” until Mr. Pullman's men should return to work—they would have found themselves all in jail the second day. *Their* right to quit work was not conceded: they lacked that authenticating credential of moral and legal irresponsibility, an indurated

palm. In a small lockout affecting a mill or two the offender finds a half-hearted support in the law if he is willing to pay enough deputy sheriffs; but even then he is mounted by the hobnailed populace, at its back the daily newspapers, clamoring and spitting like cats. But let the manager of a great railway discharge all its men without warning and “kill” its own engines! Then see what you will see. To commit a wrong so gigantic with impunity a man must wear overalls.

How prevent anybody from committing it? How break up this *régime* of strikes and boycotts and lockouts, more disastrous to others than to those at whom the blows are aimed—than to those, even, who deliver them? How make all those concerned in the management and operation of great industries, about which have grown up tangles of related and dependent interests, conduct them with some regard to the welfare of others? Before committing ourselves to the dubious and irretraceable course of “government ownership,” or to the infectious expedient of “regulation,” is there anything of promise yet untried?—anything of superior simplicity and easier application?

There are few simple remedies for social or political ills. It is a familiar truth that no law was ever passed that did not have unforeseen results; but of these results, by far the greater number are never recognized as of its creation. The best that can be said of any “measure” is that the sum of its perceptible benefits seems so to exceed the sum of its perceptible evils as to constitute a balance of advantage. Yet the statesman or philosopher to whose understanding “the whole matter lies in a nutshell”—who thinks he can formulate a practical political or social policy within the four corners of an epigram is constantly to the fore with a simple specific for ills whose causes are complex, constant and obscure.

Nevertheless, it would be wise to make a breach of labor contract by either party to it a criminal offense punishable by imprisonment. “Fine or imprisonment” will not do—the employee, unable to pay the fine, would commonly go to jail, the employer seldom. That would not be fair.

The need of such a law is apparent: labor contracts would then be drawn for a certain time, securing both employer and employee and (which is more important) helpless persons in related and dependent industries—the whole public, in fact—against sudden and disastrous action by either

“capital” or “labor” for accomplishment of a purely selfish and frankly impudent end. A strike or lockout compelled to announce itself thirty days in advance would be comparatively innocuous to the public, whilst securing to the party of initiation all the advantages that anybody professes to want—all but the advantage of ruining others and successfully defying the laws.

Under the present *régime* labor contracts are useless; either party can violate them with impunity. They offer redress only through a civil suit for damages, and the employee commonly has nothing with which to conduct an action or satisfy a judgment. The consequence is seen in the incessant and increasing industrial disturbances, with their ever-attendant crimes against property, life and liberty—disturbances which, by driving capital to investments in which it needs employ no labor, do more than all the other causes so glibly enumerated by every newspaper and politician, though by no two alike, to bring about the “hard times”—which in their turn cause further and worse disturbances.

THE GIFT O' GAB

A BOOK entitled *Forensic Eloquence*, by Mr. John Goss, appears to have for purpose to teach the young idea how to spout, and that purpose, I dare say, it will accomplish if something is not done to prevent. I know nothing of the matter myself, a strong distaste for forensic eloquence, or eloquence of any kind implying a man mounted on his legs and doing all the talking, having averted me from its study. The training of the youth of this country to utterance of themselves after that fashion I should regard as a disaster of magnitude. So far as I know it, forensic eloquence is the art of saying things in such a way as to make them pass for more than they are worth. Employed in matters of importance (and for other employment it were hardly worth acquiring) it is mischievous because dishonest and misleading. In the public service Truth toils best when not clad in cloth-of-gold and bedaubed with fine lace. If eloquence does not beget action it is valueless; but action which results from the passions, sentiments and emotions is less likely to be wise than that which comes of a persuaded judgment. For that reason I cannot help thinking that the influence of Bismarck in German politics was more wholesome than is that of Mr. John Temple Graves.

For eloquence *per se*—considered merely as an art of pleasing—I entertain something of the respect evoked by success; for it always pleases at least the speaker. It is to speech what an ornate style is to writing—good and pleasant enough in its time and place and, like pie-crust and the evening girl, destitute of any basis in common sense. Forensic eloquence, on the contrary, has an all too sufficient foundation in reason and the order of things: it promotes the ambition of tricksters and advances the fortunes of rogues. For I take it that the Ciceros, the Mirabeaus, the Burkes, the O'Connells, the Patrick Henrys and the rest of them—pets of the text-bookers and scourges of youth—belong in either the one category or the other, or in both. Anyhow I find it impossible to think of them as high-minded men and rightforth statesmen—with their actors' tricks, their devices of the countenance, inventions of gesture and other cunning expedients having nothing to do with the matter in hand. Extinction of the

orator I hold to be the most beneficent possibility of evolution. If Mr. Goss has done anything to retard that blessed time when the Bourke Cockrans shall cease from troubling and the weary be at rest he is an enemy of his race.

“What!” exclaims the thoughtless reader—I have but one—“are not the great forensic speeches by the world’s famous orators good reading? Considering them merely as literature do you not derive a high and refining pleasure from them?” I do not: I find them turgid and tumid no end. They are bad reading, though they may have been good hearing. In order to enjoy them one must have in memory what, indeed, one is seldom permitted to forget: that they were addressed to the ear; and in imagination one must hold some shadowy simulacrum of the orator himself, uttering his work. These conditions being fulfilled there remains for application to the matter of the discourse too little attention to get much good of it, and the total effect is confusion. Literature by which the reader is compelled to bear in mind the producer and the circumstances under which it was produced can be spared.

NATURA BENIGNA

IT is not always on remote islands peopled with pagans that great disasters occur, as memory witnesseth. Nor are the forces of nature inadequate to production of a fiercer throe than any that we have known. The situation is this: we are tied by the feet to a fragile shell imperfectly confining a force powerful enough under favoring conditions, to burst it asunder and set the fragments wallowing and grinding together in liquid flame, in the blind fury of a readjustment. Nay, it needs no such stupendous cataclysm to de-people this uneasy orb. Let but a square mile be blown out of the bottom of the sea, or a great rift open there. Is it to be supposed that we would be unaffected in the altered conditions generated by a contest between the ocean and the earth's molten core? These fatalities are not only possible but in the highest degree probable. It is probable, indeed, that they have occurred over and over again, effacing all the more highly organized forms of life, and compelling the slow march of evolution to begin anew. Slow? On the stage of Eternity the passing of races—the entrances and exits of Life—are incidents in a brisk and lively drama, following one another with confusing rapidity.

Mankind has not found it practicable to abandon and avoid those places where the forces of nature have been most malign. The track of the Western tornado is speedily repeopled. San Francisco is still populous, despite its earthquake, Galveston despite its storm, and even the courts of Lisbon are not kept by the lion and the lizard. In the Peruvian village straight downward into whose streets the crew of a United States warship once looked from the crest of a wave that stranded her a half mile inland are heard the tinkle of the guitar and the voices of children at play. There are people living at Herculaneum and Pompeii. On the slopes about Catania the goatherd endures with what courage he may the trembling of the ground beneath his feet as old Enceladus again turns over on his other side. As the Hoang-Ho goes back inside its banks after fertilizing its contiguity with hydrate of Chinaman the living agriculturist follows the receding wave, sets

up his habitation beneath the broken embankment, and again the Valley of the Gone Away blossoms as the rose, its people dicing with Death.

This matter can not be amended: the race exposes itself to peril because it can do no otherwise. In all the world there is no city of refuge—no temple in which to take sanctuary, clinging to the horns of the altar—no “place apart” where, like hunted deer, we can hope to elude the baying pack of Nature’s malevolences. The dead-line is drawn at the gate of life: Man crosses it at birth. His advent is a challenge to the entire pack—earthquake, storm, fire, flood, drought, heat, cold, wild beasts, venomous reptiles, noxious insects, bacilli, spectacular plague and velvet-footed household disease—all are fierce and tireless in pursuit. Dodge, turn and double how he can, there’s no eluding them; soon or late some of them have him by the throat and his spirit returns to the God who gave it—and gave them.

We are told that this earth was made for our inhabiting. Our dearly beloved brethren in the faith, our spiritual guides, philosophers and friends of the pulpit, never tire of pointing out the goodness of God in giving us so excellent a place to live in and commending the admirable adaptation of all things to our needs.

What a fine world it is, to be sure—a darling little world, “so suited to the needs of man.” A globe of liquid fire, straining within a shell relatively no thicker than that of an egg—a shell constantly cracking and in momentary danger of going all to pieces! Three-fourths of this delectable field of human activity are covered with an element in which we can not breathe, and which swallows us by myriads:

With moldering bones the deep is white
From the frozen zones to the tropics bright.

Of the other one-fourth more than one-half is uninhabitable by reason of climate. On the remaining one-eighth we pass a comfortless and precarious existence in disputed occupancy with countless ministers of death and pain—pass it in fighting for it, tooth and nail, a hopeless battle in which we are foredoomed to defeat. Everywhere death, terror, lamentation and the laughter that is more terrible than tears—the fury and despair of a race hanging on to life by the tips of its fingers! And the prize for which we strive, “to have and to hold”—what is it? A thing that is neither enjoyed while had, nor missed when lost. So worthless it is, so unsatisfying, so

inadequate to purpose, so false to hope and at its best so brief, that for consolation and compensation we set up fantastic faiths of an aftertime in a better world from which no confirming whisper has ever reached us across the void. Heaven is a prophecy uttered by the lips of despair, but Hell is an inference from analogy.

INDUSTRIAL DISCONTENT

I

THE time seems to have come when the two antagonistic elements of American society should, and could afford to, throw off their disguises and frankly declare their principles and purposes. But what, it may be asked, are the two antagonistic elements? Dividing lines parting the population into two camps more or less hostile may be drawn variously; for example, one may be run between the law-abiding and the criminal class. But the elements to which reference is here made are those immemorial and implacable foes which the slang of modern economics roughly and loosely distinguishes as “capital” and “labor.” A more accurate classification—as accurate a one as it is possible to make—would designate them as those who do muscular labor and those who do not. The distinction between rich and poor does not serve: to the laborer, the rich man who works with his hands is not objectionable; the poor man who does not, is. Consciously or unconsciously, and alike by those whose necessities compel them to perform it and those whose better fortune enables them to avoid it, manual labor is considered the most insufferable of human pursuits. It is a pill that the Tolstoys, the “communities” and the “Knights” of Labor can not sugar-coat. We may prate of the dignity of labor; emblazon its praise upon banners; set apart a day on which to stop work and celebrate it; shout our teeth loose in its glorification—and, God help our foolish souls to better sense, we think we mean it all!

If labor is so good and great a thing let all be thankful, for all can have as much of it as may be desired. The eight-hour law is not mandatory to the laborer, nor does possession of leisure entail idleness. It is permitted to the clerk, the shopman, the street peddler—to all who live by the light employment of keeping the wolf from the door without eating him—to abandon their ignoble callings, seize the shovel, the axe and the sledge-hammer and lay about them right sturdily, to the ample gratification of their desire. And those who are engaged in more profitable vocations will find

that with a part of their incomes they can purchase the right to work as hard as they like in even the dullest times.

Manual labor has nothing of dignity, nothing of beauty. It is a hard, imperious and dispiriting necessity. He who is condemned to it feels that it sets upon his brow the sign of intellectual inferiority. And that brand of servitude never ceases to burn. In no country and at no time has the laborer had a kindly feeling for the rest of us, for everywhere and always he has fancied that he heard in our patronizing platitudes the note of contempt. In his repression, in the denying him the opportunity to avenge his real and imaginary wrongs, government finds its main usefulness, activity and justification. Governments are evolved out of the necessity of protecting from the hand-worker the life and property of the brain-worker and the idler. The first of the trio is the most dangerous because the most numerous and the least content. Take from the science and the art of government, and from its methods, whatever has had its origin in the consciousness of his ill-will and the fear of his power and what have you left? A pure republic—that is to say, no government.

I should like it understood that, if not absolutely devoid of political prejudices, I at least believe myself to be; that except as to result I think no more of one form of government than of another; and that with reference to results all forms seem to me bad, but bad in different degrees. If asked my opinion as to the results of our own, I should point to Homestead, to Wardner, to Buffalo, to Coal Creek, to the interminable tale of unpunished murders by individuals and by mobs, to legislatures and courts unspeakably corrupt and executives of criminal cowardice, to the prevalence and immunity of plundering trusts and corporations and the multiplication of unhappy millionaires. I should invite attention to the abuses of the pension roll, to the similar and incredible extravagance of Republican and Democratic “Houses”—a plague o’ them both! If addressing Democrats only, I should mention the protective tariff; if Republicans, the hill-tribe clamor for free coinage of silver. I should call to mind the existence and prosperous activity of a thousand lying secret societies having for their main object mitigation of republican simplicity by means of pageantry, costumes grotesquely resembling those of kings and courtiers, and titles of address and courtesy exalted enough to draw laughter from an ox.

In contemplation of these and a hundred other “results,” no less shameful in themselves than significant of the deeper shame beneath, and prophetic of the blacker shame to come, I should say: “Behold the outcome of hardly more than a century of government by the people! Behold the superstructure whose foundations our forefathers laid upon the unstable overgrowth of popular caprice surfacing the unplummeted abyss of human depravity! Behold the reality behind our dream of the efficacy of forms, the saving grace of principles, the magic of words! We have believed in the wisdom of majorities and are fooled; trusted to the good honor of numbers, and are betrayed. Lo, this is the beginning of the end of the dream!”

Our no government has broken down at every point, and the two irreconcilable elements whose suspensions of hostilities are mistaken for peace are to try their hands at each other’s tempting display of throats. There is no longer so much as a pretense of amity; apparently there will not much longer be a pretense of regard for mercy and morals. Already “industrial discontent” has attained to the magnitude of war. It is important, then, that there be an understanding of principles and purposes. As the combatants will not define their position truthfully by words, let us see if it can be inferred from the actions which are said to speak more plainly. If one of the men “directing the destinies” of the labor organizations in this country, could be enticed into the Palace of Truth and “examined” by a skilful catechist he would indubitably say something like this:

“Our ultimate purpose is effacement of the distinction between employer and employee, which is but a modification of that between master and slave.

“We purpose that the laborer shall be chief owner of all the property and profits of the enterprise in which he is engaged, and have through his union a controlling voice in all its affairs.

“We purpose overthrowing the system under which a man can grow richer by working with his head than with his hands, and preventing the man who works with neither from having anything at all.

“In the attainment of these ends any means is to be judged, as to its fitness for our use, with sole regard to its efficacy. We shall punish the innocent for the sins of the guilty. We shall destroy property and life under such circumstances and to such an extent as may seem to us expedient.

Falsehood, treachery, arson, assassination, all these we look upon as legitimate if effective.

“The rules of ‘civilized warfare’ we shall not observe, but shall put prisoners to death or torture them, as we please.

“We do not recognize a non-union man’s right to labor, nor to live. The right to strike includes the right to strike *him*.”

Doubtless all that (and the half is not told) sounds to the unobservant like a harsh exaggeration, an imaginative travesty of the principles of labor organizations. It is not a travesty; it has no element of exaggeration. Not in the last twenty-five years has a great strike or lockout occurred in this country without supplying facts, notorious and undisputed, upon which some of these confessions of faith are founded. The war is practically a servile insurrection, and servile insurrections are to-day what they ever were: the most cruel and ferocious of all manifestations of human hate. Emancipation is rough work; when he who would be free, himself strikes the blow, he does not consider too curiously with what he strikes it nor upon whom it falls. It will profit you to understand, my fine gentlemen with the soft hands, the character of that which is confronting you. You are not threatened with a bombardment of roses.

Let us look into the other camp, where General Hardhead is so engrossed with his own greatness and power as not clearly to hear the shots on his picket line. Suppose we hypnotize him and make him open his “shut soul” to our searching. He will say something like this:

“In the first place, I claim the right to own and enclose for my own use or disuse as much of the earth’s surface as I am desirous and able to procure. I and my kind have made laws confirming us in the occupancy of the entire habitable and arable area as fast as we can get it. To the objection that this must eventually, here, as it has actually done elsewhere, deprive the rest of you of places upon which legally to be born, and exclude you, after surreptitious birth as trespassers, from all chance to procure directly the fruits of the earth, I reply that you can be born at sea and eat fish.

“I claim the right to induce you, by offer of employment, to colonize yourselves and families about my factories, and then arbitrarily, by withdrawing the employment, break up in a day the homes that you have

been years in acquiring where it is no longer possible for you to procure work.

“In determining your rate of wages when I employ you, I claim the right to make your necessities a factor in the problem, thus making your misfortunes cumulative. By the law of supply and demand (God bless its expounder!) the less you have and the less chance to get more, the more I have the right to take from you in labor and the less I am bound to give you in wages.

“I claim the right to maintain a private army to subdue you when you rise.

“I claim the right to make you suffer, by creating for my advantage an artificial scarcity of the necessities of life.

“As to falsehood, treachery and the other military virtues with which you threaten me, I shall go, in them, as far as you; but from arson and assassination I recoil with horror. You see you have very little to burn, and you are not more than half alive anyhow.”

That, I submit, is a pretty fair definition of the position of the rich man who works for himself with his head. It seems worth while to put it on record while he is extant to challenge or verify; for the probability is that unless he mend his ways he will not much longer be rich, nor work, nor have a head.

II

In discussion of such murderous misdoings as those at Homestead and Coeur d’Alene it is amusing to observe all the champions of law and order gravely prating of “principles” and declaring with all the solemnity of owls that these sacred things have been violated. On that ground they have the argument all their own way. Indubitably there is hardly a fundamental principle of law and morals that rioting laborers have not footballed out of the field of consideration. Indubitably, too, in doing so they have forfeited, as they must have expected to forfeit, all the “moral support” for which they do not care. If there were any question of their culpability this solemn insistence upon it would lack something of the humor with which it is now invested, and which saves the observer from death by dejection.

It is not only in discussions of the “labor situation” that we hear this eternal babble of “principles.” It is never out of ear, and in politics is especially clamant. Every success in an election is yawped of as “a triumph of Republican (or Democratic) principles.” But neither in politics nor in the quarrels of laborers and their employers have principles a place as factors in the problem. Their use is to supply to both combatants a vocabulary of accusation and appeal. All the fierce talk of an antagonist’s violation of those eternal principles upon which organized society is founded—and the rest of it—what is it but the cry of the dog with the chewed ear? The dog that is chewing foregoes the advantage of song.

Human contests engaging any number of contestants are struggles, not of principles but of interests; and this is no less true of those decided by the ballot than of those in which the franker bullet gives judgment. Nor, but from considerations of prudence and expediency, will either party hesitate to transgress the limits of the law and outrage the sense of right. At Homestead and Wardner the laborers committed robbery, pillage and murder, as striking workmen invariably do when they dare, and as cowardly newspapers and politicians encourage them in doing. But what would you have? They conceive it to be to their interest to do these things. If capitalists conceived it to be to theirs they too would do them. They do not do them, for their interest lies in the supremacy of the law—under which they can suffer loss but do not suffer hunger.

“But they do murder,” say the labor unions; “they bring in gangs of armed mercenaries who shoot down honest workmen striving for their rights.” This is the baldest nonsense, as they know very well who utter it. The “Pinkerton men” are mere mercenaries and have no right place in our system, but there have been no instances of their attacking men not engaged in some unlawful prank. In the fight at Homestead the workmen were actually intrenched on premises belonging to the other side, where they had not the shadow of a legal right to be. American working men are not fools; they know well enough when they are rogues. But confession is not among the military virtues, and the question, Is roguery expedient? is not so simple that it can be determined by asking the first preacher that you meet.

It would be fair and fine all around if idle workmen would not riot nor idle employers meet force with force, but invoke the impossible sheriff. When the Dragon has been chained in the Bottomless Pit and we are living

under the rule of the saints things will be so ordered, but in these evil times “revolutions are not made with rosewater,” and this is a revolution. What is being revolutionized is the relation between our old friends, Capital and Labor. The relation has already been altered many times, doubtless; once, we know, within the period covered by history, at least in the countries that we call civilized. The relation was formerly a severely simple one—the capitalist owned the laborer. Of the difficulty and the cost of abolishing that system it is needless to speak at length. Through centuries of time and with an appalling sacrifice of life the effort has gone on, a continuous war characterized by monstrous infractions of law and morals, by incalculable cruelty and crime. Our own generation has witnessed the culminating triumphs of this revolution, and now, while still the clank of the falling chains is echoing through the world, and still a diminishing multitude of the world’s workers is in bondage under the old system, the others, for whose liberation was all this “expense of spirit in a waste of shame,” are sharply challenging the advantage of the new. The new is, in truth, breaking down at every point. The relation of employer and employee is giving but little better satisfaction than that of master and slave. The difference between the two is, indeed, not nearly so broad as we persuade ourselves to think it. In many industries there is virtually no difference, and the tendency is more and more to effacement of the difference where it exists.

III

The “labor question”—how to get half enough to eat by working for it—is as old as appetite. It burned in Assyrian bosoms and tormented the soul of the ancient Egyptian. In his day and country the medium of exchange was grain. The banks—all except those of the Nile—were granaries, and a check was an order for so much grain. Taxes were paid in grain, salaries and bribes of state officials, soldiers’ wages, pensions, nearly everything. The wages of laborers and other persons improvident enough to work by the day were commonly paid in loaves of bread, as is shown by an account-book of the steward of an “Abode of Rameses,” which was possibly the Ramesseum at Thebes. Among the entries are such as this: “Phamenoth the 8th day. Paid out the bread to the folk, 40 persons, each 2 loaves, making 80”—which shows, too, that the worthy steward had a very pretty knack at arithmetic. When paid by the month, and sometimes when paid by the day, the laborer receiving his wages in corn got also a certain stated quantity of oil, which,

however, was not considered as money, but as rations. In a *papyrus* preserved at Turin one Hanefer imparts some directions to one Hora concerning certain characteristic work of these old pyramid and temple builders: "Note that the men be divided into three gangs, each gang under its captain: six hundred men, making for each gang two hundred. Make them drag the three great blocks which are before the gate of the temple of Maut, and not for one single day let it be omitted to give out their portions of corn and oil.... Also let oil be given to each driver of a pair of oxen."

Strikes and other "remedial measures" appear to have been as common then as they are now. The unions, like those of Rome later, were turbulent and insurgent.

In the twenty-ninth year of Rameses III a deputation of workmen employed in the Theban necropolis met the superintendent and the priests with a statement of their grievances. "Behold," said the spokesman, "we are brought to the verge of famine. We have neither food, nor oil, nor clothing; we have no fish; we have no vegetables. Already we have sent up a petition to our sovereign lord the Pharaoh, praying that he will give us these things, and we are going to appeal to the governor that we may have the wherewithal to live." The response to this complaint was one day's rations of corn. This appears to have been enough only while it lasted, for a few weeks later the workmen were in open revolt. Thrice they broke out of their quarter, rioting like mad and defying the police. Whether they were finally shot full of arrows by the Pinkerton men of the period the record does not state.

"Organized discontent" in the laboring population is no new thing under the sun, but in this century and country it has a new opportunity, and Omniscience alone can forecast the outcome. Of one thing we may be very sure, and the sooner the "capitalist" can persuade himself to discern it the sooner will his eyes guard his neck: the relations between those who are able to live without physical toil and those who are not are a long way from final adjustment, but are about to undergo a profound and essential alteration. That this is to come by peaceful evolution is a hope which has nothing in history to sustain it. There are to be bloody noses and cracked crowns, and the good persons who suffer themselves to be shocked by such things in others will have a chance to try them for themselves. The working man is not troubling himself greatly about a just allotment of these

blessings; so that the greater part go to those who do not work with their hands, he will not consider too curiously any one's claim to exemption. It would perhaps better harmonize with his sense of the fitness of things if the disadvantages of the transitional period fell mostly to the share of his benefactors; but almost any distribution that is sufficiently objectionable as a whole to the other side will be acceptable to the distributor. In the meantime it is to be wished that the moralizers and homilizers who prate of "principles" may have a little damnation dealt out to them on account. The head that is unable to entertain a philosophical view of the situation would be notably advantaged by removal.

IV

It is the immigration of "the oppressed of all nations" that has made this country one of the most lawless on the face of the earth. The change from good to bad took place within a generation—so quickly that few of us have had the nimbleness of apprehension to "get it through our heads." We go on screaming our eagle in the self-same note of triumph that we were taught at our father's knees before the eagle became a buzzard. America is still "an asylum for the oppressed;" and still, as always and everywhere, the oppressed are unworthy of asylum, avenging upon those who give them sanctuary the wrongs from which they fled. The saddest thing about oppression is that it makes its victims unfit for anything but to be oppressed—makes them dangerous alike to their tyrants, their saviors and themselves. In the end they turn out to be fairly energetic oppressors. The gentleman in the cesspool invites compassion, certainly, but we may be very well assured, before undertaking his relief without a pole, that his conception of a prosperous life is merely to have his head above the surface with another gentleman underfoot.

All languages are spoken in Hell, but chiefly those of southeastern Europe. I do not say that a man fresh from the fields or the factories of Europe—even of southeastern Europe—may not be a good man; I say only that, as a matter of fact, he commonly is not. Let us not deny him his grievance: he works—when he works—for men no better than himself. He is required, in many instances, to take a part of his pay in "truck" at prices of breathless altitude; and the pay itself is inadequate—hardly more than double what he could get in his own country. Against all this his cry is

justified; but his rioting and assassination are not—not even when directed against the property and persons of his employers. When directed against the persons of other laborers, who choose to exercise the fundamental human right to work for whom and for what pay they please—when he denies this right, and with it the right of organized society to exist, the necessity of shooting him is not only apparent; it is conspicuous and imperative. That he and his kind, of whatever nationality, are usually forgiven this just debt of nature and suffered to execute, like rivers, their annual spring rise constitutes the most valid of the many indictments that decent Americans by birth or adoption find against the feeble form of government under which their country groans. A nation that will not enforce its laws has no claim to the respect and allegiance of its people.

This “citizen soldiery” business is a ghastly failure. The National Guard is not worth the price of its uniforms. It is intended to be a Greater Constabulary: its purpose is to suppress disorders with which the civil authorities are too feeble to cope. How often does it do so? Mostly it fraternizes with, or is cowed or beaten by, the savage mobs which it is called upon to kill. In a country with a competent militia and competent men to use it there would be crime enough and some to spare, but no rioting. Rioting in a republic is without excuse. If we have bad laws, or if our good laws are not enforced; if corporations and capital are “tyrannous and strong;” if white men murder one another and black men outrage white women, all this is our own fault—the fault of those, among others, who seek redress or revenge by rioting and lynching. The people of a republic have always as good government, as good industrial conditions, as effective protection of person, property and liberty, as they merit. They can have whatever they have the honesty to desire and the sense to set about getting in the right way. If as citizens of a republic we lack the virtue and intelligence rightly to use the supreme power of the ballot so that it really

executes a freeman’s will
As lightning does the will of God

we are unfit to be citizens of a republic, undeserving of peace, prosperity and liberty, and have no right to rise against conditions due to our moral and intellectual delinquency. There is a simple way, Messieurs the Masses, to correct public evils: put wise and good men into power. If you can not do that for you are not yourselves wise, or will not for you are not yourselves

good, you deserve to be oppressed when you submit and shot when you rise.

To shoot a rioter or lyncher is a high kind of mercy. Suppose that twenty-five years ago (the longer ago the better) two or three criminal mobs in succession had been exterminated in that way, “as the law provides.” Suppose that several scores of lives had been so taken, including even those of “innocent bystanders”—though that kind of angel does not abound in the vicinity of mobs. Suppose that no demagogue judges had permitted officers in command of the “firing lines” to be persecuted in the courts. Suppose that these events had writ themselves large and red in the public memory. How many lives would this have saved? Just as many as since have been taken and lost by rioters, plus those that for a long time to come will be taken. Make your own computation from your own data; I insist only that a rioter shot in time saves the shooting of nine.

You know—you, the People—that all this is true. You know that in a republic lawlessness is villainy entailing greater evils than it cures—that it cures none. You know that even the “money power” is powerful only through your own dishonesty and cowardice. You know that nobody can bribe nor intimidate a legislator or voter who will not take a bribe nor suffer himself to be intimidated—that there can be no “money power” in a nation of honorable and courageous men. You know that “bosses” and “machines” can not control you if you will not suffer them to divide you into “parties” by playing upon your credulity and senseless passions. You know all this, and know it all the time. Yet not a man has the courage to stand forth and say to your faces what you know in your hearts. Well, Messieurs the Masses, I don’t consider you dangerous—not very. I have not observed that you want to tear anybody to pieces for confessing your sins, even if at the same time he confess his own. From a considerable experience in that sort of thing I judge that you rather like it, and that he whom, secretly, you most despise is he who echoes back to you what he is pleased to think you think, and flatters you for gain. Anyhow, for some reason, I never hear you speak well of newspaper men and politicians, though in the shadow of your disesteem they get an occasional gleam of consolation by speaking fairly well of one another.

WRITERS OF DIALECT

I

WITH regard to dialect, the literary law, I take it, is about this: To be allowable in either verse or prose it must be the mother-speech, not only of the characters using it, but of the writer himself, who, also, must be unable to write equally well in the larger tongue. This was the case with Burns. Had he not been to the manner born how absurd it would have been in him to write for the few who, naturally or by study and with difficulty, can understand, instead of the many who read and love good English! For my part, I am unable to read Burns with satisfaction; and I am steadfast in the conviction that, excepting among his countrymen, few of those who parrot his praise are better able than I. Of another thing I am tolerably well assured, albeit it is nothing to the purpose, namely, that Burns was more wit than poet. Upon that proposition I am ready to do battle with all Caledonia, the pipers alone excepted.

In humorous and satirical work like, for example, *The Biglow Papers*, the law is relaxed, even suspended; and in serious prose fiction if the exigencies of the narrative demand the introduction of an unlettered hind whose speech would naturally be “racy of the soil” he must needs come in and sport the tangles of his tongue. But he is to be got rid of as promptly as possible—preferably by death. The making of an entire story out of the lives and loves and lingoes of him and his co-pithecans—that is effrontery. If it be urged in deprecation of this my view that it is incompatible with relish of and respect for, Miss Mary Wilkins Freeman, Miss Mary Murfree, Mr. Hamlin Garland and other curled darlings of the circulating libraries, I candidly confess that it is open to that objection. Of all such offenders against sweetness and sense I have long cherished a comfortable conviction that it were better if instead of writing things “racy of the soil” they would till it.

The talk of intelligent persons in an unfamiliar language is a legitimate literary “property,” but the talk of ignorant persons misusing their own language has value and interest to nobody but other ignorant persons and,

possibly, the philologist. Literature, however, is not intended for service in advancing the interests of philology. The “general reader” whose interest in the characters of a tale is quickened by their faulty speech may reasonably boast that the ties of affinity connecting him with their intellectual condition have not been strained by stretching: it is not overfar from where he is to where he came from.

For several months the booksellers of the principal cities in this country reported that the book *David Harum* sold better than any other. The sales went into the hundreds of thousands. It was reviewed with acclamation by all the popular newspapers and magazines, stared at you from every “centre table” and was flung into your ears whenever you had the hardihood to enter a “parlor.” *David Harum* is one of the most candidly vulgar and stupid books ever proffered to the taste and understanding of “the general reader.” It is of course largely written in “dialect”—that is, in the loutly locution of an illiterate clown making a trial at his mother-speech. Its “dialect” is so particularly offensive that I suppose it to be a “transcript from nature:” persons from whom it is possible would certainly not deny themselves the happiness of speaking it; and the book may have some value to the hardy philologist tracing backward the line of linguistic evolution to the grunt of the primeval pig. To record the vocal riddances of the ignorant may be one of the purposes of popular fiction, for anything that I know, but at least its authors might, in the interest of art, charge its horrible words with something that one unaffected by softening of the brain might think to be thoughts; and perhaps they would if that pandemic infirmity had not marked them for its own.

Male and female created He them. Mary E. Wilkins Freeman furnishes forth her annual output of New-English antiques and detestables, filing their teeth with their tongues, to the inexpressible uncomfoting of the auditory nerve. Mary Murfree, in perpetual session on the Delectable Mountains, with a lapful of little clay-eaters and snuff-rubbers, sweats great beads of blood to build the lofty crime and endow it with enough galvanic vitality to stand alone while she reaches for more mud for a new creation. There follows an interminable line of imitators and imitatresses, causing two “dialects” to grow where but one grew before, and rabbiting the literary preserve with a multiplication of impossibles to speak them. And we forbid them not, for of such is the kingdom of American letters.

Now, the “dialect” of which these persons are so enamored as to fill whole volumes with it is not dialect; it is simply English as spoken by none but uneducated persons and “recorded” by those to whom ignorance is attractive and seems picturesque. To a sane intelligence it is neither. Such an intelligence regards it with tolerance or aversion—that depends on whether in life it is modest or presumptuous; in letters, subordinate and incidental or dominant and essential. The writers named—they and their literary copulists, an innumerable commonalty—love ignorance for its own sake. They seem to think, and indubitably do think, that the lives and adventures, the virtues and vices, joys and sorrows of the illiterate are more interesting than those prone to grammar and ablution. To those fortuitous collocations of peasant instincts and pithecan intuitions which these writers call their understandings a sentiment is deemed to have an added value when expressed in coarse and faulty speech. So they give us whole books of it, coddle the resulting popularity as “fame” and prosper abundantly by their sin.

There are dialects which in literary work are legitimate and acceptable—to those who understand. That of Burns, for example, is spoken by thousands of cultivated persons and was his own mother-tongue. He erred in writing in it, as do all having command of the better and more spacious speech that assures a wider attention, but in so doing, he broke no laws of taste nor of sense. The matter is simple enough. A true dialect is legitimate; the faulty speech of an educated person in an unfamiliar tongue is legitimate, as is that of a child; but the lame locution of the merely ignorant—the language of the letterless—that is not dialect, and in any quantity in excess of an amount that may be needful in fiction for *vraisemblance*, or in verse for humor, is reasonless and offensive. As to poetry, our literature contains no line of that in any such speech. The muse is not so feasible; she does not submit herself to the embrace of a yokel—not even to a Tennyson wearing the smock of a northern farmer.

In fiction the limits of dialect that is not dialect are plainly defined, not by usage of the masters, for none than masters go more often wrong—as none but they can afford to do—but by reason and the sense of things. If in evolution of his plot the story teller find it expedient to seek assistance from the “man o’ the people” as a subordinate character, that worthy person must needs use the speech of his tribe; as actors, having to wear something—a

regrettable necessity—may garb themselves in the costume of the time of the play, however hideous it may be. But beyond this the teller of stories that are not true is denied the right to go. To take for hero or heroine a person unable to speak the language of the tale, whose conversations are turbid swirls in the clear stream of the narrative, is an affront justifiable only by a moral purpose presumably in equal need of justification.

II

One reads Mr. Hay's earlier poems with a thrill of pride. They open glimpses of unselfish courage and sublime devotion compared with which the prancing pageantry of Homer afflicts us like the cheap tinsel of the melodrama.

Such is the serious judgment of a reputable writer living in the capital of the nation. It has a particular reference to "Little Breeches" and "Jim Bludso," which are not poems at all, but formless blobs of coarse, rank sentimentality in the speech of snuff-rubbers and clay-eaters—the so-called "dialect." They are no better and could not be worse than the "Hoosier" horrors of Riley and the "barrack-room" afflictions of Kipling. I do not doubt that Hay's dislike of them and his wish that they might be forgotten incited him to literary silence, whereby we are deprived of the poetry that he might have given us had he remained in the field. There is not a true poet in this country who has not experienced the deep disgust of observing the superior "popularity" of his own worst work. That here and there a few should give up in despair, taking to politics, to business, to any coarse pursuit "understood of the people," is natural and not to be condemned. These accept their dreadful fame as a punishment fitting the crime, and promise atonement by resolving to write no more "dialect poetry" while stealing is more honorable and indigence more interesting.

John Hay was a true poet; so is Riley; so is Kipling. In addition to their panderings to peasants all have written well. At their best they stir the blood and thrill the nerves of all who can be trusted to feel because taught to think. Yet the late Charles A. Dana, who for years successfully posed as a judge of poetry, had at last the indiscretion to disclose himself by a specific utterance of his taste: he pronounced Kipling's "Gunga Din" one of the greatest of English poems! After that there was no more to say about Dana, but Dana had not the reticence to say it. Poetry, like any other art, is a matter of manner. If the manner is that of a clown the matter will not

redeem it, but, as the dyer's hand is "subdued to what it works in," will itself be smirched by its environment. English of the cornfield and the slum is suited to certain kinds of humor and in moderation may itself be amusing, but it has no place in serious or sentimental composition, either verse or prose. Persons writing it confess their peasant understandings, and those who like "dialect poems" like them because they do not know any better than to like them, and that's all there is to it.

The prose writer whom I have quoted probably does know better, but prefers to march with the procession. Since he mentions Homer and Tennyson (to affirm the greater glory of the author of "Little Breeches" and "Jim Bludso"), perhaps he will permit himself to be asked if he sees no "unselfish courage" in Hector?—no "sublime devotion" in Penelope?—none in Enid?—nothing magnanimous in Arthur's tenderness to Guinevere? Does he think these noble qualities would shine with a diviner light in the character of a corn-fed lout of the stables, a whiskey-sodden riverman or a slattern of the slums?

The higher virtues are not a discovery of yesterday; they were known as long ago as last week; and some of us who affect an acquaintance with antiquity profess to have found traces of them in the poetry of an even earlier period, before all men began to be born equal. In "the glory that was Greece and the grandeur that was Rome" there were singing pigs, as there are to-day, and doubtless they had their special wallows with mud of a particular brew; but they were not permitted to thrust their untidy muzzles into the sweet water of the Pierian Spring, turn it into slime and scatter plenty of it o'er a smiling land. It has remained for the "fierce democracies" of the Brand-New World to impose upon letters the law of the Dominion of Dirt.

The leader of the New Movement is indubitably Mr. James Whitcomb Riley, and here is an example of his work. It is called "His Pa's Romance," and these two passages are quoted with effusion by one of the "critics":

Elsie lisps so, she can't say
Her own name, ist any way
She says 'Elthy'—like they wuz
Feathers on her words, an' they
Ist stuck on her tongue like fuzz.

How charming!—it affects the sensibilities like the ripple of a rill of buttermilk falling into a pig-trough. “Ist,” by the way, means (to an idiot) “just”—it is not easy to say why. Here followeth the other inspiring passage:

One time
Elsie start to say the rhyme
“Thing a thong o’ thixpenth”—whee!
I ist yell; an’ ma say I’m
Unpolite as I can be.

If this is not poetry, what kind of an abysmal imbecility has it the characteristic distinction to be? Mr. Riley turns off this stuff by the linear mile, it is received with enthusiasm and reviewed with acclamation by nearly every “literary critic” in America, and the peasants whose taste they share and ignorance reflect are generous enough to give him a living. Think not, observer from another land, whose eye may chance to note these lines, that all these “dialect poets” wear smocks and toil in the fields; it is the peculiar glory of this great country that its peasants wear as good clothing, pursue as high vocations and talk as glibly about art and literature as anybody. Say not in your lack of light that the American gentleman has boorish taste; say, rather, that the American boor has visible signs of the prosperity of a gentleman, and to an alien eye is not readily distinguishable from his betters.

III

To put a good thought, a tender sentiment, a passionate emotion into faulty words is to defile it. Does a precious stone acquire an added value from a setting of brass? Is a rare and excellent wine better when drunk out of a gourd?

In Herman Scheffauer’s first book, *Of Both Worlds*, are two little poems of such naturalness, simplicity and beauty that I hardly know of anything better in their kind. My purpose in quoting them here is, partly, to bring them to the attention of those who may be unfamiliar with Mr. Scheffauer’s work, but chiefly to suggest to the “dialect poets” that they undertake to give them an added charm by rewriting them in their own manner.

THE SLEEPERS

The winds lie hushed in the hill
And the waves upon the seas;
The birds are mute and still,
Deep in their dreaming trees;
The earth lies dumb in night,
And the stars in their degrees
Sleep with the suns in space,
With angels, with seraphs bright,
In the light of God His face.

Softly lie the heads
Of the sleepers in their beds;
But the sleepers in the ground—
They alone sleep sweet and sound,
They alone know rest profound.
Fear not—soon a rest as deep
Comes to thee—thou, too, shalt sleep.

MISERERE

The last few prayers are done,
The pall and shroud are spread;
Seven tapers at thy feet
And seven at thy head.
Thy hands are crossed upon
Thy bosom white where now
Thy heart is stilled. O Death,
How beautiful art thou!

CRIME AND ITS CORRECTIVES

I

SOCIOLOGISTS have long been debating the theory that the impulse to commit crime is a disease, and the ayes appear to have it—the disease. It is gratifying and profitable to have the point settled: we now know where we are and can take our course accordingly. It has for a number of years been known to all but a few old physicians—survivals from an exhausted *régime*—that all disease is caused by bacilli, which worm themselves into the organs that secrete health and enjoin the performance. The medical conservatives attempt to whittle away the value and significance of this theory by affirming its inadequacy to account for such disorders as broken heads, sunstroke, superfluous toes, home-sickness, burns and strangulation on the gallows; but against the testimony of so eminent bacteriologists as Drs. Koch and Pasteur their carping is as that of the idle angler. The bacillus is not to be denied; he has brought his bedding and is here to stay until evicted. Doubtless we may confidently expect his eventual eviction by a fresher and more ingenious disturber of the physiological peace, but the bacillus is now chief among ten thousand evils and it is futile to attempt to “read him out of the party.”

It follows that in order to deal intelligently with the criminal impulse in our afflicted fellow-citizens we must discover the bacillus of crime. To that end I think that the bodies of hanged assassins and such persons of low degree as have been gathered to their fathers by the cares of public office or consumed by the rust of inactivity in prison should be handed over to the microscopists for examination. The bore, too, offers a fine field for research, and might justly enough be examined alive. Whether there is one general—or as the ancient and honorable orders prefer to say, “grand”—bacillus, producing a general (or grand) criminal impulse covering a multitude of sins, or an infinite number of well-defined and several bacilli, each inciting to a particular crime, is a question to the determination of which the most distinguished microscopist might be proud to devote the powers of his eye. If the latter is the case it will somewhat complicate the

treatment, for clearly the patient afflicted with chronic robbery will require medicines different from those that might be efficacious in a gentleman suffering from sporadic theft or a desire to represent his district in the Assembly. But it is permitted to us to hope that all crimes, like all arts, are essentially one; that murder, arson and conservatism are but different symptoms of the same physical disorder, at the back of which is a microbe vincible to a single medicament, albeit this awaits discovery.

In the fascinating theory of the unity of crime we may not unreasonably hope to find another evidence of the brotherhood of man, another spiritual bond tending to draw the several classes of society more closely together.

II

By advocating painless removal of incurable idiots and lunatics, incorrigible criminals and irreclaimable drunkards from this vale of tears Dr. W. Duncan McKim provoked many a respectable but otherwise blameless person to convulsions of great complexity and power. Yet Dr. McKim seemed only to anticipate the trend of public opinion and forecast its crystalization into law. It is rapidly becoming a question, not of what we ought to do with these unfortunates, but what we shall be compelled to do. Study of the statistics of the matter shows that in all civilized countries mental and moral diseases are increasing, proportionately to population, at a rate which in the course of a few generations will make it impossible for the healthy to care for the afflicted. To do so will require the entire revenue that it is possible to raise by taxation—will absorb all the profits of all the industries and professions and make deeper and deeper inroads upon the capital from which they are derived. When it comes to that there can be but one result. High and humanizing sentiments are angel visitants, whom we entertain with pride and pleasure, but when the entertainment becomes too costly to be borne we “speed the parting guest” forthwith. And it may happen that in inviting to his vacant place a less exacting successor—in replacing sentiment with reason—we shall, in this instance, learn to our joy that we do but entertain another angel. For nothing is so heavenly as Reason, nothing so sweet and compassionate as her voice—

Not harsh and crabbed, as dull fools suppose,
But musical as is Apollo's lute.

Is it cruel, is it heartless, is it barbarous to use something of the same care in breeding men and women as in breeding horses and dogs? Here is a determining question: Knowing yourself doomed to hopeless idiocy, lunacy, crime or drunkenness, would you, or would you not, welcome a painless death? Let us assume that you would. Upon what ground, then, would you deny to another a boon that you would desire for yourself?

III

The good American is, as a rule, pretty hard upon roguery, but he atones for his austerity by an amiable toleration of rogues. His only requirement is that he must personally know the rogues. We all “denounce” thieves loudly enough if we have not the honor of their acquaintance. If we have, why, that is different—unless they have the actual odor of the slum or the prison about them. We may know them guilty, but we meet them, shake hands with them, drink with them and, if they happen to be wealthy, or otherwise great, invite them to our houses, and deem it an honor to frequent theirs. We do not “approve their methods”—let that be understood; and thereby they are sufficiently punished. The notion that a knave cares a pin what is thought of his ways by one who is civil and friendly to himself appears to have been invented by a humorist. On the vaudeville stage of Mars it would probably have made his fortune.

I know men standing high in journalism who to-day will “expose” and bitterly “denounce” a certain rascality and to-morrow will be hobnobbing with the rascals whom they have named. I know legislators of renown who habitually raise their voices against the dishonest schemes of some “trust magnate,” and are habitually seen in familiar conversation with him. Indubitably these be hypocrites all. Between the head and the heart of a man of this objectionable kind is a wall of adamant, and neither knows what the other is doing.

If social recognition were denied to rogues they would be fewer by many. Some would only the more diligently cover their tracks along the devious paths of unrighteousness, but others would do so much violence to their consciences as to renounce the disadvantages of rascality for those of an honest life. An unworthy person dreads nothing so much as the withholding of an honest hand, the slow, inevitable stroke of an ignoring eye.

We have rich rogues because we have “respectable” persons who are not ashamed to take them by the hand, to be seen with them, to say that they know them. In such it is treachery to censure them; to cry out when robbed by them is to turn state’s evidence.

One may smile upon a rascal (most of us do so many times a day) if one does not know him to be a rascal, and has not said he is; but knowing him to be, or having said he is, to smile upon him is to be a hypocrite—just a plain hypocrite or a sycophantic hypocrite, according to the station in life of the rascal smiled upon. There are more plain hypocrites than sycophantic ones, for there are more rascals of no consequence than rich and distinguished ones, though they get fewer smiles each. The American people will be plundered as long as the American character is what it is; as long as it is tolerant of successful knaves; as long as American ingenuity draws an imaginary distinction between a man’s public character and his private—his commercial and his personal. In brief, the American people will be plundered as long as they deserve to be plundered. No human law can stop it, none ought to stop it, for that would abrogate a higher and more salutary law: “As ye sow ye shall reap.”

In a sermon by the Rev. Dr. Parkhurst is the passage following:

“The story of all our Lord’s dealings with sinners leaves upon the mind the invariable impression, if only the story be read sympathetically and earnestly, that He always felt kindly towards the transgressor, but could have no tenderness of regard toward the transgression. There is no safe and successful dealing with sin of any kind save as that distinction is appreciated and made a continual factor in our feelings and efforts.”

If Dr. Parkhurst will read his New Testament more understandingly he will observe that Christ’s kindly feeling to transgressors was not to be counted on by sinners of every kind, and it was not always in evidence; for example, when he flogged the moneychangers out of the temple. Nor is Dr. Parkhurst himself any too amiably disposed toward the children of darkness. It was not by mild words and gentle means that he hurled the mighty from their seats and exalted them of low degree. Such revolutions as he set afoot are not made with spiritual rosewater; there must be the contagion of a noble indignation fueled with harder wood than abstractions. The people can not be mustered and incited to action by the spectacle of a

man fighting something that does not fight back. It was men that Dr. Parkhurst was trouncing—not their crimes—not Crime. He may fancy himself “dowered with the hate of hate, the scorn of scorn,” but in reality he does not hate hate but hates the hateful, and scorns, not scorn but the scornworthy.

It is singular with what tenacity this amusing though mischievous superstition keeps its hold upon the human mind—this grave, *bona fide* personification of abstractions and the funny delusion that it is possible to hate or love them. Sin is not a thing; there is no existing object corresponding to any of the mere counter-words that are properly named abstract nouns. One can no more hate sin or love virtue than one can hate a vacuum (which Nature—itself imaginary—was once by the scientists of the period solemnly held to do) or love one of the three dimensions. We may think that while loving a sinner we hate the sin, but that is not so; if anything is hated it is other sinners of the same kind, who are not quite so close to us.

The French have a saying to the effect that to know all is to pardon all; and doubtless with an omniscient insight into the causes of character we should find the field of moral responsibility pretty thickly strewn with extenuating circumstances very suitable indeed for consideration by a god who has had a hand in besetting “with pitfall and with gin” the road we are to “wander in.” But I submit that universal forgiveness would hardly do as a working principle. Even those who are most apt and facile with the incident of the woman taken in adultery commonly cherish a secret respect for the doctrine of eternal damnation; and some of them are known to pin their faith to the penal code of their state. Moreover, there is some reason to believe that the sinning woman, being “taken,” was penitent—they usually are when found out.

“But,” says Citizen Goodheart, who thinks with difficulty, “shall I throw over my friend when he is ‘in trouble’?” Yes, when convinced that he deserves to be in trouble; throw him all the harder and the further because he is your friend. In addition to his particular offense against society he has disgraced *you*. If there are to be lenity and charity let them go to the criminal who has foreborne to involve you in his shame. It were a pretty state of affairs if an undetected scamp, fearing exposure, could make you a co-defendant by so easy a precaution as securing your acquaintance and

regard. Don't throw the first stone, of course, but when convinced that your friend is a proper target, heave away with a right hearty good-will, and let the stone be of serviceable weight and delivered with a good aim.

I care nothing for principles—they are lumber and rubbish. What concerns our happiness and welfare, as affectable by our fellowmen, is conduct. “Principles, not men,” is a rogue’s cry; rascality’s counsel to stupidity, the noise of the duper duping on his dupe. He shouts it most loudly and with the keenest sense of its advantage who most desires inattention to his own conduct, or to that forecast of it, his character. As to sin, that has an abundance of expounders and is already universally known to be wicked. What more can be said against it, and why go on repeating that? The thing is a trifle wordworn, whereas the sinner cometh up as a flower every day, fresh, ingenuous and inviting. Sin is not at all dangerous to society; what does all the mischief is the sinner. Crime has no arms to thrust into the public treasury and the private; no hands with which to cut a throat; no tongue to wreck a reputation withal. I would no more attack it than I would attack an isosceles triangle, or Hume’s “phantasm floating in a void.” My chosen enemy must be something that has a skin for my switch, a head for my cudgel—something that can smart and ache. I have no quarrel with abstractions; so far as I know they are all good citizens.

ON KNOWING ONE'S BUSINESS—AN INSTANCE

NO series of connected and consecutive military events has been so closely analyzed by military students as those marking the first Italian campaign of Napoleon Bonaparte. All expounders of the military art who have had the good fortune to live since its principles were so wonderfully illustrated by that campaign have delighted to use its incidents in exposition. Every student has early learned that he could not afford to neglect it. Even to the “general reader,” unacquainted with the mysteries of strategy and tactics, who in the darkness of his ignorance cherishes the error that war is fortuitous fighting loosely directed to results by physical courage and the will of God, the history of these brilliant operations can hardly fail, when lucidly related, to prove interesting and charming beyond the power of fiction. As related by the mere “historian,” with his port-fire and blood-fumes to emotionalize the situation, it is doubtless as dull reading as the literature of the heart generally. What, in brief, was this remarkable campaign?

In the month of March, 1796, Bonaparte, a boy of twenty-six, untried in independent command, was intrusted with an army of some forty thousand badly clad and inadequately supplied men, with which to invade Italy. He was opposed by Beaulieu, with a well equipped force, Austrians and Sardinians, of fifty thousand. The Alps and Apennines were between. Bonaparte began active operations on the eleventh day of April, 1796. On the seventh day of April, 1797, at Leoben, near Vienna, he received the Austrian Emperor's emissaries, who came to sue for peace, and the war was at an end. During this period of one year less four days, with forces averaging forty-six thousand opposed to forces averaging sixty-one thousand he had in fifteen pitched battles routed one Sardinian army and the six Austrian armies successively sent to drive him out of Italy, only to be driven out themselves. His losses during the campaign in killed, wounded and prisoners were about equal to the numbers of his army at the outset.

The losses that he inflicted upon the enemy were no fewer than one hundred and twenty thousand men and vast quantities of *material*.

How were these astonishing feats of arms performed? Not by the superior courage of his soldiers, for the Austrians then, as they are now, were a brave and warlike people. Not by the “will of God,” whose agency is to the military eye nowhere discernible, and whose political predilections are still unknown. Nor were these admirable results due to “luck,” the “favours of fortune,” the “magic” of genius. They were brought about by the very commonplace method of knowing his business thoroughly and applying the knowledge. There is nothing miraculous in that. It is an open secret which Napoleon himself has explained:

“In war nothing is accomplished but by calculation. During a campaign, whatever is not profoundly considered in all its details is without result. Every enterprise should be systematically conducted; chance alone can not bring success.”

I should be sorry to be understood as affirming the possibility of such military success as Napoleon’s to the mere student of military art, devoid of Napoleon’s genius. On the other hand, Napoleon’s genius would have been futile without his mastery of the art. Military art is no exception to art in general; for eminent achievement is required great natural aptitude, *plus* a comprehensive and minute knowledge of the business in hand. Given these two requisites in the commander, and the army is multiplied by two. For many generations, doubtless, the French will boast of Montenotte, Marengo, Austerlitz, Jena, and Wagram; but every intelligent soldier’s view is that on all these historic fields there was but one victor. To quote his words again:

“It was not the Roman army that conquered Gaul, but Cæsar; it was not the Carthaginian army which, at the gates of Rome, made the Eternal City tremble, but Hannibal; it was not the Macedonian army that marched as far as the Indus, but Alexander; it was not the Prussian army that defended Prussia for seven years against the three most powerful states of Europe, but Frederick.”

The contrary view—the theory of the insignificance of the individual—so persistently urged a generation ago by Mill, and so eagerly accepted by the young philosophers of his period, derives no support from military history.

Tolstoi, it is true, is in full, if somewhat belated, advocacy of it, and professes to find confirmation in the events that he relates in his military novels. And it must be confessed that, as he relates them, they indubitably do seem to justify his view that leaders do not truly lead. With the splendid irresponsibility of the fictionist, he shows that the French people having incurred, somehow, a blind, reasonless impulse to go gadding about Europe, caught up Napoleon, as a stream bursting out of its banks might catch up a sheep or a log, and pushed him along before them. A careful study of the progress through Italy will, I think, show that at least he did something toward reducing the friction incident to the movement.

Any one really believing in unimportance of the individual must be prepared to affirm that a chance bullet finding a lodgment in the brain of the commander of the Army of Italy at Montenotte would have made but little difference in the conduct of the campaign and the later history of Europe; and any one prepared to affirm this may justly boast himself impregnable to argument, through induration of the understanding.

The history of the military operations that we have been considering has never been better told than in a book entitled *Napoleon Bonaparte's First Campaign*—it should be remembered that he was then simply General Bonaparte. The author of the book is Lieutenant Herbert H. Sargent,^[1] of the Army. Nothing could well exceed the clarity with which the author has told his story; and nothing that I have seen in military literature is more admirable than his professional but untechnical comments on its successive stages. Everything is made so clear that the benighted civilian of the anti-West Point sort, the fearfully and wonderfully bepistoled swashbuckler of the frontier, the gilded whiskey-soldier of the National Guard and even the self-taught strategist of the press can comprehend it all without a special revelation from Heaven. Those conscious of a desire, however vague and formless, to acquire such a knowledge of military science and art as will give them a keener interest in “war news” that is not “bluggy” than they ever had in that which reeks with gore and “multiplies the slain” will find in Lieutenant Sargent a guide, philosopher and friend for whom they cannot be sufficiently thankful to the God that bestowed him.

[1] After distinguished service as colonel of volunteers in the Cuban and Philippine wars, this great soldier is now retired as major in the regular army. Before retirement he published two other books, *The Campaign of Marengo* and *The Campaign of Santiago de Cuba*, both characterized by all the qualities so conspicuous in his first book—qualities that are themselves a fine result of “knowing one’s business.”

1912.

A TRADE OF REFUGE

THERE is no security—even the life of a steeple-climber is held by a precarious tenure. One cannot always be clinging to a spire in “the intense inane;” one must sometimes descend to “this place of wrath and tears” in order to eat and write poetry for the newspapers; and then the manifold perils besetting a surface existence begin their deadly work, and man that is born of woman is of few days and full of surprises.

Once upon a time, ’tis said, a foolhardy steeple-jack took his life in his hands and ventured down among us. Doubtless he wanted but little here below; certainly he did not want that little long, for he made acquaintance with a trolley car and passed away forthwith. If in the moment of disaster “beneath thy wheels, O Juggernath,” it was granted to him to hear the comforting “I told you so” of some fellow craftsman in midheaven, how acutely he must have sympathized with us unfortunates condemned to dwell in the midst of alarms from the cradle to the grave!

Our hard lot must have touched him nearly; participation in its disadvantages must have brought it home to his business and bosom with a more compelling compassion than that of the tempest-tossed mariner who prays, “God help the poor devils on shore such a night as this!” In the consciousness of that sympathy—transient though it necessarily had to be—let us take heart and hope, to confront the perils of our environment. Let us walk our appointed ways among them with no less circumspection, but a superior resignation.

We cannot all be steeple-climbers. We cannot all go down to the sea in ships and know

The exulting sense, the pulse’s maddening play,
That thrill the wanderer on the trackless way

as he reflects on his immunity from the insistent vehicle, the stealthy sewer gas, the subterranean steam boiler, the Conqueror Dog and all the other maleficent agencies unknown to a life on the ocean wave.

Some there must be to till the soil (mostly malarial), some to hold the offices, some to feed the dogs, some to tear up the streets, and many—oh, so many!—to write poetry for the magazines. Ships must be built for the happy, happy mariner, and steeples to exalt the prudent climber above the perilous region of industrial discontent. The timorous aviator, in pursuit of longevity must be supplied with his apparatus. By rustic and urban industries soldiers must be maintained in the security of service *in partibus infidelium* where the devastating open coalhole comes not to execute its prank, and missionaries outfitted to grasp the longevital advantages of labor among the cannibals. In the formation of trusts to bring the producer and consumer together in the poor-house we must toil in the pestilential atmosphere of Wall Street. The necessity of making “elevators” to dispose of the surplus population in our congested cities is imperious.

Most of these needful activities have to be conducted on the surface of the land, amidst the horrors of peace and the deadly devices of an advanced civilization. It requires the greater and more courageous part of the population to carry them on; only a few shrinking souls can afford to seek safety on the steeples. But the lives of these have a peculiar value to the millions engaged in the perilous trades that go on below them. They are survivals of the time that was, forerunners of the time to be. They serve to remind us of that blessed barbarism—that golden age when our sylvan forefather gave himself a chance to live out half his life; and in this dark period of transition they foreshadow that brighter and better time when the land will be studded with abundant steeples of refuge for all excepting condemned criminals and enough ruffian officers of the law to operate, for their extinction, a few of the more deadly appliances and modern conveniences of civilization.

The steeple-jack is a precious possession—let him not be cast out. In order that he may not be compelled to incur the perils of the street, let him be clothed and fed with a kite.

THE DEATH PENALTY

I

“DOWN with the gallows!” is a cry not unfamiliar in America. There is always a movement afoot to make odious the just principle of “a life for a life”—to represent it as “a relic of barbarism,” “a usurpation of the divine authority,” and the rest of it. The law making murder punishable by death is as purely a measure of self-defense as is the display of a pistol to one diligently endeavoring to kill without provocation. It is in precisely the same sense an admonition, a warning to abstain from crime. Society says by that law: “If you kill one of us you die,” just as by display of the pistol the individual whose life is attacked says: “Desist or be shot.” To be effective the warning in either case must be more than an idle threat. Even the most unearthly reasoner among the anti-hanging unfortunates would hardly expect to frighten away an assassin who knew the pistol to be unloaded. Of course these queer illogicians can not be made to understand that their position commits them to absolute non-resistance to any kind of aggression; and that is fortunate for the rest of us, for if as Christians they frankly and consistently took that ground we should be under the miserable necessity of respecting them.

We have good reason to hold that the horrible prevalence of murder in this country is due to the fact that we do not execute our laws—that the death penalty is threatened but not inflicted—that the pistol is not loaded. In civilized countries where there is enough respect for the laws to administer them, there is enough to obey them. While man still has as much of the ancestral brute as his skin can hold without cracking we shall have thieves and demagogues and anarchists and assassins and persons with a private system of lexicography who define murder as disease and hanging as murder, but in all this welter of crime and stupidity are areas where human life is comparatively secure against the human hand. It is at least a significant coincidence that in these the death penalty for murder is fairly well enforced by judges who do not derive any part of their authority from those for whose restraint and punishment they hold it. Against the life of

one guiltless person the lives of ten thousand murderers count for nothing; their hanging is a public good, without reference to the crimes that disclose their deserts. If we could discover them by other signs than their bloody deeds they should be hanged anyhow. Unfortunately we must have a death as evidence. The scientist who will tell us how to recognize the potential assassin, and persuade us to kill him, will be the greatest benefactor of his century.

What would these enemies of the gibbet have?—these lineal descendants of the drunken mobs that hooted the hangman at Tyburn Tree; this progeny of criminals, which has so defiled with the mud of its animosity the noble office of public executioner that even “in this enlightened age” he shirks his high duty, entrusting it to a hidden or unnamed subordinate? If murder is unjust of what importance is it whether its punishment by death be just or not?—nobody needs to incur it. Men are not drafted for the death penalty; they volunteer. “Then it is not deterrent,” mutters the gentleman whose rude forefather hooted the hangman. Well, as to that, the law which is to accomplish more than a part of its purpose must be awaited with great patience. Every murder proves that hanging is not altogether deterrent; every hanging, that it is somewhat deterrent—it deters the person hanged. A man’s first murder is his crime, his second is ours.

The socialists, it seems, believe with Alphonse Karr, in the expediency of abolishing the death penalty; but apparently they do not hold, with him, that the assassins should begin. They want the state to begin, believing that the magnanimous example will effect a change of heart in those about to murder. This, I take it, is the meaning of their assertion that death penalties have not the deterring influence that imprisonment for life carries. In this they obviously err: death deters at least the person who suffers it—he commits no more murder; whereas the assassin who is imprisoned for life and immune from further punishment may with impunity kill his keeper or whomsoever he may be able to get at. Even as matters now are, incessant vigilance is required to prevent convicts in prison from murdering their attendants and one another. How would it be if the “life-termer” were assured against any additional inconvenience for braining a guard occasionally, or strangling a chaplain now and then? A penitentiary may be described as a place of punishment and reward; and under the system proposed, the difference in desirableness between a sentence and an

appointment would be virtually effaced. To overcome this objection a life sentence would have to mean solitary confinement, and that means insanity. Is that what these gentlemen propose to substitute for death?

The death penalty, say these amiables and futilitarians, creates blood-thirstiness in the unthinking masses and defeats its own ends—is itself a cause of murder, not a check. These gentlemen are themselves of “the unthinking masses”—they do not know how to think. Let them try to trace and lucidly expound the chain of motives lying between the knowledge that a murderer has been hanged and the wish to commit a murder. How, precisely, does the one beget the other? By what unearthly process of reasoning does a man turning away from the gallows persuade himself that it is expedient to incur the danger of hanging? Let us have pointed out to us the several steps in that remarkable mental progress. Obviously, the thing is absurd; one might as reasonably say that contemplation of a pitted face will make a man wish to go and catch smallpox, or the spectacle of an amputated limb on the scrap-heap of a hospital tempt him to cut off his arm or renounce his leg.

“An eye for an eye and a tooth for a tooth,” say the opponents of the death penalty, “is not justice; it is revenge and unworthy of a Christian civilization.” It is exact justice: nobody can think of anything more accurately just than such punishments would be, whatever the motive in awarding them. Unfortunately such a system is not practicable, but he who denies its justice must deny also the justice of a bushel of corn for a bushel of corn, a dollar for a dollar, service for service. We can not undertake by such clumsy means as laws and courts to do to the criminal exactly what he has done to his victim, but to demand a life for a life is simple, practicable, expedient and (therefore) right.

“Taking the life of a murderer does not restore the life he took, therefore it is a most illogical punishment. Two wrongs do not make a right.”

Here’s richness! Hanging an assassin is illogical because it does not restore the life of his victim; incarceration is logical; therefore, incarceration does—*quod erat demonstrandum*.

Two wrongs certainly do not make a right, but the veritable thing in dispute is whether taking the life of a life-taker is a wrong. So naked and unashamed an example of *petitio principii* would disgrace a debater in a

pinafore. And these wonder-mongers have the effrontery to babble of “logic”! Why, if one of them were to meet a syllogism in a lonely road he would run away in a hundred and fifty directions as hard as ever he could hook it. One is almost ashamed to dispute with such intellectual cloutlings.

Whatever an individual may rightly do to protect himself society may rightly do to protect him, for he is a part of itself. If he may rightly take life in defending himself society may rightly take life in defending him. If society may rightly take life in defending him it may rightly threaten to take it. Having rightly and mercifully threatened to take it, it not only rightly may take it, but expediently must.

II

The law of a life for a life does not altogether prevent murder. No law can altogether prevent any form of crime, nor is it desirable that it should. Doubtless God could so have created us that our sense of right and justice could have existed without contemplation of injustice and wrong; as doubtless he could so have created us that we could have felt compassion without a knowledge of suffering; but he did not. Constituted as we are, we can know good only by contrast with evil. Our sense of sin is what our virtues feed upon; in the thin air of universal morality the altar-fires of honor and the beacons of conscience could not be kept alight. A community without crime would be a community without warm and elevated sentiments—without the sense of justice, without generosity, without courage, without mercy, without magnanimity—a community of small, smug souls, uninteresting to God and uncoveted by the Devil. We can have, and do have, too much of crime, no doubt; what the wholesome proportion is none can say. Just now we are running a good deal to murder, but he who can gravely attribute that phenomenon, or any part of it, to infliction of the death penalty, instead of to virtual immunity from any penalty at all, is justly entitled to the innocent satisfaction that comes of being a simpleton.

III

The New Woman is against the death penalty, naturally, for she is hot and hardy in the conviction that whatever is wrong. She has visited this world in order to straighten things about a bit, and is in distress lest the number of things be insufficient to her need. The matter is important variously; not

least so in its relation to the new heaven and the new earth that are to be the outcome of woman suffrage. There can be no doubt that the vast majority of women have sentimental objections to the death penalty that quite outweigh such practical considerations in its favor as they can be persuaded to comprehend. Aided by the minority of men afflicted by the same mental malady, they will indubitably effect its abolition in the first lustrum of their political "equality." The New Woman will scarcely feel the seat of power warm beneath her before giving to the assassin's "unhand me, villain!" the authority of law. So we shall make again the old experiment, discredited by a thousand failures, of preventing crime by tenderness to caught criminals. And the criminal uncaught will treat us to a quantity and quality of crime notably augmented by the Christian spirit of the new *régime*.

IV

As to painless executions, the simple and practical way to make them both just and expedient is the adoption by murderers of a system of painless assassinations. Until this is done there seems to be no call to renounce the wholesome discomfort of the style of executions endeared to us by memories and associations of the tenderest character. There is, I fancy, a shaping notion in the observant mind that the penologists and their allies have gone about as far as they can safely be permitted to go in the direction of a softer suasion of the criminal nature toward good behavior. The modern prison has become a rather more comfortable habitation than the dangerous classes are accustomed to at home. Modern prison life has in their eyes something of the charm and glamor of an ideal existence, like that in the Happy Valley from which Rasselas had the folly to escape. Whatever advantages to the public may be secured by abating the rigors of imprisonment and inconveniences incident to execution, there is this objection: it makes them less deterrent. Let the penologers and philanthropers have their way and even hanging might be made so pleasant and withal so interesting a social distinction that it would deter nobody but the person hanged. Adopt the euthanasian method of electricity, asphyxia by smothering in rose-leaves, or slow poisoning with rich food, and the death penalty may come to be regarded as the object of a noble ambition to the *bon vivant*, and the rising young suicide may go and kill somebody else instead of himself, in order to receive from the public executioner a happier dispatch than his own 'prentice hand can assure him.

But the advocates of agreeable pains and penalties tell us that in the darker ages, when cruel and degrading punishment was the rule, and was freely inflicted for every light infraction of the law, crime was more common than it is now; and in this they appear to be right. But one and all, they overlook a fact equally obvious and vastly significant: that the intellectual, moral and social condition of the masses was very low. Crime was more common because ignorance was more common, poverty was more common, sins of authority, and therefore hatred of authority, were more common. The world of even a century ago was a different world from the world of to-day, and a vastly more uncomfortable one. The popular adage to the contrary notwithstanding, human nature was not by a long cut the same then that it is now. In the very ancient time of that early English king, George III, when women were burned at the stake in public for various offenses and men were hanged for “coining” and children for theft, and in the still remoter period, (*circa* 1530) when poisoners were boiled in several waters, divers sorts of criminals were disemboweled and some are thought to have undergone the *peine forte et dure* of cold-pressing (an infliction which the pen of Hugo has since made popular—in literature),—in these wicked old days crime flourished, not because of the law’s severity, but in spite of it. It is possible that our lawmaking ancestors understood the situation as it then was a trifle better than we can understand it on the hither side of this gulf of years, and that they were not the reasonless barbarians that we think them to have been. And if they were, what must have been the unreason and barbarity of the criminal element with which they had to deal?

I am far from thinking that severity of punishment can have the same restraining effect as probability of some punishment being inflicted; but if mildness of penalty is to be superadded to difficulty of conviction, and both are to be mounted upon laxity in detection, the pile will be complete indeed. There is a peculiar fitness, perhaps, in the fact that all these pleas for comfortable punishment should be urged at a time when there appears to be a general disposition to inflict no punishment at all. There are, however, still a few old-fashioned persons who hold it obvious that one who is ambitious to break the laws of his country will not with so light a heart and so airy an indifference incur the peril of a harsh penalty as he will the chance of one more nearly resembling that which he would himself select.

After lying for more than a century dead I was revived, dowered with a new body, and restored to society. The first thing of interest that I observed was an enormous building, covering a square mile of ground. It was surrounded on all sides by a high, strong wall of hewn stone upon which armed sentinels paced to and fro. In one face of the wall was a single gate of massive iron, strongly guarded. While admiring the cyclopean architecture of the “reverend pile” I was accosted by a man in uniform, evidently the warden, with a cheerful salutation.

“Colonel,” I said, “pray tell me what is this building.”

“This,” said he, “is the new state penitentiary. It is one of twelve, all alike.”

“You surprise me,” I replied. “Surely the criminal element must have increased enormously.”

“Yes, indeed,” he assented; “under the Reform *régime*, which began in your day, crime became so powerful, bold and fierce that arrests were no longer possible and the prisons then in existence were soon overcrowded. The state was compelled to erect others of greater capacity.”

“But, Colonel,” I protested, “if the criminals were too bold and powerful to be taken into custody, of what use are the prisons? And how are they crowded?”

He fixed upon me a look that I could not fail to interpret as expressing a doubt of my sanity. “What!” he said, “is it possible that the modern penology is unknown to you? Do you suppose we practise the antiquated and ineffective method of shutting up the rascals? Sir, the growth of the criminal element has, as I said, compelled the erection of more and larger prisons. We have enough to hold comfortably all the honest men and women of the state. Within these protecting walls they carry on all the necessary vocations of life excepting commerce. That is necessarily in the hands of the rogues, as before.”

“Venerated representative of Reform,” I exclaimed, wringing his hand with effusion, “you are Knowledge, you are History, you are the Higher Education! We must talk further. Come, let us enter this benign edifice; you shall show me your dominion and instruct me in the rules. You shall propose me as an inmate.”

I walked rapidly to the gate. When challenged by the sentinel, I turned to summon my instructor. He was nowhere visible. I turned again to look at the prison. Nothing was there: desolate and forbidding, as about the broken statue of Ozymandias,

The lone and level sands stretched far away.

RELIGION

I

THIS is my ultimate and determining test of right—"What, in the circumstances, would Jesus have done?"—the Jesus of the New Testament, not the Jesus of the commentators, theologians, priests and parsons. The test is perhaps not infallible, but it is exceedingly simple and gives as good practical results as any. I am not a Christian, but so far as I know, the best and truest and sweetest character in literature, next to Buddha, is Jesus Christ. He taught nothing new in goodness, for all goodness was ages old before he came; but with an almost infallible intuition he applied to life and conduct the entire law of righteousness. He was a moral lightning calculator: to his luminous intelligence the statement of the problem carried the solution—he could not hesitate, he seldom erred. That upon his deeds and words was founded a religion which in a debased form persists and even spreads to this day is attestation of his marvelous gift: adoration is merely a primitive form of approval.

It seems a pity that this wonderful man had not a longer life under more complex conditions—conditions more nearly resembling those of the modern world and of the future. One would like to be able to see, through the eyes of his biographers, his genius applied to more and other difficult questions. Yet one can hardly go wrong in inference of his thought and act. In many of the complexities and entanglements of modern affairs it is no easy matter to find an answer off-hand to the question, "What is it right to do?" But put it in another way: "What would Christ have done?" and lo! there is light! Doubt spreads her bat-like wings and is away; the sun of truth springs into the sky, splendoring the path of right and masking that of wrong with a deeper shade.

II

Gentlemen of the secular press dealt with the Rev. Mr. Sheldon not altogether fairly. To some very relevant considerations they gave no weight.

It was not fair, for example, to say, as the distinguished editor of the *North American Review* did, that in conducting a daily newspaper for a week as he conceived that Christ would have conducted it, Mr. Sheldon acted the part of “a notoriety seeking mountebank.” It seldom is fair to go into the question of motive, for that is something upon which one has the least light, even when the motive is one’s own. The motives that dominate us we think simple and obvious; they are in most instances exceedingly complex and obscure. Complacently surveying the wreck and ruin that he has wrought, even that great anarchist, the well-meaning person, can not have entire assurance that he meant as well as the disastrous results appear to him to show.

The trouble with the editor of the *Review* was inability to put himself in another’s place if that happened to be at any considerable distance from his own place. He made no allowance for the difference in the point of view—for the difference, that is, between his mind and the mind of Mr. Sheldon. If the editor had undertaken to conduct a newspaper as Christ would have done he would indeed have been “a notoriety seeking mountebank,” or some similarly unenviable thing, for only a selfish purpose could persuade him to an obviously resultless work. But Mr. Sheldon was different—his was the religious mind—a mind having faith in an “overruling” Providence who can, and frequently does, interfere with the orderly relation of cause and effect, accomplishing an end by means otherwise inadequate to its production. Believing himself a faithful servant of that Power, and asking daily for His interposition in promotion of a highly moral purpose, why should he not have expected His favor to the enterprise? To expect this was, in Mr. Sheldon, natural, reasonable, wise; his folly lay in believing in conditions making it expectable. A person convinced that the law of gravitation is suspended is no fool for walking into a bog. His critic may understand, but Mr. Sheldon could not understand, that Jesus Christ would not edit a newspaper at all.

The religious mind, it should be understood, is not logical. It may acquire, as Whateley’s did, a certain familiarity with the syllogism as an abstraction, but of the syllogism’s practical application, its real relation to the phenomena of thought, the religious mind can know nothing. That is merely to say that a mind congenitally gifted with the power of logic and accessible to its light and leading does not take to religion, which is a

matter, not of reason, but of feeling—not of the head, but of the heart. Religions are conclusions for which the facts of nature supply no major premises. They are accepted or rejected according to the original mental make-up of the person to whom they appeal for recognition. Believers and unbelievers are like two boys quarreling across a wall. Each got to his place by means of a ladder. They may fight if they will, but neither can kick away the other's support.

Believing the things that he did believe, Mr. Sheldon was right in thinking that the main purpose of a newspaper should be the salvation of souls. If his religious belief is true that should be the main purpose, not only of a newspaper, but of everything that has a purpose, or can be given one. If we have immortal souls and the consequences of our deeds in the body reach over into another life in another world, determining there our eternal state of happiness or pain, this is the most momentous fact conceivable. A man who, believing this to be a fact, does not make it the one purpose of his life to save his soul and the souls of others that are willing to be saved is a rogue. If he think that any part of this only needful work can be done by turning a newspaper into a pulpit he ought to do so or (preferably) perish in the attempt.

The talk of degrading the sacred name, and all that, is mostly nonsense. If one may not test his conduct in this life by reference to the highest standard that his religion supplies it is not easy to see how religion is to be made anything but a mere body of doctrine. I do not think the Christian religion will ever be seriously discredited by an attempt to determine, even with too dim a light, what, under given circumstances, the man miscalled its "founder" would do. What else is his great example good for? But it is not always enough to ask oneself, "How would Christ do this?" One should first consider whether Christ would do it. It is conceivable that certain of his thrifty contemporaries may have asked him how he would change money in the Temple.

If Mr. Sheldon's critics were unfair his defenders were, as a rule, not much better. They meant to be fair, but they had to be foolish. For example, there is the Rev. Dr. Parkhurst, whose defense was published with the *Review's* attack. I shall give a single illustration of how this more celebrated than cerebrated "divine" is pleased to think that he thinks. He is replying to some one's application to this matter of Christ's injunction, "Lay not up for

yourselves treasures on earth.” This command, he gravely says, “is not against money, nor against the making of money, but against the loving it for its own sake and the dedicating of it to self-aggrandizing uses.” I call this a foolish utterance, because it violates the good old rule of not telling an obvious falsehood. In no word nor syllable does Christ’s injunction give the least color of truth to the reverend gentleman’s “interpretation;” that is the reverend gentleman’s very own, and doubtless he feels an honest pride in it. It is the product of a controversial need—a characteristic attempt to creep out of a hole in an enclosure which he was not invited to enter. The words need no “interpretation;” are susceptible to none; are as clear and unambiguous a proposition as language can frame. Moreover, they are consistent with all that we think we know of their author’s life and character, for he not only lived in poverty and taught poverty as a blessing, but commanded it as a duty and a means to salvation. The probable effect of universal obedience among those who adore him as a god is not at present an urgent question. I think even so faithful a disciple as the Rev. Dr. Parkhurst has still a place to lay his head, a little of the wherewithal to be clothed, and a good deal of the power of interpretation to excuse it.

III

There are other hypocrites than those of the pulpit. Dr. Gatling, the ingenious scoundrel who invented the gun that bears his name with commendable fortitude, says he has given much thought to the task of bringing the forces of war to such perfection that war will be no more. Commonly the man who talks of war becoming so destructive as to be impossible is only a harmless lunatic, but this fellow utters his cant to conceal his cupidity. If he thought there was any danger of the nations beating their swords into plowshares we should see him “take the stump” against agriculture forthwith. The same is true of all military inventors. They are lions’ parasites; themselves of cold blood, they fatten upon hot. The sheep-tick’s paler fare is not at all to their taste.

I sometimes wish that I were a preacher: preachers do so blindly ignore their shining opportunities. I am indifferently versed in theology—whereof, so help me Heaven, I do not believe one word—but know something of religion. I know, for example, that Jesus Christ was no soldier; that war has two features which did not command his approval—usually: aggression and

defense. He taught not only abstention from aggression but non-resistance. Now what do we see? Nearly all the so-called Christian nations of the world sweating and groaning under their burden of debt contracted in violation of these injunctions which they believe divine—contracted in perfecting their means of offense and defense. “We must have the best,” they cry; and if armor plates for ships were better when alloyed with silver, and guns if banded with gold, such armor plates would be put upon the ships, such guns would be freely made. No sooner does one nation adopt some costly device for taking life or protecting it from the taker (and inventors will as readily sell the product of their malign ingenuity to one nation as to another) than all the rest either possess themselves of it, or adopt something superior and more expensive; and so all pay the penalty for the sins of each. A hundred million dollars is a moderate estimate of what it has cost the world to abstain from strangling the infant Gatling in his cradle.

You may say, if you will, that primitive Christianity—the Christianity of Christ—is not adapted to these rough-and-tumble times; that it is not a practical scheme of conduct. As you please; I have not undertaken to say what it is not, but what it partly is. I am no Christian, though I think that Christ probably knew what was good for man about as well as Dr. Gatling or the United States Ordnance Office. It is not for me to defend Christianity; Christ did not. Nevertheless, I can not forbear the wish that I were a preacher, in order sincerely to affirm that the awful burdens borne by modern nations are obvious judgments of Heaven for disobedience to the Prince of Peace. What a striking theme to kindle fires upon the heights of imagination—to fill the secret sources of eloquence—to stir the very stones in the temple of truth! What a noble subject for the pious gentlemen who serve (with rank, pay and allowances) as chaplains in the army and the navy, or the civilian divines who offer prayer at the launching of an ironclad!

IV

A matter of missionaries commonly is to the fore as a cause of quarrel with nations which have the hardihood to prefer their own religions to ours. Missionaries constitute, in truth, a perpetual menace to peace. I dare say the most of them are conscientious men and women of a certain order of intellect. They believe, and from the way that they interpret their sacred

book have some reason to believe, that in meddling uninvited with the spiritual affairs of others they perform a work acceptable to God—their God. They think they discern a moral difference between “approaching” a man of another religion about the state of his soul and approaching him on the condition of his linen or the character of his wife. I think there is a difference; but I have observed that the person who volunteers an interest in my spiritual welfare is the same person from whom I must expect an impudent concern about my temporal affairs.

No ruler nor government of sense would willingly permit foreigners to sap the foundation of the national religion. No ruler nor government ever does permit it except under stress of compulsion. It is through the people’s religion that a wise government governs wisely—even in our own country we make only a transparent pretense of officially ignoring Christianity, and a pretense only because we have so many kinds of Christians, all jealous and inharmonious. Each sect would make a Theocracy if it could, and would then make short work of any missionary from abroad. Happily all religions but ours have the sloth and timidity of error; Christianity alone, drawing vigor from eternal truth, is courageous enough and energetic enough to make itself a nuisance to people of every other faith. The Jew not only does not bid for converts, but discourages them by imposition of hard conditions; and the Moslem’s simple, forthright method of reducing error is to cut off the head holding it. I don’t say that this is right; I say only that, being practical and comprehensible, it commands a certain respect from the impartial observer not conversant with scriptural justification of a less natural practice.

It is only where the missionaries have made themselves hated that there is any molestation of Europeans engaged in the affairs of this world. Chinese antipathy to Caucasians in China is neither a racial animosity nor a religious; it is an instinctive dislike of persons who will not mind their own business. China has been infested with missionaries from the earliest centuries of our era, and they have rarely been molested when they have taken the trouble to behave themselves. (In the time of the Emperor Justinian the fact that the Christian religion was openly preached throughout China enabled that sovereign to wrest from the Chinese the jealously-guarded secret of silk-making. He sent two monks to Peking, who

alternately preached seriousness and studied sericulture, and brought away silkworms' eggs concealed in sticks.)

In religious matters the Chinese are more tolerant than we. They let the religions of others alone, but naturally and rightly demand that others shall let theirs alone. In China, as in other Oriental countries where the color line is not drawn and where slavery itself is a light affliction, the mental attitude of the zealot who finds gratification in "spreading the light" of which he deems himself custodian, is not understood. Like most things not understood, it is felt to be bad, and is indubitably offensive.

V

At a church club meeting a paper was read by a minister, entitled, "Why the Masses Do Not Attend the Churches." This good and pious man was not ashamed to account for it by the fact that there is no Sunday law, and "the masses" can find recreation elsewhere, even in the drinking saloons. It is frank of him to admit that he and his professional brethren have not brains enough to make religious services attractive; but if it is a fact he must not expect the local government to assist in spreading the gospel by rounding-up the people and corralling them in the churches. The truth is, and this gentleman suspects it, that "the masses" stay out of hearing of his pulpit because there he talks nonsense of the most fatiguing kind; they would rather do any one of a thousand other things than go to hear it. These parsons are like a scolding wife who grieves because her husband will not pass his evenings with her. The more she grieves the more she scolds, and the more diligently he stays away from her. Satan is not conspicuously wise, but he is in the main a good entertainer, with a right pretty knack at making people come again; but the really reprehensible part of his performance is not the part that attracts them. The parsons might study his methods with advantage to religion and morality.

It may be urged that religious services have not entertainment for their object. But the people, when not engaged in business or labor, have it for *their* object. If the clergy do not choose to adapt their ministrations to the characters of those to whom they wish to minister, that is their own affair; but let them accept the consequences. "The masses" do not really enjoy Sunday at all; they try to get through the day in the manner that is least wearisome to the spirit. Possibly their taste is not what it ought to be. If the

minister were a physician of bodies instead of souls, and patients who had not called him in should refuse to take the medicine which he thought his best and they his nastiest, he should either offer them another, a little less disagreeable if a little less efficacious, or let them alone. In no case is he justified in asking the civil authority to hold their noses while he plies the spoon.

“The masses” have not asked for churches and services; they really do not care for anything of the kind—whether they ought is another matter. If the clergy choose to supply them, that is well and worthy. But they should understand their relation to the impenitent worldling, which is precisely that of a physician without a mandate from the patient, who may not be convinced that there is very much the matter with him. The physician may have a diploma and a certificate authorizing him to practise, but if the patient do not deem himself bound to be practised upon has the physician a right to make him miserable until he will submit? Clearly, he has not. If he can not persuade him to come to the dispensary and take medicine there is an end to the matter, and he may justly conclude that he is misfitted to his vocation.

I am sure that the ministers and the singularly small contingent of earnest and, on the whole, pretty good persons who cluster about them do not perceive how alien they are in their convictions, tastes, sympathies and general mental habitudes to the majority of their fellow men and women. Their voices are like “the gushing wave” which, to the ears of the lotus-eaters,

Far, far away did seem to mourn and rave,

coming to us as from beyond a great gulf, mere ghosts of sound, almost devoid of meaning. We know that they would have us do something, but what it is we do not clearly apprehend. We feel that they are concerned for us, but why, we are imperfectly able to conceive. In an unintelligible tongue they tell us of unthinkable things. Here and there in the discourse we catch a word, a phrase, a sentence—something which, from ancestors whose mother-speech it was, we have inherited the capacity to understand; but the homily as a whole signifies nothing. Solemn and sonorous enough it all is, and not unmusical, but it lacks its natural accompaniment of shawm and

sackbut and the wind-swept harp in the willows by the waters of Babylon. It is, in fact, something of a survival—the memory of a dream.

VI

The first week of January is by a certain sect set apart as a week of prayer. It is a custom of more than a half century's age, and it seems that "gracious answers have been received in proportion to the earnestness and unanimity of the petitions." That is to say, in this world's speech, the more Christians that have prayed and the more they have meant it, the better the result is known to have been. I don't believe all that. I don't believe that when God is asked to do something that he had not intended to do he counts noses before making up his mind whether to do it or not. God probably knows the character of his work, and knowing that he has made this a world of knaves and dunces, he must know that the more of them that ask for something, and the more earnestly they ask, the stronger is the presumption that they ought not to have it. And I think God is perhaps less concerned about his popularity than some good folk seem to suppose.

Doubtless there are errors in the record of results—some things set down as "answers" to prayer, which came about through the orderly operation of natural laws and would have occurred anyhow. I am told that similar errors have been made, or are believed to have been made, in the past. In 1730, for example, a good Bishop at Auvergne prayed for an eclipse of the sun as a warning to unbelievers. The eclipse ensued and the pious prelate made the most of it; but when it was shown that the astronomers of the period had foretold it he suffered irreverent gibes. A monk of Treves prayed that an enemy of the church, then in Paris, might lose his head, and it fell off; but it transpired that, unknown (or known) to the monk, the man was under sentence of decapitation when the prayer was made. This is related by one who piously explains, however, that but for the prayer the sentence might have been commuted to service in the galleys. I have myself known a minister to pray for rain, and the rain came. I fear he knew that the weather bureau had predicted a fair day.

I do not object to a week of prayer. But why only a week? If prayer is "answered" Christians ought to pray all the time. That prayer is "answered" the Scripture affirms as positively and unequivocally as anything can be affirmed in words: "All things whatsoever ye shall ask in prayer, believing,

that ye shall receive.” Why, then, when for weeks all the clergy of this country prayed publicly for the recovery of President Garfield did the man die? Why is it that although two pious chaplains ask almost daily that goodness and wisdom may descend upon Congress, Congress remains wicked and unwise? Why is it that although in all the churches and many dwellings of the land God is continually asked for good government good government remains what it always and everywhere has been, a dream? From Earth to Heaven in unceasing ascension flows a stream of prayer for every blessing that man desires, yet man remains unblest, the victim of his own folly and passions, the sport of fire, flood, tempest and earthquake, afflicted with famine and disease, war, poverty and crime, his world an incredible welter of evil, his life a curse and his hope a lie. Is it possible that all this praying is futilized and invalidated by lack of faith?—that the “asking” is not credentialed by the “believing?” When the anointed minister of Heaven spreads his palms and uprolls his eyes to beseech a general blessing or some special advantage is he the celebrant of a hollow, meaningless rite, or the dupe of a false promise? One does not know, but if one is not a fool one does know that his every resultless petition proves him by the inexorable laws of logic to be the one or the other.

VII

Christ’s Christianity is beautiful exceedingly, and he who admires not is eyed batly and minded as the mole. “Sell all that thou hast,” said Christ, “and give to the poor.” All—no less—in order “to be saved.” The poor were Christ’s peculiar care. Ever for them and their privations, and not greatly for their spiritual darkness, fell from his lips the compassionate word, the mandate for their relief and cherishing. Of foreign missions, of home missions, of mission schools, of church building, of work among pagans in *partibus infidelium*, of work among sailors, of communion table, of delegates to councils—of any of these things he knew no more than the moon man. They are later inventions, as is the entire florid and flamboyant fabric of ecclesiasticism that has been reared, stone by stone and century after century, upon his simple life and works and words. “Founder,” indeed! He founded nothing, instituted nothing; Paul did all that. Christ simply went about doing, and being, good—admonishing the rich, whom he honestly but foolishly regarded as criminals, comforting the luckless and uttering

wisdom with that Oriental indirection wherein our stupid ingenuity finds
imaginary warrant for all our pranks and fads.

IMMORTALITY

THE desire for life everlasting has commonly been affirmed to be universal—at least that is the view taken by those unacquainted with Oriental faiths and with Oriental character. Those of us whose knowledge is a trifle wider are not prepared to say that the desire is universal nor even general.

If the devout Buddhist, for example, wishes to “live alway,” he has not succeeded in very clearly formulating the desire. The sort of thing that he is pleased to hope for is not what we should call life, and not what many of us would care for.

When a man says that everybody has “a horror of annihilation,” we may be very sure that he has not many opportunities for observation, or that he has not availed himself of all that he has. Most persons go to sleep rather gladly, yet sleep is virtual annihilation while it lasts; and if it should last forever the sleeper would be no worse off after a million years of it than after an hour of it. There are minds sufficiently logical to think of it that way, and to them annihilation is not a disagreeable thing to contemplate and expect.

In this matter of immortality, people’s beliefs appear to go along with their wishes. The man who is content with annihilation thinks he will get it; those that want immortality are pretty sure they are immortal; and that is a very comfortable allotment of faiths. The few of us that are left unprovided for are those who do not bother themselves much about the matter, one way or another.

The question of human immortality is the most momentous that the mind is capable of conceiving. If it is a fact that the dead live all other facts are in comparison trivial and without interest. The prospect of obtaining certain knowledge with regard to this stupendous matter is not encouraging. In all countries but those in barbarism the powers of the profoundest and most penetrating intelligences have been ceaselessly addressed to the task of glimpsing a life beyond this life; yet to-day no one can truly say that he knows. It is as much a matter of faith as ever it was.

Our modern Christian nations profess a passionate hope and belief in another world, yet the most popular writer and speaker of his time, the man whose lectures drew the largest audiences, the work of whose pen brought him the highest rewards, was he who most strenuously strove to destroy the ground of that hope and unsettle the foundations of that belief.

The famous and popular Frenchman, Professor of Spectacular Astronomy, Camille Flammarion, affirms immortality because he has talked with departed souls who said that it was true. Yes, monsieur, but surely you know the rule about hearsay evidence. We Anglo-Saxons are very particular about that.

M. Flammarion says:

“I don’t repudiate the presumptive arguments of schoolmen. I merely supplement them with something positive. For instance, if you assumed the existence of God this argument of the scholastics is a good one. God has implanted in all men the desire of perfect happiness. This desire can not be satisfied in our lives here. If there were not another life wherein to satisfy it then God would be a deceiver. *Voila tout.*”

There is more: the desire of perfect happiness does not imply immortality, even if there is a God, for

(1) God may not have implanted it, but merely suffers it to exist, as he suffers sin to exist, the desire of wealth, the desire to live longer than we do in this world. It is not held that God implanted all the desires of the human heart. Then why hold that he implanted that of perfect happiness?

(2) Even if he did—even if a divinely implanted desire entail its own gratification—even if it can not be gratified in this life—that does not imply immortality. It implies *only* another life long enough for its gratification just once. An eternity of gratification is not a logical inference from it.

(3) Perhaps God is “a deceiver;” who knows that he is not? Assumption of the existence of a God is one thing; assumption of the existence of a God who is honorable and candid according to our conception of honor and candor is another.

(4) There may be an honorable and candid God. He may have implanted in us the desire of perfect happiness. It may be—it is—impossible to gratify that desire in this life. Still, another life is not implied, for God may not

have intended us to draw the inference that he is going to gratify it. If omniscient and omnipotent, God must be held to have intended whatever occurs, but no such God is assumed in M. Flammarion's illustration, and it may be that God's knowledge and power are limited, or that one of them is limited.

M. Flammarion is a learned, if somewhat theatrical, astronomer. He has a tremendous imagination, which naturally is more at home in the marvelous and catastrophic than in the orderly regions of familiar phenomena. To him the heavens are an immense pyrotechnicon and he is the master of the show and sets off the fireworks. But he knows nothing of logic, which is the science of straight thinking, and his views of things have therefore no value; they are nebulous.

Nothing is clearer than that our pre-existence is a dream, having absolutely no basis in anything that we know or can hope to know. Of after-existence there is said to be evidence, or rather testimony, in assurances of those who are in present enjoyment of it—if it is enjoyable. Whether this testimony has actually been given—and it is the only testimony worth a moment's consideration—is a disputed point. Many persons living this life profess to have received it. But nobody professes, or ever has professed, to have received a communication of any kind from one in actual experience of the fore-life. "The souls as yet ungarmented," if such there are, are dumb to question. The Land beyond the Grave has been, if not observed, yet often and variously described: if not explored and surveyed, yet carefully charted. From among so many accounts of it that we have, he must be fastidious indeed who can not be suited. But of the Fatherland that spreads before the cradle—the great Heretofore, wherein we all dwelt if we are to dwell in the Hereafter, we have no account. Nobody professes knowledge of that. No testimony reaches our ears of flesh concerning its topographical or other features; no one has been so enterprising as to wrest from its actual inhabitants any particulars of their character and appearance. And among educated experts and professional proponents of worlds to be there is a general denial of its existence.

I am of their way of thinking about that. The fact that we have no recollection of a former life is entirely conclusive of the matter. To have lived an unrecollected life is impossible and unthinkable, for there would be nothing to connect the new life with the old—no thread of continuity—

nothing that persisted from the one life to the other. The later birth would be that of another person, an altogether different being, unrelated to the first—a new John Smith succeeding to the late Tom Jones.

Let us not be misled here by a false analogy. To-day I may get a thwack o' the mazzard which will give me an intervening season of unconsciousness between yesterday and to-morrow. Thereafter I may live to a green old age with no recollection of anything that I knew, or did, or was before the accident; yet I shall be the same person, for between the old life and the new there will be a *nexus*, a thread of continuity, something spanning the gulf from the one state to the other, and the same in both—namely, my body with its habits, capacities and powers. That is I; that identifies me to others as my former self—authenticates and credentials me as the person that incurred the cranial mischance, dislodging memory.

But when death occurs *all* is dislodged if memory is; for between two merely mental or spiritual existences memory is the only *nexus* conceivable; consciousness of identity is the only identity. To live again without memory of having lived before is to live another. Re-existence without recollection is absurd; there is nothing to re-exist.

A ROLLING CONTINENT

LIKE hope, the passion for prophecy springs eternal in the human breast; man is prone to it, as the sparks fly upward. Stripped of its several disguises, a considerable part of the world's writing and speaking is pure prediction; even the official forecaster of the weather bureau can not resist the universal urge and maintain a discreet and dignified silence befitting his office. Eliminate from politics, for example, all prophecies, expressed or implied—all the jeremiads based on assumption of the opposite party's success and all the assurances of a golden age to ensue from its defeat—and politics will "look another thing."

But of all the cloud of witnesses to the kind of mountain which the mouse of our country's future is to bring forth, none seems clearly to discern the adverse conditions environing the American prophet and foredooming to futility his vision and his dream. None appears to take account of the annulling fact that this continent is turning over like a man in bed; yet it ought to be obvious to the meanest understanding that if this movement continue it will supply conditions suitable to neither the reign of terror consequent upon the success of one's political opponents nor the golden age dependent on the ascendancy of the principles professed by oneself.

It has been shown that the Farallon islands, just off the Pacific coast, are becoming, as Tennyson would put it, "more and more;" the lighthouse keeper out there is in progressive achievement of the rôle of "prominent citizen." The bar at the mouth of San Francisco harbor is rising faster in fathoms than those farther inland in public esteem. In the steady ascension of the bottom of the bay lurks a possibility which without vanity we may affirm will astonish the astronomers of Mars. In short, the entire Pacific Coast is insurgent.

On the Atlantic seaboard inundations from marine storms occur every year. The waves eat farther and farther into the land; the high-water mark of one decade becomes the low-water mark of the next, and diking as an

agricultural method has a growing importance. It is estimated that the greater part of Manhattan island will be submerged within fifty years, and that within an even shorter period the Jersey mosquito will find no rest for the sole of his foot, and must become a pelican or quit.

But the steady subsidence of the Atlantic littoral foreshadows changes more startling than these—more startling, at least, to some who have not the advantage to be Jersey mosquitoes. Man himself, the man of the Eastern states, *Homo smugwumpus*, will find himself face to face with a problem of supreme scientific interest and personal importance. Will he travel west and go up with the country, or, staying where he is, develop into a fish and be mighty quick about it? The ordinary process of evolution, whereby a million years are required to change a red worm into a rhinoceros or advance a cave-bat one step in biological preferment and make it a theologian, will not do for *H. smugwumpus* when the wave is at his armpits and his ancestral acres are falling away from his webless feet. Even the fittest of his species must travel with uncommon speed along the line of development in order to survive in the new environment. They must slide nimbly up the scale of being, passing every intermediate stage between smugwumphood and fishness without pausing to enjoy its advantages. Probably, however, most of them will prefer to ascend the new watercourses up the ever-steepening slope of the great plains, settling eventually on the summit of the continent, roundabout San Francisco—where it is to be hoped they will be welcome if they behave themselves. Doubtless they will miss many of the blessings of their lowland existence, but they will find in the superior altitude an immunity from sunstroke and the mad dog, which will be partial compensation for renouncing the fascinating study of the long thermometer.

Probably the turning over of the continent will in time be stayed; to the unscientific mind, at least, its complete subversion is imperfectly thinkable. But for the next few thousand years, while still the memory of the purpose and efficacy of Noah's deluge is fresh and pleasing in Heaven, the movement will be likely to continue. By the time that it ceases the Atlantic shore will perhaps be a contour line on the eastern declivity of the Rocky Mountains, and the Pacific slope comprise all that region now underlying the "great gulf" between this world and Hawaii. As a practical settlement of the annexation question on a staying basis, this unpolitical movement is

worthy of the highest commendation. With the construction of the San Francisco and Honolulu Pacific Railroad by Government and at the rate of fifty million dollars a mile in hand paid to the owners of the road, and by them kept for their honesty, the status of the descendants of Kamehameha and Kalakaua will be definitely fixed—they will be payers of All That The Traffic Will Bear.

The upward tendency of the Pacific side of the continent will be attended, no doubt, with certain inconveniences. Already the relentless progress of its ascension has laid “effacing fingers” on the *amour propre* of several worthy persons who thought themselves heavy enough to hold it down.

1892.

CHARITY

THE promoter of organized charity protests against “the wasteful and mischievous method of undirected relief.” He means, naturally, relief that is not directed by somebody else than the person giving it—undirected by him and his kind—professional almoners—philanthropists who deem it more blessed to allot than to bestow. Indubitably much is wasted and some mischief done by indiscriminate giving—and individual givers are addicted to that faulty practice. But there is something to be said for “undirected relief,” quite the same. It blesses not only him who receives (when he is worthy; and when he is not, upon his own head be it) but him who gives. To those uncalculating persons who, despite the protests of the organized charitable, concede a certain moral value to the spontaneous impulses of the heart and read in the word “relief” a double meaning, the office of the mere distributor is imperfectly sacred. He is even without scriptural authority, and lives in the perpetual challenge of a moral *quo warranto*. Nevertheless he is not without his uses. He is a tapper of tills that do not open automatically. He is almoner to the uncompassionate, who but for him would give no alms. He negotiates unnatural but not censurable relations between selfishness and ingratitude. The good that he does is purely material. He makes two leaves of fat to grow where but one grew before, lessens the sum of gastric pangs and dorsal chills. All this is something, certainly, but it generates no warm and elevated sentiments and does nothing in mitigation of the poor’s animosity to the rich. Organized charity is an insipid and savorless thing; its place among moral agencies is no higher than that of root beer.

Christ did not say, “Sell that thou hast and give to the church to give to the poor.” He did not mention the Associated Charities of the period. I do not find the words, “The Little Sisters of the Poor ye have always with you,” nor, “Inasmuch as ye have done it unto the least of these Dorcas societies ye have done it unto me.” Nowhere do I find myself commanded to enable others to comfort the afflicted and visit the sick and those in prison. Nowhere is recorded God’s blessing upon him who makes himself a

part of a charity machine—no, not even if he be the guiding lever of the whole mechanism.

Organized charity is a delusion and a snare. It enables Munniglut to think himself a good man for paying annual dues and buying transferable meal tickets. Munniglut is not thereby a good man. On the Last Great Day, when he cowers in the Ineffable Presence and is asked for an accounting it will not profit him to say, “Hearing that A was in want, I gave money for his need to B.” Nor will it advantage B to say, “When A was in distress I asked C to relieve him, and myself allotted the relief according to a resolution of D, E and F.”

There are blessings and benefactions that one would willingly forego—among them the poor. Quack remedies for poverty amuse; a real specific would kindle a noble enthusiasm. Yet the world would lose much by it; human nature would suffer a change for the worse. Happily and unhappily, poverty is not abolishable: “The poor ye have always with you” is a sentence that can never become unintelligible. Effect of a thousand permanent causes, poverty is invincible, eternal. And since we must have it let us thank God for it and avail ourselves of all its advantages to mind and character. He who is not good to the deserving poor; who knows not those of his immediate environment; who goes not among them making inquiry of their personal needs; who does not wish with all his heart and strive with both his hands to relieve them—is wasteful and improvident.

EMANCIPATED WOMAN

WHAT I should like to know is, how “the enlargement of woman’s sphere” by her entrance into various activities of commercial, professional and industrial life benefits the sex. It may please Helen Gougar and satisfy her sense of logical accuracy to say, as she does: “We women must work in order to fill the places left vacant by liquor-drinking men.” But who filled these places before? Did they remain vacant, or were there then disappointed applicants, as now? If my memory serves, there has been no time in the period that it covers when the supply of workers—abstemious male workers—was not in excess of the demand. That it has always been so is sufficiently attested by the universally inadequate wage rate.

Employers seldom fail, and never for long, to get all the workmen they need. The field into which women have put their sickles was already overcrowded with reapers. Whatever employment women have obtained has been got by displacing men—who would otherwise be supporting women. Where is the general advantage? We may shout “high tariff,” “combination of capital,” “demonetization of silver,” and what not, but if searching for the cause of augmented poverty and crime, “industrial discontent” and the tramp evil, instead of dogmatically expounding it, we should take some account of this enormous, sudden addition to the number of workers seeking work. If any one thinks that within the brief period of a generation the visible supply of labor can be enormously augmented without profoundly affecting the stability of things and disastrously touching the interests of wage-workers let no rude voice dispel his dream of such maleficent agencies as his slumbrous understanding may joy to affirm. And let our Widows of Ashur unlung themselves in advocacy of quack remedies for evils of which themselves are cause; it remains true that when the contention of two lions for one bone is exacerbated by the accession of a lioness the squabble is not composable by stirring up some bears in the cage adjacent.

Indubitably a woman is under no obligation to sacrifice herself to the good of her sex by foregoing needed employment in the hope that it may

fall to a man gifted with dependent women. Nevertheless our congratulations are more intelligent when bestowed upon her individual head than when sifted into the hair of all Eve's daughters. This is a world of complexities, in which the lines of interest are so intertangled as frequently to transgress that of sex; and one ambitious to help but half the race may profitably know that every effort to that end provokes a counterbalancing mischief. The "enlargement of woman's opportunities" has benefited individual women. It has not benefited the sex as a whole, and has distinctly damaged the race. The mind that can not discern a score of great and irreparable general evils distinctly traceable to "emancipation of woman" is as impregnable to the light as a toad in a rock.

A marked demerit of the new order of things—the *régime* of female commercial service—is that its main advantage accrues, not to the race, not to the sex, not to the class, not to the individual woman, but to the person of least need and worth—the male employer. (Female employers in any considerable number there will not be, but those that we have could give the male ones profitable instruction in grinding the faces of their employees.) This constant increase of the army of labor—always and everywhere too large for the work in sight—by accession of a new contingent of natural oppressibles makes the very teeth of old Munniglut thrill with a poignant delight. It brings in that situation known as two laborers seeking one job—and one of them a person whose bones he can easily grind to make his bread; and Munniglut is a miller of skill and experience, dusted all over with the evidence of his useful craft. When Heaven has assisted the Daughters of Hope to open to women a new "avenue of opportunities" the first to enter and walk therein, like God in the Garden of Eden, is the good Mr. Munniglut, contentedly smoothing the folds out of the superior slope of his paunch, exuding the peculiar aroma of his oleaginous personality and larding the new roadway with the overflow of a righteousness stimulated to action by relish of his own identity. And ever thereafter the subtle suggestion of a fat philistinism lingers along that path of progress like an assertion of a possessory right.

It is God's own crystal truth that in dealing with women unfortunate enough to be compelled to earn their own living and fortunate enough to have wrested from Fate an opportunity to do so, men of business and affairs treat them with about the same delicate consideration that they show to

dogs and horses of the inferior breeds. It does not commonly occur to the wealthy “professional man,” or “prominent merchant,” to be ashamed to add to his yearly thousands a part of the salary justly due to his female bookkeeper or typewriter, who sits before him all day with an empty belly in order to have an habilimented back. He has a vague, hazy notion that the law of supply and demand is mandatory, and that in submitting himself to it by paying her a half of what he would have to pay a man of inferior efficiency he is supplying the world with a noble example of obedience. I must take the liberty to remind him that the law of supply and demand is not imperative; it is not a statute but a phenomenon. He may reply: “It is imperative; the penalty for disobedience is failure. If I pay more in salaries and wages than I need to, my competitor will not; and with that advantage he will drive me from the field.” If his margin of profit is so small that he must eke it out by coining the sweat of his workwomen into nickels I’ve nothing to say to him. Let him adopt in peace the motto, “I cheat to eat.” I do not know why he should eat, but Nature, who has provided sustenance for the worming sparrow, the sparrowing owl and the owling eagle, approves the needy man of prey and makes a place for him at table.

Human nature is pretty well balanced; for every lacking virtue there is a rough substitute that will serve at a pinch—as cunning is the wisdom of the unwise, and ferocity the courage of the coward. Nobody is altogether bad; the scoundrel who has grown rich by underpaying workmen in his factory will sometimes endow an asylum for indigent seamen. To oppress one’s own workmen, and provide for the workmen of a neighbor—to skin those in charge of one’s own interests while cottoning and oiling the residuary product of another’s skinnery—that is not very good benevolence, nor very good sense, but it serves in place of both. The man who eats *pâté de fois gras* in the sweat of his girl cashier’s face, or wears purple and fine linen in order that his typewriter may have an eocene gown and a pliocene hat, seems a tolerably satisfactory specimen of the genus thief; but let us not forget that in his own home—a fairly good one—he may enjoy and merit that highest and most honorable title on the scroll of woman’s favor, “a good provider.” One having a claim to that glittering distinction should enjoy immunity from the coarse and troublesome question, “From whose backs and bellies do you provide?”

So much for the material results to the sex. What are the moral results? One does not like to speak of them, particularly to those who do not and can not know—to good women in whose innocent minds female immorality is inseparable from flashy gowning and the painted face; to foolish, book-taught men who honestly believe in some protective sanctity that hedges womanhood. If men of the world with years enough to have lived out of the old *régime* into the new would testify in this matter there would ensue a great rattling of dry bones in bodices of reform-ladies. Nay, if the young man about town, knowing nothing of how things were in the “dark backward and abysm of time,” but something of the moral distance between even so free-running a creature as the society girl and the average working girl of the factory, the shop and the office, would speak out (under assurance of immunity from prosecution) his testimony would be a surprise to the cartilaginous virgins, blowsy matrons, acrid relicts and hairy males of Emancipation. It would pain, too, some very worthy but unobservant persons not in sympathy with “the cause.”

Certain significant facts are within the purview of all but the very young and the comfortably blind. To the woman of to-day the man of to-day is imperfectly polite. In place of reverence he gives her “deference;” to the language of compliment has succeeded the language of raillery. Men have almost forgotten how to bow. Doubtless the advanced female prefers the new manner, as may some of her less forward sisters, thinking it more sincere. It is not; our giddy grandfather talked high-flown nonsense because his heart had tangled his tongue. He treated his woman more civilly than we ours because he loved her better. He never had seen her on the “rostrum” and in the lobby, never had heard her in advocacy of herself, never had read her confessions of his sins, never had felt the stress of her competition, nor himself assisted by daily personal contact in rubbing the bloom off her. He did not know that her virtues were due to her secluded life, but thought, dear old boy, that they were a gift of God.

THE OPPOSING SEX

EMANCIPATION of woman is not of American invention. The “movement,” like most others that are truly momentous, began in Europe and has broken through and broken down more formidable barriers of law, custom and tradition there than here. It is not true, as dogmatically affirmed by a noted American writer, that the English married woman is “virtually a bondwoman” to her husband; that “she can hardly go and come without his consent, and usually he does not consent;” that “all she has is his.” If there is such a thing as “the bitterness of the English married woman to the law,” underlying it there is such a thing as ignorance of what the law is. The “subjection of woman,” as it exists to-day in England, is customary and traditionary—a social, not a legal, subjection. Nowhere has law so sharply challenged that male dominion whose seat is in the harder muscles, the larger brain and the coarser heart. And the law, it may be worth while to point out, was not of woman born; nor was it handed down out of Heaven engraved on tables of stone. Learned English judges have decided that virtually, even the term “marital rights” has no longer a legal signification. As one writer puts it, “The law has relaxed the husband’s control over his wife’s person and fortune, bit by bit, until legally it has left him nothing but the power to prevent her, if he is so disposed and arrives in time, from jumping out of the window.” He will find it greatly to his interest to arrive in time when he conveniently can, and to be so disposed, for the husband is still liable for the wife’s torts; and if she make the leap he may have to pay for the telescoping of a subjacent hat or two.

In England it is Tyrant Man himself who is chafing in his chain. Not only is a husband still liable for the wrongs committed by the wife whom he has no longer the power to restrain from committing them, but in many ways—in one very important way—his obligation to her remains intact after she has had the self-sacrifice to surrender all obligation to him. Moreover, if his wife has a separate estate he has to endure the pain of seeing it hedged about from her creditors (themselves not altogether happy in the contemplation) with restrictions which do not hamper the right of recourse

against his own. Doubtless all this is not without a softening effect upon his character, smoothing down his dispositional asperities and endowing him day by day with fresh accretions of humility; and that is good for him. I do not say that woman's autonomy is not among the most efficacious agencies for man's reclamation from the sin of pride; I only say that it is not indigenous to this country, the sweet, sweet home of the assassiness, the happy hunting ground of the whiplady, the paradise of the vitrioleuse.

If the protagonists of woman suffrage are frank they are shallow; if wise, uncandid. Continually they affirm their conviction that political power in the hands of women will give us better government. To proof of that proposition they address all the powers that they have and marshal such facts as can be compelled to serve under their flag. They either think or profess to think that if they can show that women's votes will purify politics they will have proved their case. That is not true; the strongest objection to woman suffrage would remain untouched. Pure politics is desirable, certainly, but it is not the chief concern of the best and most intelligent citizens. Good government is devoutly to be wished, but more than good government we need good women. If all our public affairs were to be ordered with the goodness and wisdom of angels, and this state of perfection were obtained by sacrifice of any of those qualities which make the best of our women, if not what they should be, nor what the mindless male thinks them, at least what they are, we should have purchased the advantage too dearly. The effect of woman suffrage upon the country is of secondary importance: the question for profitable consideration is, How will it affect the character of woman? He who does not see in the goodness and charm of such women as are good and charming something incalculably more precious than any degree of political purity or national prosperity may be a patriot; but also he has the distinction to be a pig.

I should like to ask the gallant gentlemen who vote for removal of woman's political disability if they have observed in the minds and manners of the women in the forefront of the movement nothing "ominous and drear." Are not these women different—I don't say worse, just different—from the best types of women of peace who are not exhibits and audibles? If they are different is the difference of such a nature as to encourage a hope that activity in public affairs will work an improvement in Woman? Is "the glare of publicity" good for her growth in grace and winsomeness? Would a

sane and sensible husband or lover willingly forego in wife or sweetheart all that the colonels of her sex appear to lack, or find in her all that they appear to have and to value?

A few more questions—addressed more particularly to veteran observers than to those to whom the world is new and strange. Do you think that when all women are armed with the ballot they will compel a return to the old *régime* of reverence and delicate consideration—extorting by their power the tribute once voluntarily paid to their weakness? Is there any known way by which women can at the same time be our political equals and our social superiors, our competitors in the sharp and bitter struggle for glory, gain or bread, and the objects of our unselfish and undiminished devotion? The present predicts the future; of the foreshadow of the coming event all sensitive female hearts feel the chill. For whatever advantages, real or illusory, some women enjoy under this *régime* of partial “emancipation” all women pay. Of the coin in which payment is made the shouldering shouters of the sex have not a groat and can bear the situation with tranquillity. They have either passed the age of masculine attention or were born without the means to its accroachment. Dwelling in the open bog, they can afford to defy eviction.

While men did nearly all the writing and public speaking of the world, setting so the fashion in thought, women, naturally extolled with true sexual extravagance, came to be considered, even by themselves, a very superior order of beings, with something in them of divinity which was denied to man. Not only were they represented as better, generally, than men, as indeed anybody could see that they were, but their goodness was supposed to be a kind of spiritual endowment and more or less independent of environmental influences. We are changing all that. Women are beginning to do much of the writing and public speaking, and they are sure to disclose, even to the unthinking, certain defects of character in themselves which their silence had veiled. Their competition, too, in the several kinds of affairs will slowly but certainly provoke resentment, and moreover expose them to temptations that will distinctly lower the morality of their sex. All these changes, and many more having a similar effect and significance, are occurring with rapidity, and the stated results are already visible to even the blindest observation. In accurate forecast of the new order of things

conjecture fails, but so much we know: the woman-superstition has already received its death wound and must soon expire.

Everywhere, and in no reverential spirit, men are questioning the dear old idolatry; not “sapping a solemn creed with solemn sneer,” but dispassionately applying to its basic doctrine the methods of scientific criticism. In the various movements—none of them consciously iconoclastic—engaged in overthrowing this oddest of modern superstitions there is something to deprecate, and even deplore, but the superstition can be spared. It never had much in it that was either creditable or profitable, and all through its rituals ran a note of insincerity which was partly Nature’s protest against the rites, but partly, too, hypocrisy. There is no danger that good men will ever cease to respect and love good women, and if bad men ever cease to adore them for their sex when not beating them for their virtues the gain in consistency will partly offset the loss in religious ecstasy.

Let the patriot abandon his fear, his betters their hope, that only the low class woman will vote—the unlettered wench of the slums, the raddled hag of the dives, the war-painted *protégée* of the police. Into the vortex of politics goes every floating thing that is free to move. The summons to the polls will be imperative and incessant. Duty will thunder it from every platform, conscience whisper it into every ear; pride, interest, the lust of victory—all the motives that impel men to partisan activity will act with the same power upon women as upon men; and to all the other forces flowing irresistibly toward the polls will be added the suasion of men themselves. The price of votes will not decline because of the increased supply, although it will in most instances be offered in currencies too subtle to be counted. As now, the honest and respectable elector will habitually take bribes in the invisible coin of the realm of Sentiment—a mintage peculiarly valued by woman. For one reason or another all women will vote, even those who now view the “right” with aversion. The observer who has marked the strength and activity of the forces pent in the dark drink of politics and given off in the act of bibation will not expect inaction in the victim of the “habit,” be he male or she female. In the partisan, conviction is compulsion—opinions bear fruit in conduct. The partisan thinks in deeds, and woman is by nature a partisan—a blessing for which the Lord has never made her male relatives and friends sufficiently thankful. Not a mere man of them would have the effrontery to ask her toleration if she were not.

Depend upon it, the full strength of the female vote will eventually be cast at every election. And it would be well indeed for civilization and the interests of the race if woman suffrage meant no more than going to the polling-place and polling—which clearly is all that it has been thought out to mean by the headless horsemen spurring their new hobbies bravely at the tail of the procession. That would be a very simple matter; the opposition based upon the impropriety of the female rubbing shoulders at the polls with such scurvy blackguards as ourselves may with advantage be retired from service. Nor is it particularly important what men and measures the women will vote for. By one means or another Tyrant Man will have his way; the Opposing Sex can merely obstruct him in his way of having it. And should that obstruction ever be too pronounced, the party line and the sex line coinciding, woman suffrage will then and thenceforth be no more, and the “majority” will again rule. In the politics of this bad world majorities are of several kinds. One of the most “overwhelming” is made up of these simple elements: (1) a numerical minority; (2) a military superiority.

If not a single election were ever in any degree affected by it, the introduction of woman suffrage into our scheme of manners and morals would nevertheless be one of the most momentous and mischievous events of modern history. Compared with the action of this destructive solvent, that of all other disintegrating agencies concerned in our decivilization is as the languorous indiligence of rosewater to the mordant fury of nitric acid.

Lively Woman is indeed, as Carlyle would put it, “hell-bent” on purification of politics by adding herself as an ingredient. It is unlikely that the injection of her personality into the contention (and politics is essentially a contention) will allay any animosities, sweeten any tempers, elevate any motives. The strifes of women are distinctly meaner than those of men—which are out of all reason mean; their methods of overcoming opponents distinctly more unscrupulous. That their participation in politics will notably alter the conditions of the game is not to be denied; so much, unfortunately, is obvious; but that it will make the player less malignant and the playing more honorable is a proposition in support of which one can utter a deal of gorgeous nonsense with a less insupportable sense of its unfitness than in the service of almost any other delusion.

The frosty truth is that except in the home the influence of women is not elevating, but debasing. When they stoop to uplift men who need uplifting, they are themselves pulled down, and that is all that is accomplished. Wherever they come into familiar contact with men who are not their relatives they impart nothing, they receive all; they do not affect us with their notions of morality; we infect them with ours. In the last forty years, in this country, they have entered a hundred avenues of activity from which they were previously debarred by unwritten law. They are found in the offices, the shops, the factories; like Charles Lamb's fugitive pigs, they have run up all manner of streets. Does any one think that in that time there has been an advance in professional, commercial and industrial morality? Are lawyers more scrupulous, tradesmen more honest? When one has been served by a "saleslady" does one leave the shop with a feebleness of injury than was formerly inspired by a transaction at the counter—a duller consciousness of being oneself the commodity that has changed hands? Have actresses elevated the stage to a moral altitude congenial to the colder virtues? In studios of artists is the "sound of revelry by night" invariably a deep, masculine bass? In literature are the immoral books—the books dealing with questionable "questions"—always, or even commonly, written by men?

There is one direction in which "emancipation of woman" and enlargement of her "sphere" have wrought reform: they have elevated the *personnel* of the little dinner party in the "private room." Formerly, as any veteran man-about-town can testify if he will, the female contingent of the party was composed of persons altogether unspeakable. That element now remains upon its reservation; among the superior advantages enjoyed by the man-about-town of to-day is that of the companionship, at his dinner *in camera*, of ladies having an honorable vocation. In the corridors of the "French restaurant" the swish of Pseudonyma's skirt is no longer heard; she has been superseded by the Princess Tap-tap (with Truckle & Cinch), by my lady Snip-snip (from the "emporium" of Boltwhack & Co.), by Miss Chink-chink, who sits at the receipt of customs in that severely un-French restaurant, the Maison Hash. That the man-about-town has been morally elevated by this emancipation of Girl from the seclusion of home to that of the "private room" is too obvious for denial. Nothing so uplifts Tyrant Man as the table talk of good young women who earn their own living.

I do not wish to be altogether ironical about this rather serious matter—not so much so as to forfeit anything of lucidity. Let me say, then, in all earnestness and sobriety and simplicity of speech, what is known to every worldly-wise male dweller in the cities, to every scamp and scapegrace of the clubs, to every reformed sentimentalist and every observer with a straight eye—namely, that in all the several classes of young women in our cities who support, or partly support, themselves in vocations that bring them into personal contact with men, female chastity is a vanishing tradition. In the lives of the “main and general” of these, all those *desiderata* which have their origin in personal purity, and cluster about it, and are its signs and safeguards, have almost ceased to cut a figure. It is needless to remind me that there are exceptions—I know that. With some of them I have personal acquaintance, or think I have, and for them a respect withheld from any woman of the rostrum who points to their misfortune and calls it emancipation—to their need and calls it a spirit of independence. It is not from these good girls that you will hear the flippant boast of an unfettered life, with “freedom to develop;” nor is it they who will be foremost and furious in denial and resentment of my statements regarding the morals of their class. They do not know the whole truth, thank Heaven, but they know enough for a deprecation too deep to find relief in a cheap affirmation of woman’s purity, which is, and always has been, the creature of seclusion.

The fitness of women for political activity is not in present question; I am considering the fitness of political activity for women. For women as men say they are, wish them to be and try to think them, it is unfit altogether—as unfit as anything else that “mixes them up” with us, compelling a communication and association that are not social. If we wish to have women who are different from ourselves in knowledge, character, accomplishments, manners; as different mentally as physically—and in these and in all other expressible differences reside all the charms that they have for us—we must keep them, or they must keep themselves, in an environment unlike our own. One would think this obvious to the meanest capacity, and might even hope that it would be understood by the Daughters of Thunder. Possibly the Advanced One, hospitably accepting her karma, is not concerned to be charming to “the likes o’ we”—would prefer the companionship of her blue gingham umbrella, her corkscrew curls, her epicene audiences and her name in the newspapers. Perhaps she is content

with the comfort of her raucous voice. Therein she is unwise, for self-interest is the first law. When we no longer find women charming we may find a way to make them more useful—more truly useful, even, than the speech-ladies would have them make themselves by competition. Really, there is nothing in the world between them and slavery but their power of interesting us; and that has its origin in the very differences which the colonels of their sex are striving to abolish. God has made no law of miracles and none of his laws is going to be suspended in deference to woman's desire to achieve familiarity without contempt. If she wants to please she must retain some scrap of novelty; if she desires our respect she must not be always in evidence, disclosing the baser side of her character, as in competition with us she must do—as we do to one another. Mrs. Edmund Gosse, like “Ouida,” Mrs. Atherton, and all other women of brains, thinks that the taking of unfair advantages—the lack of magnanimity—is a leading characteristic of her sex. Mrs. Gosse adds, with reference to men's passive acquiescence in this monstrous folly of “emancipation,” that possibly our quiet may be the calm before the storm; and she utters this warning, which, also, more strongly, “Ouida” has uttered: “How would it be with us if the men should suddenly rise *en masse* and throw the whole surging lot of us into convents and harems?”

It is not likely that men will “rise *en masse*” to undo the mischief wrought by noisy protagonists of woman suffrage working like beavers to rear their airy fad upon the sandy foundation of masculine tolerance and inattention. No rising will be needed. All that is required for the wreck of their hopes is for a wave of reason to slide a little farther up the sands of time, “loll out its large tongue, lick the whole labor flat.” The work has prospered so far only because nobody but its promoters has taken it seriously. It has not engaged attention from those having the knowledge and the insight to discern beneath its cap-and-bells and the motley that is its only wear a serious menace to all that civilized men hold precious in woman. It is of the nature of men—themselves cheerful polygamists, with no penitent intentions—to set a high value upon chastity in woman. (We need not point out why they do so; those to whom the reasons are not clear can profitably remain in the valley of the shadow of ignorance.) Valuing it, they purpose having it, or some considerable numerical presumption of it. As they perceive that in a general way women are virtuous in proportion to the remoteness of their lives and interests from the lives and interests of

men—their seclusion from the influences of which men's own vices are a main part—an easy and peaceful means will doubtless be found for repression of the shouters.

In the orchestration of mind, woman's instruments might have kept silence without injury to the volume and quality of the music; efface the impress of her touch upon the world, and by those who come later the blank must be diligently sought. Go to the top of any large city and look about and below. It is not much that you will see, but it represents an amazing advance from the conditions of primitive man. Nowhere in the wide survey will you see the work of woman. It is all the work of men's hands, and before it was wrought into form and substance, existed as conscious creations in men's brains. Concealed within the visible forms of buildings and ships—themselves miracles of thought—lie such wonder-worlds of invention and discovery as no human life is long enough to explore, no human understanding capacious enough to hold in knowledge. If, like Asmodeus, we could rive the roofs and see woman's part of this prodigious exhibition—the things that she has actually created with her brain—what kind of display would it be? It is probable that all the intellectual energy expended by women from first to last would not have sufficed, if directed into one channel, for the genesis and evolution of the modern bicycle.

“There is no sex in brain,” says the Female Militant. I beg her pardon: there is sex in every organ, every tissue, every cell and atom of the human body; but in nothing do men and women differ so widely, so conspicuously, so essentially as in mind. They think after altogether different methods; their mental processes are to a clear and competent observation without resemblance to ours. So different is the mental constitution of the two sexes that whereas all see not mainly with the eye, but with the judgment, the understanding, even the outer aspect of things is, I am persuaded, not the same to a woman that it is to a man. I have taken some trouble to test this theory, with results of the most interesting character, which I purpose giving to the world some day. It is my conviction that if a man who had lived all his life in New York were to become a woman while passing along Broadway she would be unable to find her way home without inquiry.

I once heard a woman who had playfully competed with men in a jumping match gravely attribute her defeat to the trammeling of her skirt. Similarly, women are pleased to explain their penury of mental achievement

by repressive education and custom. But even in regions where they have ever had full freedom of the quarries they have not builded themselves monuments. Nobody, for example, is holding them from greatness in poetry, which needs no special education, and music, in which they have always been specially educated; yet where is the great poem by a woman? where the great musical composition? In the grammar of literature what is the feminine of Homer, of Shakspeare, of Goethe, of Hugo? What female names are the equivalents of the names of Beethoven, Mozart, Chopin, Wagner? Women are not musicians—they “sing and play.” In short, if woman had no better claim to respect and affection than her brain; no sweeter charms than those of her reason; no means of suasion but her power upon men’s convictions, she would long ago have been “improved off the face of the earth.” As she is, men accord her such homage as is compatible with contempt, such immunities as are consistent with control; but whereas she is not altogether filled with light, and is, moreover, imperfectly reverent, it is but right that in obedience to scriptural injunction she keep silence in our churches while we are worshipping Ourselves.

She will not have it so, the good, good girl; as moral as the best of us, she will be as intellectual as the rest of us. She will have out her little taper and set the rivers of thought all ablaze, legging it over the land from stream to stream till all are fired. She will widen her sphere, forsooth, herself no wider than before. It is not enough that we have edified her a pedestal and perform impossible rites in celebration of her altitude and distinction. It does not suffice that with never a smile we assure her that she is the superior sex. That she is indubitably gifted with pulchritude and an unquestionable genius for its embellishing; that Nature has endowed her with a prodigious knack at accroachment, whereby the male of her species is lured to a suitable doom—this does not satisfy her. No; she has taken unto herself in these evil days that “intelligent discontent” which giveth its beloved fits. To her flock of graces and virtues she must add our one poor ewe lamb of brains. Well, I tell her that intellect is a monster which devours beauty; that the woman of exceptional mind is exceptionally masculine in face, figure, action. And so, with a reluctant farewell to Lovely Woman, I humbly withdraw from her presence and hasten to overtake the receding periphery of her “sphere.”

One moment more, mesdames: I crave leave to estop your disfavor—which were affliction and calamity—by “defining my position” in the words of one of yourselves, who has said of me (though with reprehensible exaggeration, believe me) that I hate woman and love women—have an acute animosity to your sex, adoring each individual member of it. What matters my opinion of your understandings so long as I am in bondage to your charms? Moreover, there is one service of incomparable utility and dignity for which I esteem you eminently fit—to be mothers of men.

A MAD WORLD

LET us suppose that in tracing its cycloidal curves through the unthinkable reaches of space traversed by the solar system our planet should pass through a “belt” of attenuated matter having the property of dementing us! It is a conception easily enough entertained. That space is full of malign conditions incontinuously distributed; that we are at one time traversing a zone comparatively innocuous and at another spinning through a region of infection; that away behind us in the wake of our swirling flight are fields of plague and pain still agitated by our passage through them,—all this is as good as known. It is almost as certain as it is that in our little annual circle round the sun are points at which we are stoned and brickbatted like a pig in a potato-patch—pelted with little nodules of meteoric metal flung like gravel, and bombarded with gigantic masses hurled by God knows what? What strange adventures await us in those yet untraveled regions toward which we speed?—into what malign conditions may we not at any time plunge?—to the strength and stress of what frightful environment may we not at last succumb? The subject lends itself readily enough to a jest, but I am not jesting: it is really altogether probable that our solar system, racing through space with inconceivable velocity, will one day enter a region charged with something deleterious to the human brain, minding us all madwise.

By the way, dear reader, did you ever happen to consider the possibility that you are a lunatic, and perhaps confined in an asylum? It seems to you that you are not—that you go with freedom where you will, and use a sweet reasonableness in all your works and ways; but to many a lunatic it seems that he is Rameses II, or the Holkar of Indore. Many a plunging maniac, ironed to the floor of a cell, believes himself the Goddess of Liberty careering gaily through the Ten Commandments in a chariot of gold. Of your own sanity and identity you have no evidence that is any better than he has of his. More accurately, I have none of mine; for anything I know, you do not exist, nor any one of all the things with which I think myself familiarly conscious. All may be fictions of my disordered imagination. I

really know of but one reason for doubting that I am an inmate of an asylum for the insane—namely, the probability that there is nowhere any such thing as an asylum for the insane.

This kind of speculation has charms that get a good neck-hold upon attention. For example, if I am really a lunatic, and the persons and things that I seem to see about me have no objective existence, what an ingenious though disordered imagination I must have! What a clever *coup* it was to invent Mr. Rockefeller and clothe him with the attribute of permanence! With what amusing qualities I have endowed my laird of Skibo, philanthropist. What a masterpiece of creative humor is my Fatty Taft, statesman, taking himself seriously, even solemnly, and persuading others to do the same! And this city of Washington, with its motley population of silurians, parvenoodles and scamps pranking unashamed in the light of day, and its saving contingent of the forsaken righteous, their seed begging bread,—did Rabelais' exuberant fancy ever conceive so—but Rabelais is, perhaps, himself a conception.

Surely he is no common maniac who has wrought out of nothing the history, the philosophies, sciences, arts, laws, religions, politics and morals of this imaginary world. Nay, the world itself, tumbling uneasily through space like a beetle's ball, is no mean achievement, and I am proud of it. But the mental feat in which I take most satisfaction, and which I doubt not is most diverting to my keepers, is that of creating Mr. W. R. Hearst, pointing his eyes toward the White House and endowing him with a perilous Jacksonian ambition to defile it. The Hearst is distinctly a treasure.

On the whole, I have done, I think, tolerably well, and when I contemplate the fertility and originality of my inventions, the queer unearthliness and grotesque actions of the characters whom I have evolved, isolated and am cultivating, I cannot help thinking that if Heaven had not made me a lunatic my peculiar talent might have made me an entertaining writer.

THE AMERICAN SYCOPHANT

I

AN American writer holds this opinion:

“If republican government had done nothing else than give independence to American character and preserve it from the servility inseparable from allegiance to kings, it would have accomplished a great work.”

I do not doubt that the writer of that sentence believes that republican government has actually wrought the change in human nature that challenges his admiration. He is sure that his countrymen are not servile; that before rank and power and wealth they stand covered, maintaining “the godlike attitude of freedom and a man” and exulting in it. It is not true; it is an immeasurable distance from the truth. We are as abject toadies as any people on earth—more so than any European people of similar civilization. When a foreign emperor, king, prince or nobleman comes among us the rites of servility that we execute in his honor are baser than any that he ever saw in his own land.

In his blind and brutal scramble for social recognition in Europe, the traveling American toady and impostor has many chances of success: he is commonly unknown even to ministers and consuls of his own country, and these complaisant gentlemen, rather than incur the risk of erring on the wrong side, take him at his own valuation and push him in where, his obscurity being again in his favor, he is treated with kindly toleration and sometimes a genuine hospitality to which he has no shadow of right nor title, and which, if he were a gentleman, he would not accept if it were voluntarily proffered. It should be said in mitigation that all this delirious abasement in no degree tempers his rancor against the system of which the foreign notable is the flower and fruit. He keeps his servility sweet by preserving it in the salt of vilification. In the character of blatant blackguard the American snob is so happily disguised that he does not know himself.

An American newspaper once printed a portrait of her whom the irreverent Briton had a reprehensible habit of designating colloquially as “The Old Lady.” But the editor in question did not so designate her—his simple American manhood and republican spirit would not admit that she was a lady. So he contented himself with labeling the portrait “Her Most Gracious Majesty Queen Victoria.” This incident raises an important question.

Important Question Raised by This Incident: Is it better to be a subject and a man, or a citizen and a flunkey?—to own the sway of a “gory tyrant” and retain one’s self-respect, or dwell, a “sovereign elector,” in the land of liberty and disgrace it?

However it may be customary for English newspapers to designate the British sovereign, they are at least not addicted to sycophancy in designating the rulers of other countries than their own. They would not say “his Abracadabral Humptidumptiness Emperor William,” nor “his Pestilency the Speaker of the American House of Representatives.” They would not think of calling even the most ornately self-bemedaed American sovereign elector “his Badgesty.” Of a foreign nobleman they do not say “his lordship;” they will not admit that he is a lord; nor when speaking of their own noblemen do they spell “lord” with a capital L, as we do. In brief, when mentioning foreign dignitaries, of whatever rank in their own countries, the English press is simply and serviceably descriptive: the king is a king, the queen a queen, the jack a jack.

At the foundation of our political system lies the denial of hereditary and artificial rank. Our fathers created this government as a protest against all that, and all that it implies. They virtually declared that kings and noblemen could not breathe here, and no American loyal to the principles of the Revolution which made him one will ever say in his own country “your majesty” or “your lordship”—the words would choke him, and they ought.

There are a few of us who keep the faith, who do not bow the knee to Baäl, who hold fast to what is high and good in the doctrine of political equality; in whose hearts the altar-fires of rational liberty are kept aglow, beaconing the darkness of that “illimited inane” where their countrymen, inaccessible to the light, wander witless in the bogs of political unreason, alternately adoring and damning the man-made gods of their own stature.

Of that bright band fueling the bale-fires of political consistency I can not profess myself a member in good standing. In view of this general recreancy and treason to the principles that our fathers established by the sword—having in constant observation this almost universal hospitality to the solemn nonsense of hereditary rank and unearned distinction, my faith in practical realization of republican ideals is small, and I falter in the work of their maintenance in the interest of a people for whom they are too good. Seeing that we are immune to none of the evils besetting monarchies, excepting those for which we secretly yearn; that inequality of fortune and unjust allotment of honors are as conspicuous among us as elsewhere; that the tyranny of individuals is as intolerable and that of the public more so; that the law's majesty is a dream and its failure a fact—hearing everywhere the footfalls of disorder and the watchwords of anarchy, I despair of the republic, and catch in every breeze that blows “a cry prophetic of its fall.”

I have seen a vast crowd of Americans change color like a field of waving grain, as it uncovered to do such base homage to a petty foreign princess as in her own country she had never received. I have seen full-grown, self-respecting American citizens tremble and go speechless when spoken to by an Emperor of Brazil. I have seen a half-dozen American gentlemen in evening clothes trying to outdo one another in the profundity of their bows in the presence of a nigger King of Hawaii. I have not seen a Chinese “earl” borne in a chair by four Americans officially detailed for the disgraceful service, but it was done, and did not evoke a hiss of disapproval. And I did not—thank Heaven!—observe the mob of American “simple republicans” that dogged the heels of a disreputable little Frenchman who is a count by courtesy only, and those of an English duke quietly attending to his own business of making a living by being a married man. The republican New World is no less impested with servility than the monarchical Old. One form of government may be better than another for this purpose, or for that; all are alike in the futility of their influence upon human character. None can affect man's instinctive abasement in the contemplation of power and rank.

Not only are we no less sycophantic than the people of monarchical countries; we are more so. We grovel before their exalted personages, and perform in addition a special prostration at the clay feet of our own idols—which *they* do not revere. The typical subject, hat-in-hand to his sovereign

and his nobleman, is a less shameful figure than the citizen executing his genuflexion before the public of which he is himself a part. No European court journal, no European courtier, was ever more abject in subservience to the sovereign than are the American newspaper and the American politician in flattery of the people. Between the courtier and the demagogue I see nothing to choose. They are moved by the same sentiment and fired by the same hope. Their method is flattery, and their purpose profit. Their adulation is not a testimony to character, but a tribute to power, or the shadow of power. If this country were governed by its criminal idiots we should have the same attestations of their goodness and wisdom, the same competition for their favor, the same solemn doctrine that their voice is the voice of God. Our children would be brought up to believe that an Idiotocracy is the only natural and rational form of government. And for my part I'm not at all sure that it would not be a pretty good political system, as political systems go. I have always, however, cherished a secret faith in Smithocracy, which seems to combine the advantages of both the monarchical and the republican idea. If all the offices were held for life by Smiths—the senior John being President—we should have a settled and orderly succession to allay all fears of a perilous interregnum and a sufficiently wide eligibility to feed the fires of patriotic ambition. All could not be Smiths, but many could marry into the family.

II

The Harrison “progress” (notable as precursor to many another) left its heritage of shame, whereof each abaser would gladly have washed the hands of him in his neighbor's basin. All this was in due order of nature, and was to have been expected. It was a phenomenon of the same character as, in the loves of the low, the squabbling consequent upon satiety and shame. We could not slink out of sight; we could not deny our sycophancy, albeit we might give it another name; but we could somewhat medicine our impaired self-esteem by dealing damnation round on one another. The blush of shame turns easily to the glow of indignation, and many a hatred is kindled at the rosy flame of self-contempt. Persons conscious of having dishonored themselves are doubly sensitive to any indignity put upon them by others. The vices and follies of human nature are interdependent; they are not singly roused to activity.

In my judgment, this entire incident of the President's "tour" was discreditable to President and people. I do not go into the question of his motive in making it. Be that what it may, the manner of it seems to me an outrage upon all the principles and sentiments underlying republican institutions. In all but the name it was a "royal progress"—the same costly ostentation, the same civic and military pomp, the same solemn and senseless adulation, the same abasement of spirit of the Many before the One. According to republican traditions ten thousand times a year affirmed in every way in which affirmation is possible, we fondly persuade ourselves that we hold as a true faith in the hearts of our hearts that the One is the servant of the Many! And it is no mere political catchphrase: he *is* their servant; he *is* their creature; all that in him to which they grovel (dignifying and justifying their instinctive and inherited servility by names as false as anything in ceremonial imposture) they themselves have made, as truly as the heathen has made the wooden god before which he performs his unmanly rite. It is precisely this thing—the superiority of the people to their servants—that constitutes, and was by our fathers understood to constitute, the essential, fundamental difference between the system which they uprooted and the one which they planted in its stead. Deluded men! how little they guessed the length and strength and vitality of the roots left in the soil of the centuries when the noxious harvestage had been cast as rubbish to the void!

I am no contestant for forms of government—no believer in either the excellence or the permanence of any that has yet been devised. That all men are created equal, in the best and highest sense of the phrase, I hold, not as I observe it held by others, but as a living faith. That an officeholder is a servant of the people; that I am his political superior, owing him no deference, but entitled to such deference from him as may be serviceable to keep him in mind of his subordination—these are propositions which command my assent, which I *feel* to be true and which determine the character of my personal relations with those whom they concern. That I should give my hand, or bend my neck, or uncover my head to any man in mere homage to, or recognition of, his office, great or small, is to me simply inconceivable. These tricks of servility with the softened names are the vestiges of an involuntary allegiance to power extraneous to the performer. They represent in our American life obedience and propitiation in their most primitive and odious forms. The man who speaks of them as manifestations

of a proper respect for “the President’s great office” is either a rogue, a dupe or a journalist. They come to us out of a fascinating but terrible past as survivals of servitude. They speak a various language of oppression and the superstition of man-worship; they carry forward the traditions of the sceptre and the lash. Through the plaudits of the people may be heard always the faint, far cry of the beaten slave.

Respect? Respect the good. Respect the wise. Let the President look to it that he belongs to one of these classes. His going about the country in gorgeous state and barbaric splendor as the guest of a thieving corporation, but at our expense—shining and dining and swining—unsouling himself of clotted nonsense in pickled platitudes calculated for the meridian of Coon Hollow, Indiana, but ingeniously adapted to each water tank on the line of his absurd “progress,” does not prove it, and the presumption of his “great office” is against him.

Can you not see, poor misguided “fellow citizens,” how you permit your political taskmasters to forge leg-chains of your follies and load you down with them? Will nothing teach you that all this fuss-and-feathers, all this ceremony, all this official gorgeousness and brass-banding, this “manifestation of a proper respect for the nation’s head” has no decent place in American life and American politics? Will no experience open your stupid eyes to the fact that these shows are but absurd imitations of royalty, to hold you silly while you are plundered by the managers of the performance?—that while you toss your greasy caps in air and sustain them by the ascending current of your senseless hurrahs the programmers are going through your blessed pockets and exploiting your holy dollars? No; you feel secure; power is of the People, and you can effect a change of robbers every four years. Inestimable privilege—to pull off the gluttoned leech and attach the lean one! And you can not even choose among the lean leeches, but must accept those designated by the programmers and showmen who have the reptiles in stock! But then you are not “subjects;” you are “citizens”—there is much in that. Your tyrant is not a “king;” he is a “president.” He does not occupy a “throne,” but a “chair.” He does not succeed to it by inheritance; he is pitchforked into it by the boss. Altogether,

you are distinctly better off than the Russian mujik who wears his shirt outside his trousers and has never shaken hands with the Czar in all his life.

III

I hold that kings and noblemen can not breathe in America. When they set foot upon our soil their royalty and their nobility fall away from them like the chains of a slave in England. Whatever a man may be in his own country, here he is only a man. My countrymen may do as they please, but I make a stand for simple American manhood. I will meet no man on this soil who expects from me a greater deference than I could properly accord to a citizen of my own country. My allegiance to republican institutions is slack through lack of faith in them as a practical system of governing men as men are; all the same, I will call no man "your majesty," nor "your lordship." For me to meet in my own country a king or a nobleman would require as much preliminary negotiation as an official interview between the Mufti of Moosh and the Ahkoond of Swat. The form of salutation and the style and title of address would have to be settled definitively and with precision.

With some of my most esteemed and patriotic friends the matter is more simple; their generosity in concession fills me with admiration and their forbearance in demand challenges my astonishment as one of the seven wonders of American hospitality. In fancy I see the ceremony of their "presentation," and as examples of simple republican dignity I commend their posture to the youth of this fair New World, inviting particular attention to the grand, bold curves of character shown in the outlines of the human ham.

DOG

I

OF all anachronisms and survivals the love of the dog is the most reasonless. Because, some thousands of years ago, when we all wore other skins than our own and sat enthroned upon our haunches, tearing tangles of tendons from raw bones with our teeth, the dog ministered purveyorwise to our savage needs, we go on cherishing him to this day, when his only function is to lie sun-soaken on a door mat and insult us as we pass in and out enamored of his fat superfluity. One dog in a thousand earns his bread—and takes beefsteak; the other nine hundred and ninety-nine we maintain in the style suitable to their state by cheating the poor.

The trouble with the modern dog is that he is the same old dog. Not an inch has the rascal advanced along the line of evolution. We have ceased to squat upon our naked haunches and gnaw raw bones, but this companion of the childhood of the race, this vestigial remnant of *juventus mundi*, this dismal anachronism, this veteran inharmony in the scheme of things, the dog, has abated no jot nor tittle of his unthinkable objectionableness since the morning stars sang together and he had sat up all night to deflate a lung at the performance. Possibly he may some time be improved otherwise than by effacement, but at present he is still in that early stage of reform that is not inconsistent with a mouthful of reformer.

The dog is a detestable quadruped. He knows more ways to be unmentionable than can be named in seven languages. The word “dog” is a term of contempt the world over, as in the Scriptures. Poets have sung and prosaists have prosed of the virtues of individual dogs, but nobody has had the hardihood to eulogize the species. No man loves the Dog; one loves his own dog, and there stops; the force of perverted affection can no further go. He loves his own dog partly because that thrifty creature, ever cadging when not marauding, tickles his vanity by fawning upon him as the visible source of steaks and bones; and partly because the graceless beast insults everybody else, harming as many as he dares.

The dog is an encampment of fleas, and a reservoir of sinful smells. He is prone to bad manners as the sparks fly upward. He has no discrimination; his loyalty is given to the person that feeds him, be the same a blackguard or a murderer. He fights for his master without regard to the justice of the quarrel—wherein he is no better than a patriot or a soldier. There are men who are proud of a dog's love—and dogs love that kind of men. There are men who, having the privilege of loving women, insult them by loving dogs; and there are women who forgive and respect their canine rivals. Women, I am told, are true cynolaters; they adore not only dogs, but Dog—not only their own horrible little beasts, but those of others. But women will love anything; they even love men who love dogs. I sometimes wonder how it is that of all our women among whom the dog fad is prevalent none has incurred the husband fad, or the child fad. Possibly there are exceptions, but it seems to be a rule that the female heart which has a dog in it is without other lodgers. There is not, probably, a very wild and importunate demand for accommodation. For my part, I do not know which is the less desirable, the tenant or the tenement. There are dogs that submit to be kissed by women base enough to kiss them; but they have a secret, coarse revenge. For the dog is a joker, withal, gifted with as much humor as is consistent with biting.

Miss Louise Imogen Guiney has replied to Mrs. Meynell's proposal to abolish the dog—a proposal which Miss Guiney has the originality to call “original.” Divested of its “literature,” Miss Guiney's plea for the defendant consists, essentially, of the following assertions: (1) Dogs are whatever their masters are. (2) They bite only those who fear them. (3) Really vicious dogs are not found nearer than Constantinople. (4) Only wronged dogs go mad, and hydrophobia is retaliation. (5) In actions for damages for dog-bites judicial prejudice is against the dog. (6) Dogs are continually saving children from death. (7) Association with dogs begets piety, tenderness, mercy, loyalty, and so forth; in brief, the dog is an elevating influence: “to walk modestly at a dog's heels is a certificate of merit!” As to that last, if Miss Guiney had ever had the educating good fortune to observe the dog himself walking modestly at the heels of another dog she would perhaps have wished that it were not the custom of her sex to seal the certificate of merit with a kiss.

In all this absurd woman's statements, thus fairly epitomized, there is not one that is true—not one of which the essential falsity is not evident, obvious, conspicuous to even the most delinquent observation. Yet with the smartness and smirk of a graduating seminary girl refuting Epicurus she marshals them against the awful truth that every year in Europe and the United States alone more than one thousand human beings die of hydrophobia—a fact which her controversial conscience does not permit her to mention. The names on this needless death-roll are mostly those of small folk, the sins of whose parents in cherishing their own hereditary love of dogs is visited upon their children because these have not the intelligence and agility to get out of the way. Or perhaps they lack that tranquil courage upon which Miss Guiney relies to avert the canine tooth from her own inedible shank.

Finally this amusing illogician, this type and example of the female controversialist, has the hardihood to hope that there may be fathers who can see their children die the horrible death of hydrophobia without wishing “to exile man's best ideal of fidelity from the hearthstones of civilization.” If we must have an “ideal of fidelity” why not find it, not in the dog that kills the child, but in the father that kills the dog? The profit of maintaining a standard and pattern of the virtues (at considerable expense in the case of this insatiable canine consumer) may be great, but are we so hard pushed that we must go to the animals for it? In life and letters are there no men and women whose names kindle enthusiasm and emulation? Is fidelity, is devotion, is self-sacrifice unknown among ourselves? As a model of the higher virtues why will not one's mother serve at a pinch? And what is the matter with Miss Guiney herself? She is faithful, at least to dogs, whatever she may be to the hundreds of American children foredoomed to a death of unthinkable agony from hydrophobia.

There is perhaps a hope that when the sun's returning flame shall gild the hither end of the thirtieth century this savage and filthy brute, the dog, will have ceased to “banquet on through a whole year” of human fat and lean; that he will have been gathered to his variously unworthy fathers to give an account of his deeds done in the body of man. In the meantime, those of us who have not the enlightened understanding to be enamored of him may endure with such fortitude as we can command his feats of tooth among the

shins and throats of those who have; we ourselves are so few that there is a strong numerical presumption of personal immunity.

It is well to have a clear understanding of such inconveniences as may be expected to ensue from dog-bites. That inconveniences and even discomforts do sometimes flow from, or at least follow, the mischance of being bitten by dogs, even the sturdiest champion of “man’s best friend” will admit when not heated by controversy. True, he is indisposed to sympathy for those incurring the inconveniences and discomforts, but against this apparent incompassion may be offset his indubitable sympathy with the dog. No one is altogether heartless.

Amongst the several disadvantages of a close personal connection with the canine tooth, the disorder known as hydrophobia has long held an undisputed primacy. The existence of this ailment is attested by so many witnesses, many of whom, belonging to the profession of medicine, speak with a certain authority, that even the breeders and lovers of snap-dogs are compelled reluctantly to concede it, though as a rule they stoutly deny that it is imparted by the dog. In their view, hydrophobia is a theory, not a condition. The patient, even if he is a babe, imagines himself to have it, and acting upon that unsupported assumption or hypothesis, suffers and dies in the attempt to square his conduct with his opinions. It seems there is firmer ground for their view of the matter than the rest of us have been willing to admit. There is such a thing, doubtless, as hydrophobia proper, but also there is such another thing as pseudo-hydrophobia, or hydrophobia improper.

Pseudo-hydrophobia, the physicians explain, is caused by fear of hydrophobia. The patient, having been chewed by a healthy and harmless dog, broods upon his imaginary peril, solicitously watches his imaginary symptoms and finally persuading himself of their reality, puts them on exhibition as he understands them. He runs about (when permitted) on his hands and knees, growls, barks, howls and, in default of a tail, wags the part of him where it would be if he had it. In a few days he is gone before, a victim to his lack of confidence in man’s best friend.

The number of cases of pseudo-hydrophobia, relative to those of true hydrophobia, is not definitely known, the medical records having been imperfectly made and never collated; champions of the snap-dog, as

intimated, believe it is many to nothing. That being so (they argue) the animal is entirely exonerated and leaves the discussion without a stain upon his reputation.

But that is feeble reasoning; even if we grant their premises we can not embrace their conclusion. In the first place, it hurts to be bitten by a dog, as the dog himself audibly confesses when bitten by another dog. Furthermore, pseudo-hydrophobia is quite as fatal as if it were a legitimate product of the bite, not a result of the terror which that mischance inspires.

Human nature being what it is, and well known to the dog to be what it is, we have a right to expect that the creature will take our weaknesses into consideration—that he will respect our addiction to reasonless panic, even as we respect his when, as we commonly do, we refrain from attaching tinware to his tail. A dog that runs himself to death to evade a kitchen utensil which could not possibly harm him, and which if he did not flee would not pursue, is the author of his own undoing in precisely the same sense as is the victim of pseudo-hydrophobia. He is slain by a theory. Yet the wicked boy that set him going is not blameless, and no one would be so zealous and strenuous in his prosecution as the cynolater, the adorer of dogs, the person who holds them guiltless of pseudo-hydrophobia.

II

Mr. Nicholas Smith, while United States consul at Liege, wrote, or caused to be written, an official report, wickedly, wilfully and maliciously designed to abridge the privileges, augment the ills and impair the honorable status of the domestic dog. In the very beginning of this report Mr. Smith manifests his animus by stigmatizing the domestic dog as an “hereditary loafer;” and having “hurled the allegation,” affirms “the dawn of a (Belgian) new era” wherein the pampered menial will loaf no more. There is to be no more sun-soaking on door mats having a southern exposure, no more usurpation of the warmest segment of the family semicircle, no more personal solicitation of cheer at the domestic board. The dog’s place in the social scale is no longer to be determined by considerations of sentiment, but will be the result of cold commercial calculation, and so fixed as best to serve the ends of industrial expediency. All this in Belgium, where the dog is already in active service as a beast of burden and draught; doubtless the transition to that humble condition from

his present and immemorial social elevation in less advanced countries will be slow and characterized by bitter factional strife. America, especially, although ever accessible to the infection of new and profitable ideas, will be slow to accept so radical a subversion of a social superstructure that almost may be said to rest upon the domestic dog as a basic verity.

The dogs are our only true “leisure class” (even our tramps are sometimes compelled to engage in such simple industries as are possible in the county jail) and we are justly proud of them. Dogs toil not, neither spin, yet Solomon in all his glory was not a dog. Instead of making them hewers of wood and drawers of water, it would be more consonant with the Anglomaniacal and general Old World spirit, now so dominant in the councils of the nation, to make them “hereditary legislators.” And Mr. Smith must permit me to add, with a special significance, that history records an instance of even a horse making a fairly good consul.

Mr. Smith avers with obvious satisfaction that in Liege twice as many draught dogs as horses are seen in the streets, attached to vehicles. He regards “a gaily painted cart” drawn by “a well fed dog” and driven by a well fed (and gaily painted) woman as a “pleasing vision.” I do not; I should prefer to see the dog sitting at the receipt of steaks and chops and the lady devoting herself to the amelioration of the condition of the universe and the manufacture of poetry and stories that are not true. A more pleasing vision, too, one endeared to eye and heart by immemorial use and wont, is that of stranger and dog indulging in the pleasures of the chase—stranger a little ahead—while the woman in the case manifests a characteristically compassionate solicitude lest the gentleman’s trousers do not match Fido’s mustache. It is, indeed, impossible to regard with any degree of approval the degradation to commercial utility of two so noble animals as Dog and Woman; and if Man had joined them together by driving-reins I should hope that God would put them asunder, even if the reins were held by Dog. There would no doubt be a distinct gain as well as a certain artistic fitness in unyoking the strong-minded female of our species from the chariot of progress and yoking her to the apple-cart or fish-wagon, but imminence of the draughtwoman is not foreshadowed in the report of our consul at Liege.

Mr. Smith’s estimate of the number of dogs in this country at seven millions is a moderate one, it must be confessed, and can hardly have been based on observations by moonlight in a suburban village; his estimate of

the effective strength of the average dog at five hundred pounds is probably about right, as will be attested by any intelligent boy who in a campaign against an orchard has experienced detention by the Cerberus of the place. Taking his own figures, Mr. Smith calculates that we have in this country three-and-a-half billion pounds of "idle dog power." But this statement is more ingenious than ingenuous; it gives, as doubtless it was intended to give, the impression that we have only idle dogs, whereas of all mundane forces the domestic dog is most easily stirred to action. His expense of energy in pursuit of the harmless, necessary flea, for example, is prodigious; and he is not infrequently seen in chase of his own tail, with an activity scarcely inferior. If there is anything worth while in accepted theories of the conversion and conservation of force these gigantic energies are by no means wasted; they reappear as heat, light and electricity, modifying climate, reducing gas bills and assisting in propulsion of street cars. Even in baying the moon and terrifying visitors and bypassers, the dog releases a certain amount of vibratory force which through various mutations of its wave-length may do its part in cooking a steak or gratifying the olfactory nerve by throwing fresh perfume on the violet. Evidently the commercial advantages of deposing the dog from his position of Exalted Personage and subduing him to that of Motor would not be all clear gain. He would no longer have the spirit to send, Whitmanwise, his barbarous but beneficent yawp over the housetops, nor the leisure to throw off vast quantities of energy by centrifugal efforts at the conquest of his tail. As to the fleas, he would accept them with apathetic satisfaction as preventives of thought upon his fallen fortunes.

Having observed with attention and considered with seriousness, a respectable authority declares his conviction that the dog, as we have the happiness to know him, is dreadfully bored by civilization. This is one of the gravest accusations that the friends of progress and light have been called out to meet—a challenge that it is impossible to ignore and unprofitable to evade; for the dog as we have the happiness to know him is the only dog that we have the happiness really to know. The wolf is hardly a dog within the meaning of the law, nor is the scalp-yielding coyote, whether he howls or merely sings and plays the piano; moreover, these are beyond the pale of civilization and outside the scope of our sympathies.

With the dog it is different. His place is among us; he is with us and of us—a part of our life and love. If we are maintaining and promoting a condition of things that fatigues him it is befitting that we mend our ways lest, shaking the carpet dust from his feet and the tenderloin steaks from his teeth, he depart from our midst and connect himself with the enchanted life of the thrilling barbarian. We can not afford to lose him. The cynophobes may call him a “survival” and sneer at his exhausted mandate—albeit, as Darwin points out, they are indebted for their sneer to his own habit of uncovering his teeth to bite; they may seek to cast opprobrium upon the nature of our affection for him by pronouncing it hereditary—a bequest from our primitive ancestors, for whom he performed important service in other ways than depriving visitors of their tendons; but quite the same we should miss him at his meal time and in the (but for him) silent watches of the night. We should miss his bark and his bite, the feel of his forefeet upon our shirt-fronts, the frou-frou of his dusty sides against our nether habiliments. More than all, we should miss and mourn that visible yearning for chops and steaks, which he has persuaded us to accept as the lovelight of his eye and a tribute to our personal worth. We must keep the dog, and to that end find means to abate his weariness of us and our ways.

Doubtless much might be done to reclaim our dogs from their uncheerful state of mind by abstention from debate on the protective tariff; by excluding them from the churches, at least during the sermons; by keeping them off the streets and out of hearing when rites of prostration are in performance before visiting notables; by forbidding anyone to read aloud in their hearing the more phrenetic articles in the newspapers, and by educating them to the belief that labor and capital are illusions. A limitation of the annual output of popular novels would undoubtedly reduce the dejection, which could be still further mitigated by abolition of the more successful magazines. If the dialect story or poem could be prohibited, under severe penalties, the sum of night-howling (erroneously attributed to lunar influence) would experience an audible decrement, which, also, would enable the fire department to augment its own uproar without reproach. There is, indeed, a considerable number of ways in which we might effect a double reform—promoting the advantage of Man, as well as medicating the mental fatigue of Dog. For another example, it would be “a boon and a blessing to men” if society would put to death, or at least banish, the millman or manufacturer who persists in apprising the entire community

many times a day by means of a steam whistle that it is time for his oppressed employees (every one of whom has a gold watch) to go to work or to leave off. Such things not only make a dog tired, they make a man mad. They answer with an accented affirmative Truthful James's plaintive inquiry,

Is civilization a failure,
Or is the Caucasian played out?

Unquestionably, from his advantageous point of view as a looker-on at the game, the dog is justified in the conviction that they are.

THE ANCESTRAL BOND

A WELL-KNOWN citizen of Ohio once discovered another man of the same name exactly resembling him, and writing a “hand” which, including the signature, he was unable to distinguish from his own. The two men were unable to discover any blood relationship between them. It is nevertheless almost certain that a relationship existed, though it may have been so remote a degree that the familiar term “forty-second cousin” would not have exaggerated the slenderness of the tie. The phenomena of heredity seem to me to have been inattentively noted, its laws imperfectly understood, even by Herbert Spencer and the prophets. My own small study in this amazing field convinces me that a man is the sum of his ancestors; that his character, moral and intellectual, is determined before his birth. His environment with all its varied suasions, its agencies of good and evil; breeding, training, interest, experience and the rest of it—have less to do with the matter and can not annul the sentence passed upon him at conception, compelling him to be what he is.

Man is the hither end of an immeasurable line extending back to the ultimate Adam—or, as we scientists prefer to name him, Protoplasmos. Man travels, not the mental road that he would, but the one that he must—is pushed this way and that by the resultant of all the forces behind him; for each member of the ancestral line, though dead, yet pusheth. In one of what Dr. Holmes calls his “medicated novels,” *The Guardian Angel*, this truth is most admirably and lucidly set forth with abundant instance and copious exposition. Upon another work of his—in which he erroneously affirms the influence of circumstance and environment—let us lay a charitable hand and fling it into the fire.

Clearly all a man’s ancestors have not equal power in shaping his character. Conceiving them, according to our figure, as arranged in line behind him and influential in the ratio of their individuality, we shall get the best notion of their method by supposing them to have taken their places in an order somewhat independent of chronology and a little different from their arrangement behind his brother. Immediately at his back, with a

controlling hand (a trifle skinny) upon him, may stand his great-grandmother, while his father may be many removes arrear. Or the place of power may be held by some fine old Asian gentleman who flourished before the confusion of tongues on the plain of Shinar; or by some cave-dweller who polished the bone of life in Bythynia and was perhaps a respectable and honest troglodyte.

Sometimes a whole platoon of ancestors appears to have been moved backward or forward *en bloc*, not, we may be sure, capriciously, but in obedience to some law that we do not understand. I know a man to whose character not an ancestor since the seventeenth century appears to have contributed an element. Intellectually he is a contemporary of John Dryden, whom naturally he reveres as the greatest of poets. There was another who inherited his handwriting from his great-grandfather, although trained to "the Spencerian system" that he tried vainly to acquire. Furthermore, his handwriting followed the same order of progressive development as that of his great-grandfather. At the age of twenty he wrote exactly as that ancestor did at the same age, and, although at forty-five his chirography was nothing like what it was even ten years before, it was accurately like his great-grandfather's at forty-five. Discovery of some old letters showed him how his great-grandfather wrote, and accounted for the dissimilarity of his own handwriting to that of any known member of his family, or his teachers.

To suppose that such individual traits as the configuration of the body, the color of the hair and eyes, the shape of hands and feet, the thousand-and-one subtle characteristics that make family resemblances, are transmissible, and that the form, texture and capacities of the brain which fix the kind and degree of natural intellect, are *not* transmissible, is illogical. We see that certain actions, such as gestures, gait, and so forth, resulting from the most complex concurrences of brain, nerves and muscles, are hereditary. Is it reasonable to suppose that the brain alone of all the organs performs its work according to its own sweet will, free from congenital tendencies? Is it not a familiar fact that racial characteristics are persistent?—that one race is stupid and indocile, another quick and intelligent? Does not each generation of a race inherit the intellectual qualities of the preceding generation? How could this be true of generations if it were not true of individuals?

As to stirpiculture, the intelligent and systematic breeding of men and women with a view to improvement of the species—it is a thing of the far future. It is hardly in sight. Yet, what splendid possibilities it carries! Two or three generations of as careful breeding as we bestow on horses, dogs and pigeons would do more good than all the penal, reformatory and educating agencies of the world accomplish in a thousand years. It is the one direction in which human effort to “elevate the race” can be assured of a definitive, speedy and adequate success. It is hardly better than nonsense to prate of any good coming to the race through (for example) medical science, which is mainly concerned in reversing the beneficent operation of natural laws and saving the inefficient to perpetuate their inefficiency. Our entire system of charities is open to the same objection; it preserves the incapables whom Nature is trying to “weed out.” This not only debases the race physically, intellectually and morally, but constantly increases the rate of debasement. The proportion of criminals, paupers and the several kinds of “inmates” augments its horrible percentage yearly. On the other hand, our wars destroy the capable; so thus we make inroads upon the vitality of the race from two directions. We preserve the feeble and extirpate the strong. He who in view of this amazing folly can believe in a constant, even slow, progress of the human race toward perfection ought to be happy. He has a mind whose Olympian heights are inaccessible—the Titans of fact can never scale them to storm its ancient, solitary reign.

THE RIGHT TO WORK

All kinds of relief, charitable or other, doubtless tend to perpetuation of pauperism, inasmuch as paupers are thereby kept alive; and living paupers unquestionably propagate their unthrifty kind more diligently than dead ones. It is not true, though, that relief interferes with Nature's beneficent law of the survival of the fittest, for the power to excite sympathy and obtain relief is a kind of fitness. I am still a devotee of the homely primitive doctrine that mischance, disability or even unthrift, is not a capital crime justly and profitably punishable by starvation. I still regard the Good Samaritan with a certain toleration and Jesus Christ's tenderness to the poor as something more than a policy of obstruction.

Who is more truly "deserving" than an able-bodied man out of work through no delinquency of will and no default of effort? Is hunger to him and his less poignant than to the feeble in body and mind whom we support for nothing in almshouse or asylum? Are cold and exposure less disagreeable to him than to them? Is not his claim to the right to live as valid as theirs if backed by the will to pay for life with work? And in denial of his claim is there not latent a far greater peril to society than inheres in denial of theirs? So unfortunate and dangerous a creature as a man able and willing to work, yet having no work to do, should be unknown outside the literature of satire. Doubtless there would be enormous difficulties in devising a practicable and beneficent system, and doubtless the reform, like all permanent and salutary reforms, will have to grow. The growth, naturally, will be delayed by opposition of the workingmen themselves—precisely as they oppose prison labor from ignorance that labor makes opportunity to labor.

It matters not that nine in ten of all our tramps and vagrants are such from choice, and are irreclaimable degenerates as well; so long as one worthy man is out of employment and unable to obtain it our duty is to provide it by law. Nay, so long as industrial conditions are such that so pathetic a phenomenon is possible we have not the moral right to disregard that possibility. The right to employment being the right to life, its denial is, in a

sense, homicide. It should be needless to point out the advantages of its concession. It would preserve the life and self-respect of him who is needy through misfortune, and supply an infallible means of detection of his criminal imitator, who could then be dealt with as he deserves, without the lenity that finds justification in doubt and compassion. It would diminish crime, for an empty stomach has no morals. With a wage rate lower than the commercial, it would disturb no private industries by luring away their workmen, and with nothing made to sell, there would be no competition with private products. Properly directed, it would give us much that we shall not otherwise have.

It is difficult to say if our laws relating to vagrancy and vagrants are more cruel or more absurd. If not so atrocious they would evoke laughter; if less ridiculous we should read them with indignation. Here is an imaginary conversation:

THE LAW: It is forbidden to you to rob. It is forbidden to you to steal. It is forbidden to you to beg.

THE VAGRANT: Being without money, and denied employment, I am compelled to obtain food, shelter and clothing in one of these ways, else I shall be hungry and cold.

THE LAW: That is no affair of mine. Yet I am considerate—you are permitted to be as hungry as you like and as cold as may suit you.

THE VAGRANT: Hungry and cold, yes, and many thanks to you; but if I go naked I am arrested for indecent exposure. You require me to wear clothing.

THE LAW: You'll admit that you need it.

THE VAGRANT: But not that you provide a way for me to get it. No one will give me shelter at night; you forbid me to sleep in a straw stack.

THE LAW: Ungrateful man! We provide a cell.

THE VAGRANT: Even when I obey you, starving all day and freezing all night, and holding my tongue about it, I am liable to arrest for being "without visible means of support."

THE LAW: A most reprehensible condition.

THE VAGRANT: One thing has been overlooked—a legal punishment for soliciting work.

THE LAW: True; I am not perfect.

TAKING ONESELF OFF

A Person who loses heart and hope through a personal bereavement is like a grain of sand on the seashore complaining that the tide has washed a neighboring grain out of sight. He is worse, for the bereaved grain can not help itself; it has to be a grain of sand and play the game of tide, win or lose; whereas he can quit—by watching his opportunity can “quit a winner.” For sometimes we do beat “the man that keeps the table”—never in the long run, but infrequently and out of small stakes. But this is no time to “cash in” and go, for you can not take your little winning with you. The time to quit is when you have lost a big stake, your foolish hope of eventual success, your fortitude and your love of the game. If you stay in the game, which you are not compelled to do, take your losses in good temper and do not whine about them. They are hard to bear, but that is no reason why you should be.

But we are told with tiresome iteration that we are “put here” for some purpose (not disclosed) and have no right to retire until “summoned”—it may be by small-pox, it may be by the bludgeon of a blackguard, it may be by the kick of a cow; the “summoning” Power (said to be the same as the “putting” Power) has not a nice taste in the choice of messengers. That argument is not worth attention, for it is unsupported by either evidence or anything resembling evidence. “Put here.” Indeed! And by the keeper of the table! We were put here by our parents—that is all that anybody knows about it; and they had no authority and probably no intention.

The notion that we have not the right to take our own lives comes of our consciousness that we have not the courage. It is the plea of the coward—his excuse for continuing to live when he has nothing to live for—or his provision against such a time in the future. If he were not egotist as well as coward he would need no excuse. To one who does not regard himself as the center of creation and his sorrows as throes of the universe, life, if not worth living, is also not worth leaving. The ancient philosopher who was asked why he did not die if, as he taught, life was no better than death, replied: “Because death is no better than life.” We do not know that either

proposition is true, but the matter is not worth considering, for both states are supportable—life despite its pleasures and death despite its repose.

It was Robert G. Ingersoll's opinion that there is rather too little than too much suicide in the world—that people are so cowardly as to live on long after endurance has ceased to be a virtue. This view is but a return to the wisdom of the ancients, in whose splendid civilization suicide had as honorable place as any other courageous, reasonable and unselfish act. Antony, Brutus, Cato, Seneca—these were not of the kind of men to do deeds of cowardice and folly. The smug, self-righteous modern way of looking upon the act as that of a craven or a lunatic is the creation of priests, philistines and women. If courage is manifest in endurance of profitless discomfort it is cowardice to warm oneself when cold, to cure oneself when ill, to drive away mosquitoes, to go in when it rains. The “pursuit of happiness,” then, is not an “unalienable right,” for it implies avoidance of pain.

No principle is involved in this matter; suicide is justifiable or not, according to circumstances; each case is to be considered on its merits, and he having the act under advisement is sole judge. To his decision, made with whatever light he may chance to have, all honest minds will bow. The appellant has no court to which to take his appeal. Nowhere is a jurisdiction so comprehensive as to embrace the right of condemning the wretched to life.

Suicide is always courageous. We call it courage in a soldier merely to face death—say to lead a forlorn hope—although he has a chance of life and a certainty of “glory.” But the suicide does more than face death; he incurs it, and with a certainty, not of glory, but of reproach. If that is not courage we must reform our vocabulary.

True, there may be a higher courage in living than in dying. The courage of the suicide, like that of the pirate, is not incompatible with a selfish disregard of the rights of others—a cruel recreancy to duty and decency. I have been asked: “Do you not think it cowardly for a man to end his life, thereby leaving his family in want?” No, I do not; I think it selfish and cruel. Is not that enough to say of it? Must we distort words from their true meaning in order more effectually to damn the act and cover its author with a greater infamy? A word means something; despite the maunderings of the

lexicographers, it does not mean whatever you want it to mean. “Cowardice” means a shrinking from danger, not a shirking of duty. The writer who allows himself as much liberty in the use of words as he is allowed by the dictionary-maker and by popular consent is a bad writer. He can make no impression on his reader, and would do better service at the ribbon-counter.

The ethics of suicide is not a simple matter; one can not lay down laws of universal application, but each case is to be judged, if judged at all, with a full knowledge of all the circumstances, including the mental and moral make-up of the person taking his own life—an impossible qualification for judgment. One’s time, race and religion have much to do with it. Some peoples, like the ancient Romans and the modern Japanese, have considered suicide in certain circumstances honorable and obligatory; among ourselves it is held in disfavor. A man of sense will not give much attention to considerations of this kind, excepting in so far as they affect others, but in judging weak offenders they are to be taken into the account. Speaking generally, I should say that in our time and country the persons here noted (and some others) are justified in removing themselves, and that in some of them it is a duty:

One afflicted with a painful or loathsome and incurable disease.

One who is a heavy burden to his friends, with no prospect of their relief.

One threatened with permanent insanity.

One irreclaimably addicted to drunkenness or some similarly destructive or offensive habit.

One without friends, property, employment or hope.

One who has disgraced himself.

Why do we honor the valiant soldier, sailor, fireman? For obedience to duty? Not at all; that alone—without the peril—seldom elicits remark, never evokes enthusiasm. It is because he faced without flinching the risk of that supreme disaster, or what we feel to be such—death. But look you: the soldier braves the danger of death; the suicide braves death itself! The leader of the forlorn hope may not be struck. The sailor who voluntarily goes down with his ship may be picked up or cast ashore. It is not certain that the wall will topple until the fireman shall have descended with his

precious burden. But the suicide—his is the foeman that has never missed a mark, his the sea that gives nothing back; the wall that he mounts bears no man's weight. And his, at the end of it all, is the dishonored grave where the wild ass of public opinion

Stamps o'er his head but can not break his sleep.

A MONUMENT TO ADAM

IT is believed that every just-minded and right-feeling American will experience a glow of gratification in the assurance that after ages of indifference, neglect, and even contumelious disparagement, Adam is at last to have a monument. The proposal to erect a “suitable memorial” to the good forefather is singularly touching; in a tranquil, business-like way it gets a tolerably firm footing in the sympathies and sentiments of the human heart, quietly occupying the citadel of the affections before the unready conservatisms of habit, prejudice, and unreason can recover from their surprise to repel it. It will be difficult for even the most impenitent obstructionist to utter himself cogently in opposition; the promoters of the filial scheme will have the argument as much their own way as have the promoters of temperance, chastity, truth, and honor. The comparison is ominous, but not entirely discouraging, inasmuch as the builders of monuments are less dependent on “right reason and the will of God” than the builders of character. Stones are not laid in logic; even the men of the plains of Shinar, desperately wrong-headed as in the light of Revelation we now perceive them to have been, and ghastly incapable of adding an inch to their moral stature, succeeded in piling up a fairish testimonial to their own worth, and would no doubt have achieved the top course had it not happened that suddenly each appeared to be of a different mind, so that in the multitude of counselors there was little wisdom. Dr. Noah Webster being dead—heaven rest him!—and the reporters of the press being easily propitiated with libations of news, there is not likely to be any tampering with the American tongue that will not be a distinct advantage to it; so we may reasonably expect the stones of the Adamite monument to be appropriately inscribed. Many reasons occur why this ought to be so. Of Adam, even more than of Washington it may justly be said that he was “first in war, first in peace, and first in the hearts of his countrymen.” In truth, he was first in everything and all round.

To the patriot the plan of erecting to him a fitting memorial will especially commend itself: it is an American, and therefore a superior, plan.

Contrast its glossy originality with the threadbare second-handedness of the project to import Cleopatra's other needle! The religious mind will not fail to discover in the proposal a kind of special providence for the arrest and eventual overthrow of Infidelity, against whose dark disciples it will lift a finger of permanent admonition. Can even the most flippant scoffer look up at the reverend pile and doubt the Mosaic account of creation? If the architect have only the sagacity to omit the date of erection, and the subscribers the self-denial to forego the glory of displaying their names on it, will not posterity naturally come to think that he whose virtues it commemorates "reposes beneath"? True, the wily scientist, alarmed for his theory, or touched with a sentiment of filial piety as *he* understands it, may countercheck by building a similar monument to the recent Ourang-Outang, the remote Ascidian, or the ultimate Bathybius. He may even have the prudent audacity to put up a stone to the memory of that unthinkable, and therefore irrefutable, Missing Link—as the groping pagan of antiquity with his single gleam of spiritual light erected an altar "To the Unknown God." If the hardy Evolutionist do anything of this kind it will be a clear infringement of the *leges non scriptæ* of copyright. Justice, religion, and reason alike will dictate the upsetting of his profane memorial with as little compunction as the wave felt for Caliban's designs in the sea-sand.

That the Adam monument project is seriously entertained there can be no intelligent doubt: in the list of its founders is publicly mentioned a name which, for better or for worse, is inseparably linked with that of the Great Progenitor—the name of Mark Twain, whose sobs at the paternal tomb have reverberated through the world with an authenticating energy that makes the erection of the monument a matter of comparatively trifling importance, after all.

1878.

HYPNOTISM

WE are all hypnotists. Every human being has in some degree the power to influence the thought and action of another, or some others, by what we will consent to call “hypnotic suggestion,” though the term, while serviceable, is inaccurate. Most of us have the power in varying degrees of feebleness, but few know how to apply what they have of it; but some have it so strong as to be able to control an unresisting will. Assent, however, is not always, nor usually, to be inferred from consent, even when consent is given in good faith; there is such a thing as unconscious resistance. In those having no knowledge of hypnotism, resistance is the natural attitude, for they think that susceptibility to control implies a weak will or a low intelligence, which is an error. At least the contrary view is supported by my own observation; and I accept some things, despite the fact that I have observed them to be true.

The mysterious force which in its more spectacular manifestations we call hypnotism, and one form of which is known as “mind-reading,” is at the back of all kinds and degrees of affection and persuasion. Why is one person loved better than another person more worthy of love? Because he has more “personal magnetism.” This term is an old acquaintance; for many decades we have been using it to signify an engaging manner. We thought it a figurative expression; that is why it commended itself to us. But it denotes a fact with literalness; some persons have a quality, or rather a property, which actually does draw other persons toward and to them, as a magnet attracts steel; and it is the same property in magnet and in man, and can be augmented by the scientific use of apparatus. A favorite “subject” of mine when blindfolded and turned loose in a room and commanded to find a hidden object will sometimes fail. But she never fails if the object is a horse-shoe magnet.

Did you ever, by oral argument, convince anyone that he was wrong and you right? Not often, of course, but sometimes, you think. If you are a member of Congress you are very sure about it; that is what you are a member of Congress for. I venture to believe that you never did. It was by

unconscious hypnotism that you did the trick. Your argument (on the cogency and eloquence of which I congratulate you) served only to hold your victim's attention to the matter in hand. Without it he might have thought you wanted him to become a horse, and would indubitably have neighed and pranced.

In the Twenty-first Century, doubtless, a legislator will owe his election to the confidence of his constituents in his ability to exert this kind of suasion. The candidate who can not by the power of his unaided eye compel his opponent to eat shoe-blackening and jump over a broomstick will not have the ghost of a chance at the polls.

Suppose, madam, that your husband had relied upon argument to convince you that you ought to marry him. Of course he did have to plead long and hard—that is conceded; but suppose that while doing so he had always worn green spectacles. Or suppose that in all his long and arduous courtship he had never looked you squarely (and impudently) in the eyes—gloated upon you. I deem it certain, madam, that you would now be the wife of a wiser man, probably a deaf mute.

In our present stage of controversial progress speech is not without a certain clumsy utility. It enables you to apprise your opponent of the views to which you invite his allegiance. But for the purpose of inducing him to accept them it is destitute of effect—is not at all superior to the plunk-plunking of a banjo, or that favorite political argument, the braying of a brass band. Your success in convincing another person depends upon (1) the degree of your hypnotic power, (2) your opportunities of exerting it and (3) his susceptibility to it. In brief, the business of converting the several kinds of heathens is a thing which, like checking the too rapid increase of population, cannot be done by talking. I have tried to show you how it can be done if you have the gift. If you have not, be thankful, for you will escape much defamation from those who believe hypnotism a kind of sorcery liable to the basest abuses and practised only for purposes of sin. Is it possible so to practice it? Why, yes, if I can hypnotize a thief I can make him steal. If I can hypnotize a bad girl—but that would be needless. Whatever in one's normal state one is willing to do, or wants to do, one can be made to do by hypnotic control. That is as far as the power can go; it cannot make a sinner out of a saint, a demagogue out of a gentleman, nor a mute out of Theodore Roosevelt.

AT THE DRAIN OF THE WASH-BASIN

THE Prohibitionists, good souls, are funny. They are all “down upon” license—high or low—because it is a legal “recognition” of the liquor trade. As reasonably they might condemn fines for misdemeanor as legal recognition of misdemeanor. Until the liquor trade is forbidden it is legally recognized, whether licensed or not. Why can not militant aquarians accustom themselves to think of a license fee as an *ante facto* fine? I am not loaded down with controversial weapons for the fray between liquor and water; I love neither the one liquid nor the other; but I enjoy the quarrels of others, am enamored of effective means in battle and should be miserable if I had failed to point out to any combatant in any contention how he could obtain an honest advantage.

Do I not drink water? Yes, a little—when instigated by thirst. Does any one drink it under any other circumstances? Does any one drink it because he likes it?—or rather, does any one like it when not suffering from a disagreeable disorder? We take water as medicine for the disease thirst. It is to be considered as a remedial agent—but so vilely compounded in nature’s laboratory and so distasteful to the normal palate that the world in all ages has been virtually united in avoiding it. Nothing has so stimulated human ingenuity and invited such constant investments as the discovery, invention and manufacture of palatable substitutes for plain water; and nothing could be more unphilosophical than to attribute this universal movement to perversity or caprice. Extravagant as are some of its manifestations, deplorable as are some of its consequences, at the back of it all, as at the back of every wide and persistent trend of human activity, is some imperious and unsleeping necessity.

Consider, if you will be so good, what “drinking-water” actually is. It is the world’s sewage. It is what that dirty boy, the earth, has washed his face with. The wells, rivers and rills are nature’s slop-buckets, and the lowland springs are not much better; all soluble substances on or near the surface of the earth eventually get into them. Melted mountain snow is pure enough, but by the time it reaches the lip of the flatlander it is a solution of

abomination. It is macerated man. It is hydrate of dead dog with an infusion of all that is untidy—infested with germs of nameless plagues, carrying ferocious anthropophagi and loaded with mordant minerals. By many scientists it is held that age is simply a disease caused, mainly, by cumulative deposits of lime and other inorganic matter in the organs of the body, most of them taken in water. If our drink were free of minerals and depeopled of its little reptiles it is probable that we might live a thousand years and die of the minerals and reptiles in our food—those of us who are not shot or hanged.

The protagonists of water tell us that it is the natural drink of man. We drink it for economy, from ignorance or inattention, from hereditary habit bequeathed to us by barbarian ancestors who had nothing else and knew not the sacred grape. They ate beetles, too, stale fish and one another. Were these the natural food of man? Man has no natural food and drink; he takes what he can get. An infant race is like an infant individual: whatever it can lay its hands on goes into its dauby mouth. Water, *pure* water, has one merit—it is cheap; and one disadvantage—it is not good.

Mr. Prohibitionist would like to deprive me of wine by law; not because that would make me happier: it would make *him* happier. As long as I cannot prevent him from trying, I fancy that I don't wish to, and execute a multitude of fine sentiments about the virtue of tolerance and the advantages of free speech. But give me the power, and the first time I catch him rolling his rebuking eye at my wineglass I will fill up his well.

GODS IN CHICAGO

IN the death of Mr. W. J. Gunning theology incurred a serious loss. The deceased was an intelligent and painstaking collector of gods, and at the time of his death was in the service of the Committee on Gods, of the "World's Fair" in Chicago. He had already got together about five hundred deities, some of them exceedingly powerful, and was on his way around the world on the lookout for more. It is believed that he would have enriched the pantheon of the fair with some singularly fine exhibits if he had been spared, for he was a most accomplished theologian, knew exactly where to lay his hand on any deity that he needed in his business, and whenever he went godding was blessed (under Providence) with a large take. He was an honest collector, a kind and considerate provider, and left behind him a wide circle of Celestial Powers bewailing their loss.

The advantage of having a first-rate collection of gods at a world's fair is obvious. Hitherto the study of comparative theology has been beset with dispiriting difficulties, many of which will vanish in the light that such a collection will pour upon the science. In actual presence of the wood and stone which the heathen in his blindness bows down to we shall be able to trace resemblances and relationships hitherto undiscerned and even unsuspected. We shall know, perhaps, why the religion of the Inquots is somewhat similar to that of the Abemjees when we see (if such is the fact) that the gods of both these widely separated tribes have availed themselves of the advantages of the tail. We shall perhaps find the missing link between the Hindu's mild disposition and his adoration of the "idol of hope and slaughter." Better than all, we shall by actual scrutiny of the mongrel and measly gods of other and inferior nations be confirmed in the True Faith, as in this favored land we have the happiness to know it.

That the goddery will be a point of chief attraction goes without saying. A temple in which, satisfying the two mightiest needs of his spiritual nature, one may both scoff and pray will have a powerful fascination for the truly religious. There the visiting stranger from the overseas can perform appropriate rites before the deity of his fathers and execute feats of

contumelious disdain—short of actual demolition—before the hideous and senseless images adored of those not delivered from error's chain. Even to the wicked person who has justly incurred the ancient reproach that he "tears down but does not build up," the god-show will have a certain value as displaying everywhere the kind of things he tears down and nowhere the kind he is expected to build up—whereby he shall be put into better esteem and kicked and cuffed with abated assiduity. There is one disquieting possibility—one haunting thought that grows a main to apprehension: What will be the effect of setting up a multitude of gods in a city which has not hitherto tolerated one? It was well, though, to make the experiment, even as a missionary measure; and if the lakeside pantheon had served to lure the world's pious to their financial doom the Chicagonese might have become a profoundly religious people, attentive to pilgrims and blandly assuring them that it was no trouble to show gods.

1892.

FOR LAST WORDS

THE special kind of telephone designed to be affixed to the bedside of one who may have the bad luck to suffer from some infectious or contagious disease is a thoughtful provision for a crying need. By means of the instrument so placed, the patient's friends are able to converse to him, read and sing at him, and, in general, give him the benefit of their society without danger of getting back more than they bestow. The plan is of admirable simplicity and nothing could be better—for the friends. There must be a certain satisfaction in possessing one end of a telephone at the other end of which there is one who cannot get away—one who has to listen to as many hellos as may be thought good for him, and to submit to the question, "Is that you?" when you know that it is he, as frequently as you choose to afflict him with it. That he is heartily wishing but impotently unable to transmit his disorder through the wire adds something to the joy of the situation.

One of the advantages of the sick-bed telephone lies in the fact that it can be used for preservation of "last words." Hitherto those only of men who died surrounded by attentive friends have had a chance of getting before the public; those of the unfortunate infectionary, isolated from his race and dying in a pesthouse, assisted by hireling physicians and unsympathetic nurses, have been lost to the world. No matter how many years of his life the patient may have been engaged in their composition and rehearsal; no matter how "neat and opprobrious" they were, they fell upon unappreciative ears, and were not recorded. Under the new *régime* the patient as his fire fails may summon his friends to the telephone, launch at them his Parthian platitude and die in the pleasant consciousness that posterity will have profit of his death. Whether, like Falstaff, he choose to give his remarks a reminiscent character and "babble o' green fields;" confine himself to the historical method, like Daniel Webster with his memorable "I still live;" assume the benevolent pose, and, like Charles II, urge the survivors not to let some "poor Nelly" starve; the exclamatory, like the late President Garfield, who, according to one Swaim, said "O Swaim!" and let it go at

that; or the merely idiotic, like the great Napoleon with his “*Tête d’armée*,” the faithful telephone will be there, ready and willing to transmit (and transmute) the sentiment, admonition, statement or whatever it may be.

To persons intending to make this use of the telephone a word of counsel may not be impertinent. As no human being, however well-eared, ever understood the telephone until it had repeated itself a number of times in response to his demands for more light, and as the moribund are not commonly in very good voice, it will be wise to begin the “last words” while there is yet a little reserve fund of life and strength remaining, for repetition and explanation.

THE CHAIR OF LITTLE EASE

NOT many years ago, as I remember, a deal of deprecatory talk was in evolution about a certain Governor of a Persian province, who was said to have been boiled alive by order of the Shah. Our shouting and shrilling in this matter were not altogether becoming, considering whose progeny we are. It is not so very long since all the nations of Europe practised boiling alive—commonly in oil, which was thought to impart a fine discomfort to the person so unlucky as to be in the cauldron. In England boiling was the legal punishment for poisoners for a long time, beginning in 1531, in the reign of Henry VII. Among those who suffered this discomfort was a man mentioned in the chronicle of the Grey Friars, who was let down into the kettle by a chain until he was done. He, however, was not boiled in oil—just plain. Some of the items of an expense account relating to the execution of Friar Stone at Canterbury are interesting in their homely way:

Paid 2 men that sat by the kettle and parboiled him	1s
To 3 men that carried his quarters to the gates and set them up	1s
For a woman that scoured the kettle	2d

With regard to that last item one cannot repress the flame of a consuming curiosity to know if the scouring was done before or afterward. If afterward, the poor woman seems to have been miserably underpaid.

But call it a long time ago, protesting that the tendency to boil one another has exhausted its impetus, or, if you please, worked itself out of our clarifying blood. But the year 1790 is not so far back, and burning at the stake probably generates an uneasiness to which that of the oil-boiled gentry of the earlier period was nowise superior. It was in the year mentioned—in the reign of his most gracious Majesty George, the third of that name—that burning at the stake ceased to be the legal penalty for “coining,” which was accounted “treason,” and murder of a husband, which was “petty treason.” But wife-killers and coiners, male, were hanged. The last woman burned alive departed this life, I think, in 1789. Men are living

to-day whose fathers were living then and may, as children, have played in the ashes.

Still (it may be urged) it was not actually we who did it: in our milder day we have neither the cauldron nor the stake. Ah, but we have the dynamo. We have the custom of putting a small percentage of our assassins into an “electrical chair” and doing them to death by pressing a button—a process to which in defiance of two languages we have given the name “electrocution.” For encouragement of the rising young assassin, physicians assure us that this gives a painless death.

The physicians know nothing about it; for anything they know to the contrary, death by electricity may be the most frightful torment that it is possible for any of nature’s forces or processes to produce. The agony may be not only inconceivably great, but to the sufferer it may seem to endure for a period inconceivably long. That many of the familiar physical indications of suffering are absent (though “long, shuddering sighs” and “straining at the straps” are not certainly symptoms of joy) is very little to the purpose when we know that electricity paralyzes the muscles by whose action pain is familiarly manifested. We know that it paralyzes all the seats of sensation, for that matter, and puts an end to possibilities of pain. That is only to say that it kills. But by what secret and infernal pang may not all this be accompanied or accomplished? Through what unnatural exaltation of the senses may not the moment of its accomplishing be commuted into unthinkable cycles of time? Of all this the physicians can have no more knowledge than so many toads under stones.

It is probable, at least it is possible, that a “victim’s” sum of suffering from his instantaneous pervasion with enough of the fluid to kill him is no less than if it were leisurely rilled through him a little faster than he could bear until he should die of it that way. Theories of the painlessness of sudden death appear to be based mostly upon the fact that those who undergo it make no entries of their sensations in their diaries. It is to be wished that they would be more thoughtful and less selfish. The man smitten by lightning, or widely distributed by a hitch in the proceedings at a powder mill, owes a duty to his fellow men of which he commonly appears to have but an imperfect sense. A careful and analytic record of his sensations at every stage of his mischance would be a precious contribution to medical literature. Published under some such title as *A Diary of Sudden*

Death; by a Public-Spirited Observer on the Inside it would serve many useful purposes, and also profit the publisher. What we most need—next to more doctors at executions—is some person having experience of the matter, to tell us fairly in inoffensive English, interlarded with “Soche-sorte Latin as physickers doe use,” just how it feels to be dead all over at once.

A GHOST IN THE UNMAKING

BELIEF in ghosts is natural, general and comforting. In many minds it is cherished as a good working substitute for religion; in others it appears to take the place of morality. It is rather more convenient than either, for it may be disavowed and even reviled without exposing oneself to suspicion and reproach. As an intellectual conviction it is, in fact, not a very common phenomenon among people of thought and education; nevertheless the number of civilized and enlightened human beings who can pass through a graveyard at midnight without whistling is not notably greater than the number who are unable to whistle.

It may be noted here as a distinction with a difference that belief in ghosts is not the same thing as faith in them. Many men believe in the adversary of souls, but comparatively few, and they not among our best citizens, have any faith in him. Similarly, the belief in ghosts has reference only to their existence, not to their virtues. They are, indeed, commonly thought to harbor the most evil designs against the continuity of peaceful thoughts and the integrity of sleep. Their malevolence has in it a random and wanton quality which invests it with a peculiarly lively interest: there is no calculating upon whom it will fall: the just and the unjust alike are embraced in its baleful jurisdiction and subjected to the humiliating indignity of displaying the white feather. And this leads us directly back to the incident by which these remarks have the honor to be suggested.

A woman living near Sedalia, Missouri, who had recently been married alive to a widower, was once passing along a "lonely road" which had been thoughtfully laid out near her residence. It was late in the evening, and the lady was, naturally, somewhat apprehensive in a land known to be infested by Missourians of the deepest dye. She was, therefore, not in a suitable frame of mind for an interview with an inhabitant of the other world, and it was with no slight trepidation that she suddenly discovered in the gloom a tall figure, clad all in white, standing silent and menacing in the road before her. She endeavored to run away, but terror fastened her feet to the earth; to shriek, but her lungs refused their office—the first time that an office was

ever refused in that sovereign commonwealth. In short, to use a neat and graphic locution of the vicinity, she was utterly “guy out.” The ghost was tremendously successful. Unluckily it could not hold its ghost of a tongue, and that spectral organ could accomplish feats of speech intelligible to ears still in the flesh. The apparition advanced upon its helpless victim and said in hollow accents: “I am the spirit of your husband’s first wife: beware, beware!”

Nothing could have been more imprudent. The cowering lady effected a vertical attitude, grew tall, and expanded. Her terror gave place to an intrepidity of the most military character, and she moved at once to the attack. A moment later all that was mortal of that immortal part, divested of its funeral habiliments, hair, teeth and whatever was removable—battered, lacerated, gory and unconscious—lay by the roadside awaiting identification. When the husband arrived upon the scene with a horrible misgiving and a lantern, his worst fears were not realized; the grave had bravely held its own; the object by the roadside was what was left of his deceased wife’s sister. On learning that her victim was not what she had incautiously represented herself to be, the victorious lady expressed the deepest regret.

Such incidents as this go far to account for that strong current of human testimony to the existence of ghosts, which Dr. Johnson found running through all the ages, and at the same time throw a new and significant light upon Heine’s suggestion that ghosts are as much afraid of us as we of them. It would appear that some of the less judicious of them have pretty good reason.

THE TURN OF THE TIDE

IN the year 1890 I wrote in the San Francisco *Examiner*, *à propos* of Chinese immigration:

“There is but one remedy—I do not recommend it: to kill the Chinese. That we shall not do: the minority will not undertake, nor the majority permit. It would be massacre now; in its own good time (too late) it will be war. We could kill the Chinese now, as we have killed the Indians; but fifty years hence—perhaps thirty—the nation that kills Chinamen will have to answer to China.”

Twenty-one years later a Chinese warship steamed into the port of Vera Cruz, Mexico, to back up a demand of the Chinese government for an indemnity for a massacre of Chinese subjects. She was a little warship, but she bore a momentous mandate, performed it and steamed away, the world as inattentive to the event as it had been to the prophecy.

Perhaps our national indifference to the portentous phenomenon came of “use and wont;” already an American president had been made to grovel at the feet of a Japanese emperor, and had truculently threatened a state of the union with war if it did not adjust its municipal laws to the will of that Asian sovereign. Clearly, as the hope was then expressed, “we have reached the end of Asiatic dictation”—the hither end, unfortunately.

All Asia is astir, looking East and West. Its incalculable multitudes are learning war and navigation; and Caucasian powers—“infatuate, blind, selfsure!”—are their tutors. Their armies are taught by European officers, their warships are built in European and American ports. All the military powers unite in maintaining “the integrity of China” and in awakening her to aggression and dominance.

Even if it were to our immediate interest to preserve the integrity of the Chinese Empire a long look ahead might disclose a greater one that would be best subserved by partition. In a single generation Japan has performed the astonishing feat of changing civilizations. It has been, for her, retrogression, for the civilization that she has discarded was superior to that

which she has adopted; but in one important particular she has been the gainer by the exchange; in the matter, namely, of military power, and therefore political consequence. As by a leap, she has advanced from nowhere to the position of a first-rate power. What she has done China is doing, with this difference: China's advance will be to a position that will dominate the world and reduce the foremost nations of to-day to second place. Trained by European officers to European methods of warfare, such an army as she can raise and equip from her four hundred millions of population will be invincible. It may overrun Europe and extinguish Christian civilization on that continent, which would not be a very good thing for it on this. It was only yesterday—a little more than two hundred years ago—that Europe came within a single battle-hazard of being an Islam dependency. If John Sobieski had been defeated under the walls of Vienna, that city, Berlin, Paris and London would to-day be Mohammedan capitals. History has not exhausted its reserve of astounding events, nor have civilizations learned the secret of stability.

It is easy to affirm, in the case of China, the impossibility of any such racial transformation as the one supposed, but fifty years ago it would have been easy to point out its impossibility in the case of Japan—if any human being had had the imagination and hardihood to suggest it. Japan has made the impossible possible, the possible a thing to be feared. As a measure of precaution, the partition of China merits the profoundest consideration.

Actual forces at the back of a great movement are seldom apparent to those engaged in directing it. Statesmanship is mostly a matter of temporary expedients for accomplishment of small purposes, but if there is to-day a really great statesman of the Caucasian race he is considering the partition of China among European nations as an alternative to the partition of European nations among the Chinese.

Meantime we occupy ourselves with laws and treaties to “exclude” Chinese and other inevitable Asians from our continent. Successive relays of American statesmen wreck themselves upon the problem and go down smiling. To some of us it is given to see that the Asian can not be excluded—that the course of empire, having taken its way westward until it has reached its point of departure, is turning backward, an irresistible “tide in the affairs of men.” But what can we do but propose further and futile measures of “exclusion”? We supplicate our Government to forbid us to

employ our destroyers, to deny us the fruits of our cupidity and prohibit us from bringing the hateful race here in our own ships. Our courts, minded madwise, make in good faith the monstrous assumption that the writ of *habeas corpus* is a right which we, having invented it, are bound to share with races that never heard of it. Our churches, gone clean daft in pursuit of souls never caught and not worth the catching, pull the strings of their God to a gesture of injunction and bid us respect the brotherhood of man. Every moment and at all points we feel the baffling hand thrusting us roughly down and back, while this awful invasion pours in upon us with augmenting power.

Not for an instant has the reflux wave been stayed. Every American city has its "Chinatown," every American village its scouts and pioneers of the movement. On the Pacific Coast the Japanese have a foothold everywhere, monopolizing entire industries in cities and valleys, owning the lands that once they leased and charitably employing their former employers. And all along the line of every growing railway in the west may be seen the turbaned Hindu bending to his work and biding his time to be a "shipper."

As it is, it will be: the Oriental races are in motion westward, and this continent is doomed to their occupancy. A higher, sterner law than any of man's devising is in action here. Fate has exercised the right of eminent domain and condemned this New World to the use of ancient races. For four hundred years the European has been wresting it from the Indian; within one-half the time the Asian will have accomplished its conquest from the European. There is no help for us: as we did unto others it shall be done unto us, and the Asian shall be master here. It is comforting to know that we shall have had a hand in our undoing; one does not like to be a "dead-head" in any enterprise.

No; we shall not kill the Chinese, nor will they "go" without killing—nor cease to come. As surely as the sun shall rise each day, so surely each day will his beams gild the ever advancing flag of this irresistible migration. Beneath the feet of that mighty host the arts and sciences of the Aryan, his laws and letters, his religions and languages, the very body and soul of his civilization will be trampled out of record, out of memory, out of tradition. It is not a sunny picture; what need to look upon it? I invite to despair; but there stands the dear American statesman, parchment in hand—a new exclusion law! His face shines in the dawning of another hope; in his eyes

is the morning of a new era. Between the two of us—him and me—all patriots may be united: each with a prophet of his choice. It is clear whom ye will choose, but I hope I don't intrude.

FAT BABIES AND FATE

THE modern Baby Show is a fruitful source of mischief—a degenerate successor to that ancient display whose beneficent purpose was to ascertain what ailing or deformed or merely puny infants might most advantageously be flung off a cliff. The object of the modern Baby Show is not improvement of the race by assisting Nature in “weeding out,” nor is such the practical result. Prizes, we are told, are commonly bestowed by a committee of matrons, and necessarily fall to the fattest exhibit. In the matron’s ideal “scale of being” the pudgiest, the most orbicular, babe holds the summit place, the first adiposition, so to speak.

This is not as it should be; no true improvement in the race can be effected by encouraging our young to bury their noses in their cheeks and their knuckles under a mass of tissues overlying them like a boxing-glove. The prize winners do not become better men and women than their unsuccessful but more deserving competitors; while the latter, beginning life in the shadow of a great disappointment, retain to the end of their days a sharp sense of injustice incompatible with warm and elevated sentiments. The effect on the characters of the beaten mothers is even more deplorable. Every mother of a defeated babe is convinced that her exhibit is incomparably superior, physically, intellectually and morally, to the roly-poly impostors honored by the committee of matrons. Her wrath at the unjust decision is deep, constant and lasting; it embitters her life, sours her temper and spoils her beauty. As to the fathers, the only discernible effect upon them of either winning or losing is to make them a trifle more ashamed of their offspring than they were before. “The proud and happy father” had never the advantage of existing outside the female imagination, but if he really existed the Baby Show would be fatal to both his pride and his happiness.

In enumerating the manifold mischiefs that fly from that Pandora’s-box, the Baby Show, we are perhaps not justified in mentioning the desolating effect upon the committee of matrons whose action springs the lid. It is doubtful if the disasters which themselves incur can rightly be rated as evils

in the larger sense of the word; and, anyhow, the nature of these is imperfectly known; for after making their award the unhappy arbiters commonly vanish from the busy haunts of women. The places which knew them know them no more forever, and their fate is involved in obscurities pervious only to conjecture. In view of this regrettable but apparently inevitable fact, it is desirable (if the Baby Show cannot be averted) that the lady judges be selected early, in order that our citizens may bestow upon them before they are taken from us some suitable testimonial of public esteem and gratitude, attesting the popular sense of their heroism in accepting the fatal distinction.

CERTAIN AREAS OF OUR SEAMY SIDE

THE thrifty person who attends, uninvited, a wedding reception and, retiring early from the festivities, leaves the unhappy couple poorer by a few unconsidered trifles of jewelry has a just claim to the gratitude of mankind. The interests of justice demand his immunity from detection: the officer who shall molest him is *hostis humani generis*. Neither grave rebuke nor ridicule has sufficed to overcome and stamp out the vulgar custom of ostentatiously displaying wedding presents, with names of givers attached; perhaps it will yield to the silent suasion of the sneak-thief. To healthy and honest understandings—that is to say, to the understandings of this present writer and those who have the intelligence to think as he does—it is but faintly conceivable how self-respecting persons can do this thing. Display of any kind is necessarily repugnant to those tastes which distinguish the well-bred from those whose worth is of another sort. Among the latter we are compelled (reluctantly) to reckon those amiable beings who display coats-of-arms, crests and the like, whether they are theirs by inheritance, purchase or invention; those, we mean, who blazon them about in conspicuous places for the obvious purpose of declaring with emphasis whatever merits and advantages may inhere in their possession. In this class, also, we must place the excellent ladies and gentlemen who “boast” their descent from illustrious, or merely remote, ancestors. (The remoter the ancestor—that is to say, the less of his blood his descendant has—the greater that funny person’s pride in the distinction.) A person of sense would be as likely to direct attention to his own virtues as to those of his forefathers; a woman of modesty, to her own beauty or grace as to the high social position of her grandmother.

Nay, we must carry our condemnation to an even greater extreme. The man who on public occasions covers his breast with decorations, the insignia of orders, the badges of high service or of mere distinction such as results from possession of the badge, is guilty of immodesty. “Why do you not wear your Victoria Cross?” the only recipient of it who ever failed to

wear it was asked. “When I wish people to know how valiant I am in battle,” was the reply, “I will tell them.”

But below this lowest deep of vanity there is a lower deep of cupidity—and something more. The custom of displaying wedding presents duly labeled with the givers’ names and publishing the list in the newspapers supplies a very “genteel” method of extortion to those who have conscientious scruples against highway robbery. That extortion is very often the conscious intent I am far from affirming; but that such is the practical effect many a reader inadequately provided with this world’s goods will pause at this point feelingly to aver. But he is a lofty soul indeed if at the next silent demand he do not stand and deliver as meekly as heretofore. Looked at how one may please, it is a bad business, not greatly superior in point of morality to that of the sneak-thief who is one of its perils, and with whose intelligent activity its existence may, one hopes, become in time altogether incompatible.

FOR BREVITY AND CLARITY

MR. GEORGE R. SIMS once “invited proposals” for a brief and convenient name for the misdemeanor known in England as “traveling in a class of railway carriage superior to that for which the defendant had taken a ticket.” It is a ludicrous fact that the offense has never had another name, nor is it quite easy to invent a better one off-hand. I should like to know what it is in Esperanto. We have in this country certain clumsy phrases which might advantageously be condensed into single words. For example, to “join in the holy bonds of wedlock” might become to “jedlock.” The society editor would be spared much labor if he could say of the unhappy couple that they were “jedlocked,” or “lemaltared,”—the latter word meaning, of course, “led to the matrimonial altar.” Many of the ordinary reporter’s favorite expressions could be treated in the same practical fashion. The familiar “much-needed rest” would become simply “mest.” The “devouring element” would be “delement,” and have done with it. When it is, as so very frequently it is, necessary to say that something “reflects credit” on somebody, the verb “to reflredit” would serve an honorable and useful purpose. Instead of writing of a man freshly dead that he was “much esteemed by all who knew him,” we should say that he was “mestewed.” By such simple and rational devices as these the language would be notably improved, and in a newspaper report of the birth of a rich man’s child a few lines could be saved for the death of a poet.

As the words “not either” have been condensed into “neither,” “not ever” into “never” and “no one” into “none,” why should not the negative or privative, when followed by a vowel, be always compounded in the same way? For example, “neven” for “not even,” “nin” and “nout” for “not in” and “not out.” “Nirish” for “no Irish,” and so forth. Nay, it is not necessary that a vowel follow the negative: “no Popery” could be “nopery,” “no matter,” “natter,” and “never-to-be-forgotten,” “notten,” or “netten.” The principle is pregnant with possibilities.

While reforming the language I crave leave to introduce an improvement in punctuation—the snigger point, or note of cachinnation. It is written thus

∪ and represents, as nearly as may be, a smiling mouth. It is to be appended, with the full stop, to every jocular or ironical sentence; or, without the stop, to every jocular or ironical clause of a sentence otherwise serious—thus: “Mr. Edward Bok is the noblest work of God ∪.” “Our respected and esteemed ∪ contemporary, Mr. Sylvester Vierick, whom for his virtues we revere and for his success envy ∪, is going to the devil as fast as his two heels can carry him.” “Deacon Harvey, a truly good man ∪, is self-made in the largest sense of the term; for although he was born great, wise and rich, the deflection of his nose is the work of his own coat-sleeve.”

To many a great writer the new point will be as useful as was the tail to his unlettered ancestor. By a single stroke of his pen at the finish, the illustrious humorist who reviews books for *The Nation* can give to his dismalist plagiarism from Mulgrub’s *Theory of Quaternions* all the charm and value of a lively personal anecdote, as he would relate it. By liberally sprinkling his literary criticism with it, Dr. Hamilton W. Mabie can give to the work a lilt and vivacity that will readily distinguish it from a riding-master’s sermon on the mount; the points will apprise his reader of a humorous intention not otherwise observable as a factor in the humorous effect. Embellished with this useful mark, even the writings of that sombre soul, Mr. John Kendrick Bangs, will have a quality that will at least prevent the parsons from reading them at the graveside as passages from the burial service.

GENIUS AS A PROVOCATION

IN his own honorable tongue Mr. Yoni Noguchi is, I dare say, a poet; in ours he is a trifle unintelligible. His English prose, too, is of a kind that one does not write if one has a choice in the matter, yet sometimes Mr. Noguchi thinks in it with clarity and point. Concerning the late Lafcadio Hearn and the little tempest that was roaring round that author's life and character, Mr. Noguchi wrote:

“It is perfectly appalling to observe in the Western countries that when one dies his friends have to rush to print his private letters, and even an unexpected person volunteers to speak as his best friend, and presumes to write his biography.”

No, this is not good prose (barring the “unexpected person,” which is delicious) but it is obvious truth and righteous judgment. Publication of letters not written for publication is *prima facie* evidence of moral delinquency in the offender. In doing this thing he supplies the strongest presumption against himself. The burden of proof is heavy upon him; he is to be held guilty unless he can support it with positive evidence of a difficult thing to prove—an untainted intention not related to gain, glory nor gratification of a public appetite to which there is no honorable purveyance. No evidence less valid than written permission obviously covering the particular letters published is acceptable. In all the instances that I have observed this credential is wanting. True, the scope of my observation is somewhat narrow, for I would no more read a dead man's private correspondence in a book than I would break open his desk to obtain it. From a woman related to a famous poet and critic then recently deceased I had once a request for any letters that I might have from him. The lady said that she wanted them for his biography, already in course of preparation. The letters related to literary matters only, but as the lady submitted no authorization from their writer for their publication I civilly refused and took the consequences—there were consequences. Whether or not my part of the correspondence appeared in the book I shall not know unless told.

The family of a man of genius and renown may be pretty confidently trusted to make him ridiculous in life with their clumsy tongues, and after death with their thrifty pens. I think there was never a man of genius whom all his relatives excepting his immediate offspring did not, while jealous of his fame, secretly regard as a fool. (Even the brothers of Jesus of Nazareth did not “believe on him,” and to some of us who are immune to legends of the Church it is given to know that his mother was of their way of thinking.) Dumbly resenting the distinction that seems to accentuate their own obscurity, these worthies are nevertheless keen to shine by the growing light of his posthumous fame, if he have it, and to profit by it too, as are his more appreciative children and children’s children, usually dullards and dolts to the thirteenth and fourteenth generation. His death is the opportunity of all. Some of them are very sure to crucify the body of him and thrust a pen into his side to show that his blood is the same as their own.

A most disagreeable instance of this most disagreeable practice is that of a son of Robert Browning, who has won literary renown and popular commendation by publishing his parents’ love-letters. Doubtless he is proud of his work, but in the eyes of his sainted father, I fear, he is one of Mr. Noguchi’s “unexpected persons,” at least in the sense that he is not expected in Paradise. Another and more recent illustration is the book *My Soldier*, the sanguinary work of a wife. Observe with what celerity the forehanded family of Tennyson “improved the occasion” of his passing. The poor man was hardly cold before they thrust a volume of Shakspeare into his dead hand, clove it with his finger at a significant passage chosen by a domestic council, admitted a consistent ray of moonshine into the death chamber and invited the world to witness the edifying show. So the man who wrote

Sunset and evening star,
And one clear call for me

was made to seem to “pass out to sea” in an impressive pose, appropriately spectacular and dramatically ridiculous.

If there is a Better Land it is where a great man can grow up from the ground like a tree, without human agency, get on without a friend, write no letters and leave no name at which himself grew pale, to point a lying anecdote or tale.

To the perils herein pointed out authors are peculiarly exposed. The world has apparently agreed that he who writes for publication shall write for nothing else. I have heard men of decent life and social repute gravely defend the thesis that the public has a *right* to all that an author has written; and as his letters are likely to be rather more interesting than those of one who works at another trade, they are held to have a value disproportionate to the mere fame of their writer. We all concede the virtue of abstention from theft of a paste jewel, but a real diamond!—that is another matter.

The people are not pigs; the author of their favorite personal letters need not have a great personal renown. If he has uttered a sufficient body of private correspondence they are willing to forgive him for their inattention to his public work. Their purveyors are even more liberal in the matter: they do not insist on an excellent epistolary style nor anything of that kind. An intimate “human document” in ailing syntax is quite as available for their purpose as one baring the heart of a grammarian. *The Filial Correspondence of George Ade* is foredoomed to as sharp a competition among dealers as *The Love Letters of Professor Harry Thurston Peck, Stylist*.

It may be thought that all this is a cry from the deep and dark of a great fear. Not so; since I became a public writer I have never engaged in a correspondence in which it has not been distinctly understood that my letters were never to be printed. Only through an impossible treachery can the public ever have the happiness and profit of reading them. As to love-letters I am clean-handed: all mine have been written in honorable payment for favors and, as Conscience is my willing witness, I never meant one word of them.

A BIVOUAC OF THE DEAD

AWAY up in the heart of the Allegheny mountains, in Pocahontas county, West Virginia, is a beautiful little valley through which flows the east fork of the Greenbrier river. At a point where the valley road intersects the old Staunton and Parkersburg turnpike, a famous thoroughfare in its day, is a post office in a farm house. The name of the place is Travelers' Repose, for it was once a tavern. Crowning some low hills within a stone's throw of the house are long lines of old Confederate fortifications, skilfully designed and so well "preserved" that an hour's work by a brigade would put them into serviceable shape for the next civil war. This place had its battle—what was called a battle in the "green and salad days" of the great rebellion. A brigade of Federal troops, the writer's regiment among them, came over Cheat mountain, fifteen miles to the westward, and, stringing its lines across the little valley, felt the enemy all day; and the enemy did a little feeling, too. There was a great cannonading, which killed about a dozen on each side; then, finding the place too strong for assault, the Federals called the affair a reconnaissance in force, and burying their dead withdrew to the more comfortable place whence they had come. Those dead now lie in a beautiful national cemetery at Grafton, duly registered, so far as identified, and companioned by other Federal dead gathered from the several camps and battlefields of West Virginia. The fallen soldier (the word "hero" appears to be a later invention) has such humble honors as it is possible to give.

His part in all the pomp that fills
The circuit of the Summer hills
Is that his grave is green.

True, more than a half of the green graves in the Grafton cemetery are marked "Unknown," and sometimes it occurs that one thinks of the contradiction involved in "honoring the memory" of him of whom no memory remains to honor; but the attempt seems to do no great harm to the living, even to the logical.

A few hundred yards to the rear of the old Confederate earthworks is a wooded hill. Years ago it was not wooded. Here, among the trees and in the

undergrowth, are rows of shallow depressions, discoverable by removing the accumulated forest leaves. From some of them may be taken (and reverently replaced) small thin slabs of the split stone of the country, with rude and reticent inscriptions by comrades. I found only one with a date, only one with full names of man and regiment. The entire number found was eight.

In these forgotten graves rest the Confederate dead—between eighty and one hundred, as nearly as can be made out. Some fell in the “battle;” the majority died of disease. Two, only two, have apparently been disinterred for reburial at their homes. So neglected and obscure in this *campo santo* that only he upon whose farm it is—the aged postmaster of Travelers’ Repose—appears to know about it. Men living within a mile have never heard of it. Yet other men must be still living who assisted to lay these Southern soldiers where they are, and could identify some of the graves. Is there a man, North or South, who would begrudge the expense of giving to these fallen brothers the tribute of green graves? One would rather not think so. True, there are several hundreds of such places still discoverable in the track of the great war. All the stronger is the dumb demand—the silent plea of these fallen brothers to what is “likest God within the soul.”

They were honest and courageous foemen, having little in common with the political madmen who persuaded them to their doom and the literary bearers of false witness in the aftertime. They did not live through the period of honorable strife into the period of vilification—did not pass from the iron age to the brazen—from the era of the sword to that of the tongue and pen. Among them is no member of the Southern Historical Society. Their valor was not the fury of the non-combatant; they have no voice in the thunder of the civilians and the shouting. Not by them are impaired the dignity and infinite pathos of the Lost Cause. Give them, these blameless gentlemen, their rightful part in all the pomp that fills the circuit of the summer hills.

1903.

Transcriber’s Notes:

- Blank pages have been removed.

- A few obvious typographical errors have been silently corrected.

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